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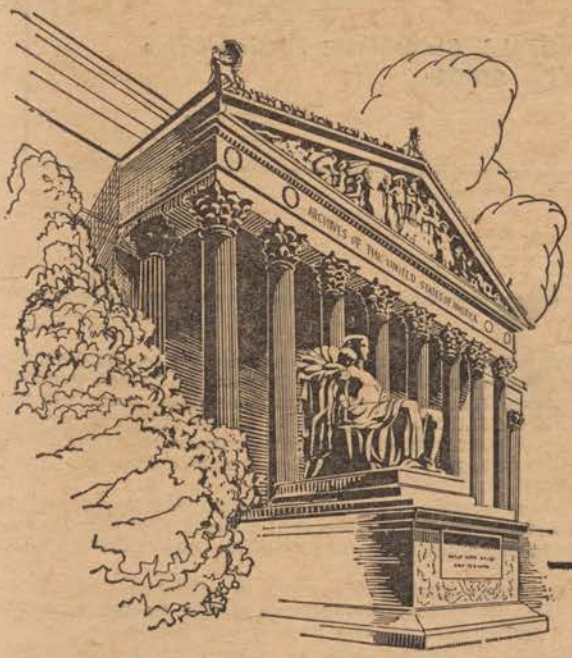
Wednesday, June 5, 1968 • Washington, D.C.

Pages 8325–8382

Agencies in this issue—

Atomic Energy Commission
Civil Aeronautics Board
Commodity Credit Corporation
Consumer and Marketing Service
Customs Bureau
Delaware River Basin Commission
Federal Aviation Administration
Federal Communications Commission
Federal Highway Administration
Federal Maritime Commission
Federal Power Commission
Federal Reserve System
Federal Trade Commission
Food and Drug Administration
Foreign Assets Control Office
Interagency Textile Administrative Committee
Internal Revenue Service
International Commerce Bureau
Interstate Commerce Commission
Justice Department
Land Management Bureau
Securities and Exchange Commission
Social Security Administration
Transportation Department

Detailed list of Contents appears inside.





How To Find U.S. Statutes and United States Code Citations

[Revised Edition—1965]

This pamphlet contains typical legal references which require further citing. The official published volumes in which the citations may be found are shown alongside each reference—with suggestions as to the logical sequence to follow in using them. Additional finding aids, some especially useful in citing current legislation, also have been included. Examples are furnished at pertinent points and a list of references, with descriptions, is carried at the end.

This revised edition contains illustrations of principal finding aids and reflects the changes made in the new master table of statutes set out in the 1964 edition of the United States Code.

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Contents

AGRICULTURE DEPARTMENT

See Commodity Credit Corporation; Consumer and Marketing Service.

ATOMIC ENERGY COMMISSION

Proposed Rule Making

Luminous aircraft safety devices used under general license; amendment of labeling requirements ---------- 8350

Notices

Cesium-137; proposed increase in price ---------- 8357
Public Service Company of Colorado; notice of hearing on application for provisional construction permit ---------- 8357

CIVIL AERONAUTICS BOARD

Notices

International Air Transport Association; agreement adopted regarding specific commodity rates (3 documents) ---------- 8359

COMMERCE DEPARTMENT

See International Commerce Bureau.

COMMODITY CREDIT CORPORATION

Rules and Regulations

Rye; 1968 crop loan and purchase program; correction ---------- 8335
Wheat; 1968 loan and purchase program ---------- 8329

CONSUMER AND MARKETING SERVICE

Rules and Regulations

Irish potatoes grown in eastern South Dakota production area; termination of marketing agreement ---------- 8329

Proposed Rule Making

Milk in New Orleans, La., and Mississippi marketing areas; recommended decision ---------- 8345
Radishes; standards for grades ---------- 8343

CUSTOMS BUREAU

Rules and Regulations

Antidumping regulations; correction ---------- 8337

DELAWARE RIVER BASIN COMMISSION

Notices

Comprehensive plan; notice of public hearing ---------- 8360

FEDERAL AVIATION ADMINISTRATION

Rules and Regulations

Airworthiness directives:
Lockheed Models 188A and 188C Series airplanes ---------- 8336
SIAI Marchetti S.205/22R airplanes ---------- 8336

Proposed Rule Making

Airworthiness directives; SIAI-Marchetti Model S.205/22R airplanes ---------- 8349
Restricted area and continental control area; proposed designation and alteration ---------- 8349

FEDERAL COMMUNICATIONS COMMISSION

Notices

Hearings, etc.:
American Telephone and Telegraph Co ---------- 8360
CATV of Rockford, Inc., et al ---------- 8360
California Water and Telephone Co., et al ---------- 8362
Spiropoulou, Thiresia ---------- 8363

FEDERAL HIGHWAY ADMINISTRATION

Proposed Rule Making

Parking brakes ---------- 8349

FEDERAL MARITIME COMMISSION

Notices

Agreements filed for approval:
Atlantic & Gulf/Panama Canal Zone, Colon & Panama City Conference et al ---------- 8363
Atlantic and Gulf-Indonesia Conference ---------- 8364
Atlantic and Gulf-Singapore, Malaya and Thailand Conference ---------- 8364
Blue Sea Line and Kawasaki Kisen Kaisha, Ltd ---------- 8365
Havana Steamship Conference et al ---------- 8363
Maryland Port Authority and Moore-McCormack Lines ---------- 8364
North Atlantic Westbound Freight Conference ---------- 8363
Orders of investigation and hearings:
City of Los Angeles and Japan Line, Ltd., et al ---------- 8366
Port of Oakland and Japan Line, Ltd., et al ---------- 8365
South Atlantic & Caribbean Lines, Inc., and TMT Trailer Ferry, Inc ---------- 8365

FEDERAL POWER COMMISSION

Notices

Colorado Interstate Gas Co.; notice of application ---------- 8366

FEDERAL RESERVE SYSTEM

Notices

First National Bancorporation, Inc.; order approving application ---------- 8367
Orders for public proceeding:
Fidelity Bank ---------- 8367
Girard Trust Bank ---------- 8367

FEDERAL TRADE COMMISSION

Rules and Regulations

Guide against deceptive use of word "free" in connection with sale of photographic film and film processing service ---------- 8336

FOOD AND DRUG ADMINISTRATION

Rules and Regulations

Canned pineapple juice; confirmation of effective date of order amending identity standard ---------- 8337
Food additives; rubber articles intended for repeated use ---------- 8338
New drugs exempted for investigational use in human beings ---------- 8338
Pesticide chemicals; tolerances ---------- 8337

Proposed Rule Making

Drugs for human use; drug efficacy study implementation ---------- 8348

Notices

FMC Corp.; notice of filing of petition regarding pesticide chemicals ---------- 8356
Succinic acid 2,2-dimethylhydrazide; establishment of temporary tolerance ---------- 8357
2-Methyl-2-(methylthio) propionaldehyde - *O* - (methylcarbamoyl) oxime; extension of temporary tolerance ---------- 8357

FOREIGN ASSETS CONTROL OFFICE

Rules and Regulations

Quotas for imports of certain commodities from other countries ---------- 8339

Notices

Cotton manufactures; importation from U.S.S.R ---------- 8357

HEALTH, EDUCATION, AND WELFARE DEPARTMENT

See Food and Drug Administration; Social Security Administration.

INTERAGENCY TEXTILE ADMINISTRATIVE COMMITTEE

Notices

Certain cotton textile products produced or manufactured in Mexico; extension of temporary levels for importation ---------- 8367

(Continued on next page)

INTERIOR DEPARTMENT

See Land Management Bureau.

INTERNAL REVENUE SERVICE

Proposed Rule Making

Income tax; consolidated returns 8343

INTERNATIONAL COMMERCE BUREAU

Notices

Stevens, Pierre M.; order temporarily denying export privileges 8356

INTERSTATE COMMERCE COMMISSION

Notices

Motor carrier:
- Alternate route deviation notices 8368
- Applications and certain other proceedings 8370
- Broker, water carrier and freight forwarder applications 8375
- Intrastate applications 8381
- Transfer proceedings 8380

JUSTICE DEPARTMENT

Rules and Regulations

Organization; petitions for issuance of extraordinary writs 8339

LAND MANAGEMENT BUREAU

Rules and Regulations

Special uses; use of map stock other than tracing linen for right-of-way maps 8339

Public land orders:
- Arizona 8340
- California (2 documents) 8340, 8341
- Colorado 8340
- Michigan 8341
- Montana 8341
- New Mexico 8341

Notices

Alaska; proposed withdrawal and reservation of lands 8351

California; proposed withdrawal and reservation of lands 8351

Colorado; proposed classification of public lands (2 documents) 8351, 8352

Idaho; revocation of small tract classification 8353

Montana:
- Classification of public lands for multiple use management 8353
- Proposed classification of public lands for multiple use management 8353

Nevada:
- Opening of lands to mineral location, entry and patenting; correction 8354
- Proposed classification of public lands for multiple use management 8355

SECURITIES AND EXCHANGE COMMISSION

Notices

Hearings, etc.:
- Amsted Industries Inc 8368
- Leeds Shoes, Inc 8368
- Rover Shoe Co 8368

SOCIAL SECURITY ADMINISTRATION

Proposed Rule Making

Disability insurance; rights and benefits based on disability; correction 8348

TRANSPORTATION DEPARTMENT

See also Federal Aviation Administration; Federal Highway Administration.

Rules and Regulations

Aircraft loan guarantee program; revocation of part 8341

TREASURY DEPARTMENT

See Foreign Assets Control Office; Internal Revenue Service.

List of CFR Parts Affected

The following numerical guide is a list of the parts of each title of the Code of Federal Regulations affected by documents published in today's issue. A cumulative list of parts affected, covering the current month to date, appears at the end of each issue beginning with the second issue of the month.

A cumulative guide is published separately at the end of each month. The guide lists the parts and sections affected by documents published since January 1, 1968, and specifies how they are affected.

3 CFR

EXECUTIVE ORDERS:
- Apr. 17, 1926 (revoked by PLO 4432) 8341
- 1032 (revoked in part by PLO 4431) 8341
- 8647 (revoked in part by PLO 4430) 8341

7 CFR

- 952 8329
- 1421 (2 documents) 8329, 8335

PROPOSED RULES:
- 51 8343
- 1094 8345
- 1103 8345

10 CFR

PROPOSED RULES:
- 32 8350

14 CFR

- 39 (2 documents) 8336

PROPOSED RULES:
- 39 8349
- 71 8349
- 73 8349

16 CFR

- 242 8336

19 CFR

- 14 8337
- 16 8337
- 17 8337
- 53 8337

20 CFR

PROPOSED RULES:
- 404 8348

21 CFR

- 27 8337
- 120 8337
- 121 8338
- 130 8338

PROPOSED RULES:
- 130 8348

26 CFR

PROPOSED RULES:
- 1 8343

28 CFR

- 0 8339

31 CFR

- 500 8339

43 CFR

- 2230 8339

PUBLIC LAND ORDERS:
- 1556 (revoked in part by PLO 4427) 8340
- 3147 (see PLO 4427) 8340
- 3152 (revoked in part by PLO 4427) 8340
- 3184 (see PLO 4427) 8340
- 3965 (see PLO 4427) 8340
- 4427 8340
- 4428 8340
- 4429 8341
- 4430 8341
- 4431 8341
- 4432 8341
- 4433 8341

49 CFR

- 91 8341

PROPOSED RULES:
- 293 8349

Rules and Regulations

Title 7—AGRICULTURE

Chapter IX—Consumer and Marketing Service (Marketing Agreements and Orders; Fruits, Vegetables, Nuts), Department of Agriculture

PART 952—IRISH POTATOES GROWN IN EASTERN SOUTH DAKOTA PRODUCTION AREA

Termination of Marketing Agreement

Notice of rule making with respect to termination of Marketing Agreement No. 103 and Order No. 952 (7 CFR Part 952) was published in the January 25, 1968, FEDERAL REGISTER (33 F.R. 917). This program has been in effect since May 15, 1948, under the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601 et seq.).

The notice afforded interested persons an opportunity to submit data, views, or arguments pertaining thereto not later than 30 days following its publication in the FEDERAL REGISTER. None was submitted.

The last grade and size regulations under this marketing order program were in effect for the 1951 crop; and no regulations have been issued since then.

At the November 8, 1967, joint meeting of the South Dakota Potato Growers Association, which represents approximately 90 percent of the potato producers within the production area under the marketing agreement and order, and the South Dakota Potato Committee, the administrative agency under said program, the Association and Committee each unanimously recommended that the marketing agreement and order be terminated.

There is no need for the members of the South Dakota Potato Committee to continue as trustees, pursuant to the provisions of § 952.62, for the purpose of liquidating the affairs of the Committee since the Committee's affairs have been liquidated as follows:

(1) All books and records of the Committee have been transferred to the jurisdiction of the Denver Marketing Field Office, Fruit and Vegetable Division, Consumer and Marketing Service, U.S. Department of Agriculture;

(2) All other property, including furniture and equipment of the Committee, has been sold and the proceeds therefrom expended as authorized by the marketing agreement and order; and

(3) No assets or funds remain for distribution.

After consideration of all relevant matters presented, including that contained in the aforesaid notice, and pursuant to section 8c(16)(A) of the act (7 U.S.C. 608c(16)(A)) and § 952.61(b) of the marketing agreement and order, it is hereby found that the marketing agreement and order no longer tend to effectuate the declared policy of the act and should be terminated and that postponing the effective date hereof until 30 days after publication in the FEDERAL REGISTER (5 U.S.C. 553), is impracticable, unnecessary, and contrary to the public interest, and good cause exists for making this order effective upon publication.

It is therefore, ordered, That Marketing Agreement No. 103 and Order No. 952, including § 952.62 thereof and the rules and regulations effective pursuant thereto (7 CFR Part 952), together with the appointment heretofore made of incumbent Committee members and alternates, be, and the same are hereby terminated, and said Committee members and alternates be and they are hereby discharged and relieved of all further responsibility.

(Secs. 1–19, 48 Stat. 31, as amended; 7 U.S.C. 601–674)

Dated May 29, 1968, to become effective upon publication in the FEDERAL REGISTER.

JOHN A. SCHNITTKER,
Under Secretary.

[F.R. Doc. 68–6632; Filed, June 4, 1968; 8:50 a.m.]

Chapter XIV—Commodity Credit Corporation, Department of Agriculture

SUBCHAPTER B—LOANS, PURCHASES, AND OTHER OPERATIONS

[CCC Grain Price Support Regs., 1968-Crop Wheat Supp.]

PART 1421—GRAINS AND SIMILARLY HANDLED COMMODITIES

Subpart—1968-Crop Wheat Loan and Purchase Program

The General Regulations Governing Price Support for the 1964 and Subsequent Crops (Revision 1) (31 F.R. 5941) and any amendments thereto and the 1968 and Subsequent Crops Wheat Loan and Purchase Program regulations (33 F.R. 7069) which contain regulations of a general nature with respect to price support operations are further supplemented for the 1968 crop of wheat as follows:

Sec.
1421.2115 Availability.
1421.2116 Compliance requirements.
1421.2117 Warehouse charges.
1421.2118 Maturity of loans.
1421.2119 Support rates, premiums, and discounts.

AUTHORITY: The provisions of this subpart issued under sec. 4, 62 Stat. 1070, as amended; 15 U.S.C. 714b. Interpret or apply sec. 5, 62 Stat. 1072, secs. 107, 401, 63 Stat. 1051, 1054; 15 U.S.C. 714c, 7 U.S.C. 1441, 1421

§ 1421.2115 Availability.

A producer desiring a price support loan must request a loan on his eligible wheat on or before April 30, 1969, on wheat stored in Idaho, Minnesota, Montana, North Dakota, Oregon, Washington, and Wyoming, and on or before March 31, 1969, on wheat stored in all other States. To obtain price support through a sale to CCC, a producer must give the appropriate ASCS county office notice of his intent to sell his eligible wheat to CCC on or before May 31, 1969, for wheat stored in the States named in this section and on or before April 30, 1969, for wheat stored in all other States. To obtain a price support loan on his wheat or to sell his wheat to CCC, a producer must execute a Form CCC–680, 1968-Crop Wheat Varieties Certification.

§ 1421.2116 Compliance requirements.

A producer shall be eligible for a loan or purchase if he is eligible to receive wheat marketing certificates on wheat of the 1968 crop on the farm on which the wheat tendered for loan or purchase is produced under the Regulations Pertaining to Farm Acreage Allotments, Yields, and Wheat Certificate Program for the Crop Years 1968 Through 1969 issued as separate regulations under Part 728 of this Title 7 (see 33 F.R. 6508, Apr. 30, 1968 and amendments thereto).

§ 1421.2117 Warehouse charges.

Subject to the provisions of § 1421.2107, the schedules of deductions set forth in this section shall apply to wheat stored in an approved warehouse operating under the Uniform Grain Storage Agreement and operated by an Eastern common carrier.

(a) *Warehouses approved under the Uniform Grain Storage Agreement.*

SCHEDULE OF DEDUCTIONS FOR STORAGE CHARGES BY MATURITY DATES

Maturity date of April 30, 1969	Deduction (cents per bushel)	Maturity date of May 31, 1969
(1)		(1)
Prior to May 16, 1968	13	Prior to June 16, 1968.
May 16–June 12, 1968	12	June 16–July 13, 1968.
July 13–July 10, 1968	11	July 14–Aug. 10, 1968.
July 11–Aug. 7, 1968	10	Aug. 11–Sept. 7, 1968.
Aug. 8–Sept. 4, 1968	9	Sept. 8–Oct. 5, 1968.
Sept. 5–Oct. 2, 1968	8	Oct. 6–Nov. 2, 1968.
Oct. 3–Oct. 30, 1968	7	Nov. 3–Nov. 30, 1968.
Oct. 31–Nov. 27, 1968	6	Dec. 1–Dec. 28, 1968.
Nov. 28–Dec. 25, 1968	5	Dec. 29, 1968–Jan. 25, 1969.
Dec. 26, 1968–Jan. 22, 1969.	4	Jan. 26–Feb. 22, 1969.
Jan. 23–Feb. 19, 1969	3	Feb. 23–Mar. 22, 1969.
Feb. 20–Mar. 19, 1969	2	Mar. 23–Apr. 19, 1969.
Mar. 20–Apr. 30, 1969	1	Apr. 20–May 31, 1969.

[1] Date storage charges start, all dates inclusive.

(b) *Warehouses operated by Eastern common carriers.* (1) Eligible wheat stored in the following approved Eastern common carrier warehouses may be placed under loan or offered for sale to CCC:

(i) Canadian National Railway Co., Portland Elevator—Warehouse Code 9–2101, Portland, Maine.

(ii) Pennsylvania Railroad Co., Canton Elevator—Warehouse Code 9–2151, Baltimore, Md.

(2) *Schedule of deductions for storage charges.*

Maturity date of Apr. 30, 1969	*Deduction (cents per bushel)*
(1)	(2)
Prior to June 25, 1968	16
June 25–July 14, 1968	15
July 15–Aug. 3, 1968	14
Aug. 4–Aug. 23, 1968	13
Aug. 24–Sept. 12, 1968	12
Sept. 13–Oct. 2, 1968	11
Oct. 3–Oct. 22, 1968	10
Oct. 23–Nov. 11, 1968	9
Nov. 12–Dec. 1, 1968	8
Dec. 2–Dec. 21, 1968	7
Dec. 22, 1968–Jan. 10, 1969	6
Jan. 11–Jan. 30, 1969	5
Jan. 31–Feb. 19, 1969	4
Feb. 20–Mar. 11, 1969	3
Mar. 12–Mar. 31, 1969	2
Apr. 1–Apr. 30, 1969	1

[1] Storage commence date, all dates inclusive.

[2] If producer presents evidence that elevation charges were prepaid, reduce storage deduction 3 cents per bushel on wheat placed under loan or offered for purchase under subparagraph (1) (i) of this paragraph or by 2¼ cents per bushel if under subparagraph (1) (ii) of this paragraph.

§ 1421.2118 Maturity of loans.

Loans mature on demand but not later than: May 31, 1969, on wheat stored in the States of Idaho, Minnesota, Montana, North Dakota, Oregon, Washington, and Wyoming; April 30, 1969, on wheat stored in all other States.

§ 1421.2119 Support rates, premiums and discounts.

(a) *Basic support rates (terminals).* Basic support rates for loans and settlement purposes for grade No. 1 wheat stored in approved warehouses at the terminal markets listed below are as follows:

Terminal market	*Rate per bushel*
Astoria, Oreg	$1.44
Portland, Oreg	1.44
Kalama, Wash	1.44
Longview, Wash	1.44
Seattle, Wash	1.44
Tacoma, Wash	1.44
Vancouver, Wash	1.44
Long Beach, Calif	1.55
Los Angeles, Calif	1.55
Oakland, Calif	1.55
San Francisco, Calif	1.55
Stockton, Calif	1.55
Wilmington, Calif	1.55
Louisville, Ky	1.45
Memphis, Tenn	1.45
Atchison, Kans	1.44
Council Bluffs, Iowa	1.44
Kansas City, Kans	1.44
Kansas City, Mo	1.44
St. Joseph, Mo	1.44
Omaha, Nebr	1.44
Sioux City, Iowa	1.44
Cairo, Ill	1.46
Chicago, Ill	1.46
East St. Louis, Ill	1.46
Milwaukee, Wis	1.46
St. Louis, Mo	1.46
Duluth, Minn	1.56
Minneapolis, Minn	1.56
St. Paul, Minn	1.56
Superior, Wis	1.56
Albany, N.Y	1.61
Baltimore, Md	$1.61
Charleston, S.C	1.61
Norfolk, Va	1.61
Philadelphia, Pa	1.61
New York, N.Y	1.61
Corpus Christi, Tex	1.69
Galveston, Tex	1.69
Houston, Tex	1.69
Beaumont, Tex	1.69
Port Arthur, Tex	1.69
New Orleans, La	1.69
Baton Rouge, La	1.69

(b) *Basic support rates (counties).* Basic county support rates per bushel for loan and settlement purposes for farm-stored and country warehouse-stored wheat are established for wheat grading No. 1 and are as follows:

ALABAMA

County	*Rate per bushel*
All counties	$1.32

ARIZONA

Apache	$0.96	Mohave	$1.02
Cochise	1.27	Navajo	.96
Coconino	.96	Pima	1.30
Gila	1.03	Pinal	1.34
Graham	1.18	Santa Cruz	1.27
Greenlee	1.03	Yavapai	.99
Maricopa	1.34	Yuma	1.35

ARKANSAS

Arkansas	$1.37	Lee	$1.40
Ashley	1.35	Lincoln	1.35
Baxter	1.25	Little River	1.35
Benton	1.20	Logan	1.21
Boone	1.23	Lonoke	1.37
Bradley	1.34	Madison	1.21
Calhoun	1.33	Marion	1.25
Carroll	1.20	Miller	1.36
Chicot	1.36	Mississippi	1.40
Clark	1.32	Monroe	1.39
Clay	1.37	Montgomery	1.25
Cleburne	1.38	Nevada	1.34
Cleveland	1.36	Newton	1.23
Columbia	1.36	Ouachita	1.34
Conway	1.34	Perry	1.26
Craighead	1.39	Phillips	1.39
Crawford	1.21	Pike	1.26
Crittenden	1.42	Poinsett	1.41
Cross	1.41	Polk	1.25
Dallas	1.32	Pope	1.25
Desha	1.37	Prairie	1.38
Drew	1.35	Pulaski	1.36
Faulkner	1.35	Randolph	1.38
Franklin	1.22	St. Francis	1.41
Fulton	1.31	Saline	1.30
Garland	1.29	Scott	1.25
Grant	1.31	Searcy	1.25
Greene	1.38	Sebastian	1.24
Hempstead	1.35	Sevier	1.27
Hot Spring	1.30	Sharp	1.31
Howard	1.27	Stone	1.29
Independence	1.33	Union	1.36
Izard	1.27	Van Buren	1.34
Jackson	1.37	Washington	1.21
Jefferson	1.36	White	1.38
Johnson	1.25	Woodruff	1.39
Lafayette	1.36	Yell	1.25
Lawrence	1.38		

CALIFORNIA

Alameda	$1.42	Fresno	$1.40
Alpine	1.30	Glenn	1.40
Amador	1.42	Humboldt	1.24
Butte	1.39	Imperial	1.37
Calaveras	1.42	Inyo	1.24
Colusa	1.40	Kern	1.38
Contra Costa	1.42	Kings	1.40
El Dorado	1.38	Lake	1.36

CALIFORNIA—Continued

County	*Rate per bushel*	*County*	*Rate per bushel*
Lassen	$1.23	San Luis Obispo	$1.36
Los Angeles	1.40	San Mateo	1.42
Madera	1.42	Santa Barbara	1.35
Marin	1.42	Santa Clara	1.41
Mariposa	1.42	Santa Cruz	1.38
Mendocino	1.32	Shasta	1.28
Merced	1.42	Sierra	1.22
Modoc	1.28	Siskiyou	1.28
Monterey	1.38	Solano	1.41
Napa	1.41	Sonoma	1.40
Orange	1.40	Stanislaus	1.43
Placer	1.40	Sutter	1.40
Plumas	1.30	Tehama	1.34
Riverside	1.37	Tulare	1.39
Sacramento	1.41	Tuolumne	1.42
San Benito	1.39	Ventura	1.40
San Bernardino	1.39	Yolo	1.41
San Diego	1.36	Yuba	1.40
San Joaquin	1.44		

COLORADO

Adams	$1.11	Kit Carson	$1.13
Alamosa	.94	La Plata	.94
Arapahoe	1.11	Larimer	1.11
Archuleta	.94	Las Animas	1.11
Baca	1.13	Lincoln	1.11
Bent	1.12	Logan	1.11
Boulder	1.11	Mesa	.93
Chaffee	.93	Moffat	.95
Cheyenne	1.13	Montezuma	.94
Conejos	.93	Montrose	.92
Costilla	.95	Morgan	1.11
Crowley	1.11	Otero	1.11
Custer	1.02	Ouray	.92
Delta	.92	Phillips	1.13
Denver	1.11	Pitkin	.93
Dolores	.94	Prowers	1.13
Douglas	1.11	Pueblo	1.11
Eagle	.93	Rio Blanco	.94
Elbert	1.11	Rio Grande	.93
El Paso	1.11	Routt	.95
Fremont	1.04	Saguache	.93
Garfield	.93	San Miguel	.92
Grand	.95	Sedgwick	1.14
Huerfano	1.06	Summit	.93
Jackson	.97	Washington	1.11
Jefferson	1.11	Weld	1.11
Kiowa	1.13	Yuma	1.13

CONNECTICUT

All counties	$1.38

DELAWARE

All counties	$1.43

FLORIDA

All counties	$1.34

GEORGIA

All counties	$1.34

IDAHO

Ada	$1.16	Gem	$1.16
Adams	1.16	Gooding	1.17
Bannock	1.16	Idaho	1.18
Bear Lake	1.13	Jefferson	1.13
Benewah	1.21	Jerome	1.18
Bingham	1.14	Kootenai	1.20
Blaine	1.16	Latah	1.21
Boise	1.15	Lemhi	1.13
Bonner	1.13	Lewis	1.19
Bonneville	1.13	Lincoln	1.18
Boundary	1.12	Madison	1.12
Butte	1.14	Minidoka	1.18
Camas	1.15	Nez Perce	1.21
Canyon	1.16	Oneida	1.17
Caribou	1.15	Owyhee	1.16
Cassia	1.18	Payette	1.16
Clark	1.11	Power	1.16
Clearwater	1.19	Shoshone	1.08
Custer	1.14	Teton	1.10
Elmore	1.15	Twin Falls	1.20
Franklin	1.17	Valley	1.14
Fremont	1.11	Washington	1.16

ILLINOIS

County	Rate per bushel	County	Rate per bushel
Adams	$1.27	Lee	$1.32
Alexander	1.29	Livingston	1.31
Bond	1.32	Logan	1.28
Boone	1.33	McDonough	1.25
Brown	1.27	McHenry	1.33
Bureau	1.32	McLean	1.29
Calhoun	1.32	Macon	1.30
Carroll	1.30	Macoupin	1.32
Cass	1.24	Madison	1.33
Champaign	1.29	Marion	1.33
Christian	1.29	Marshall	1.31
Clark	1.26	Mason	1.26
Clay	1.24	Massac	1.25
Clinton	1.30	Menard	1.27
Coles	1.27	Mercer	1.29
Cook	1.33	Monroe	1.32
Crawford	1.27	Montgomery	1.32
Cumberland	1.29	Morgan	1.29
De Kalb	1.33	Moultrie	1.28
De Witt	1.27	Ogle	1.32
Douglas	1.27	Peoria	1.29
Du Page	1.33	Perry	1.33
Edgar	1.24	Piatt	1.28
Edwards	1.29	Pike	1.27
Effingham	1.30	Pope	1.22
Fayette	1.32	Pulaski	1.29
Ford	1.30	Putnam	1.30
Franklin	1.32	Randolph	1.33
Fulton	1.29	Richland	1.27
Gallatin	1.22	Rock Island	1.30
Greene	1.33	St. Clair	1.31
Grundy	1.33	Saline	1.22
Hamilton	1.28	Sangamon	1.28
Hancock	1.25	Schuyler	1.27
Hardin	1.18	Scott	1.31
Henderson	1.28	Shelby	1.30
Henry	1.29	Stark	1.30
Iroquois	1.32	Stephenson	1.31
Jackson	1.32	Tazewell	1.28
Jasper	1.29	Union	1.31
Jefferson	1.32	Vermilion	1.30
Jersey	1.33	Wabash	1.26
Jo Daviess	1.29	Warren	1.29
Johnson	1.21	Washington	1.32
Kane	1.33	Wayne	1.27
Kankakee	1.32	White	1.25
Kendall	1.33	Whiteside	1.32
Knox	1.29	Will	1.33
Lake	1.32	Williamson	1.31
La Salle	1.32	Winnebago	1.32
Lawrence	1.22	Woodford	1.30

INDIANA

County	Rate per bushel	County	Rate per bushel
Adams	$1.19	Hendricks	$1.21
Allen	1.19	Henry	1.21
Bartholomew	1.25	Howard	1.22
Benton	1.25	Huntington	1.19
Blackford	1.21	Jackson	1.25
Boone	1.21	Jasper	1.31
Brown	1.21	Jay	1.19
Carroll	1.26	Jefferson	1.23
Cass	1.26	Jennings	1.24
Clark	1.30	Johnson	1.22
Clay	1.23	Knox	1.22
Clinton	1.23	Kosciusko	1.24
Crawford	1.30	Lagrange	1.20
Daviess	1.18	Lake	1.32
Dearborn	1.22	La Porte	1.31
Decatur	1.24	Lawrence	1.26
De Kalb	1.19	Madison	1.20
Delaware	1.20	Marion	1.21
Dubois	1.30	Marshall	1.31
Elkhart	1.25	Martin	1.19
Fayette	1.21	Miami	1.25
Floyd	1.30	Monroe	1.27
Fountain	1.20	Montgomery	1.21
Franklin	1.22	Morgan	1.19
Fulton	1.31	Newton	1.32
Gibson	1.25	Noble	1.20
Grant	1.21	Ohio	1.22
Greene	1.19	Orange	1.29
Hamilton	1.20	Owen	1.19
Hancock	1.21	Parke	1.20
Harrison	1.30	Perry	1.29
		Pike	1.24

INDIANA—Continued

County	Rate per bushel	County	Rate per bushel
Porter	$1.32	Tippecanoe	$1.23
Posey	1.24	Tipton	1.21
Pulaski	1.32	Union	1.21
Putnam	1.21	Vanderburgh	1.30
Randolph	1.20	Vermillion	1.30
Ripley	1.22	Vigo	1.31
Rush	1.21	Wabash	1.22
St. Joseph	1.30	Warren	1.25
Scott	1.26	Warrick	1.28
Shelby	1.21	Washington	1.27
Spencer	1.29	Wayne	1.21
Starke	1.31	Wells	1.19
Steuben	1.19	White	1.32
Sullivan	1.25	Whitley	1.21
Switzerland	1.23		

IOWA

County	Rate per bushel	County	Rate per bushel
Adair	$1.27	Jefferson	$1.24
Adams	1.31	Johnson	1.28
Allamakee	1.31	Jones	1.29
Appanoose	1.23	Keokuk	1.25
Audubon	1.25	Kossuth	1.32
Benton	1.29	Lee	1.23
Black Hawk	1.30	Linn	1.29
Boone	1.28	Louisa	1.25
Bremer	1.31	Lucas	1.24
Buena Vista	1.30	Lyon	1.30
Buchanan	1.29	Madison	1.26
Butler	1.31	Mahaska	1.26
Calhoun	1.29	Marion	1.26
Carroll	1.28	Marshall	1.29
Cass	1.26	Mills	1.31
Cedar	1.28	Mitchell	1.33
Cerro Gordo	1.32	Monona	1.28
Cherokee	1.28	Monroe	1.24
Chickasaw	1.31	Montgomery	1.31
Clarke	1.27	Muscatine	1.27
Clay	1.31	O'Brien	1.30
Clayton	1.29	Osceola	1.31
Clinton	1.25	Page	1.31
Crawford	1.28	Palo Alto	1.31
Dallas	1.28	Plymouth	1.31
Davis	1.23	Pocahontas	1.30
Decatur	1.25	Polk	1.28
Delaware	1.29	Pottawattamie	1.29
Des Moines	1.24	Poweshiek	1.28
Dickinson	1.31	Ringgold	1.26
Dubuque	1.28	Sac	1.29
Emmet	1.33	Scott	1.25
Fayette	1.30	Shelby	1.26
Floyd	1.32	Sioux	1.32
Franklin	1.31	Story	1.29
Fremont	1.31	Tama	1.29
Greene	1.28	Taylor	1.28
Grundy	1.30	Union	1.30
Guthrie	1.28	Van Buren	1.23
Hamilton	1.30	Wapello	1.24
Hancock	1.32	Warren	1.27
Hardin	1.30	Washington	1.25
Harrison	1.27	Wayne	1.23
Henry	1.24	Webster	1.30
Howard	1.32	Winnebago	1.33
Humboldt	1.30	Winneshiek	1.31
Ida	1.27	Woodbury	1.28
Iowa	1.28	Worth	1.33
Jackson	1.26	Wright	1.31
Jasper	1.28		

KANSAS

County	Rate per bushel	County	Rate per bushel
Allen	$1.28	Comanche	$1.19
Anderson	1.30	Cowley	1.25
Atchison	1.31	Crawford	1.28
Barber	1.22	Decatur	1.19
Barton	1.21	Dickinson	1.24
Bourbon	1.29	Doniphan	1.31
Brown	1.31	Douglas	1.31
Butler	1.24	Edwards	1.21
Chase	1.26	Elk	1.26
Chautauqua	1.26	Ellis	1.21
Cherokee	1.28	Ellsworth	1.23
Cheyenne	1.16	Finney	1.17
Clark	1.17	Ford	1.20
Clay	1.25	Franklin	1.31
Cloud	1.24	Geary	1.26
Coffey	1.28	Gove	1.18

KANSAS—Continued

County	Rate per bushel	County	Rate per bushel
Graham	$1.21	Osage	$1.29
Grant	1.16	Osborne	1.22
Gray	1.18	Ottawa	1.24
Greeley	1.16	Pawnee	1.21
Greenwood	1.26	Phillips	1.21
Hamilton	1.16	Pottawatomie	1.28
Harper	1.23	Pratt	1.21
Harvey	1.24	Rawlins	1.17
Haskell	1.17	Reno	1.22
Hodgeman	1.20	Republic	1.24
Jackson	1.30	Rice	1.23
Jefferson	1.31	Riley	1.27
Jewell	1.23	Rooks	1.21
Johnson	1.31	Rush	1.21
Kearny	1.16	Russell	1.21
Kingman	1.23	Saline	1.23
Kiowa	1.21	Scott	1.17
Labette	1.28	Sedgwick	1.24
Lane	1.18	Seward	1.21
Leavenworth	1.31	Shawnee	1.29
Lincoln	1.23	Sheridan	1.18
Linn	1.31	Sherman	1.16
Logan	1.17	Smith	1.23
Lyon	1.27	Stafford	1.21
McPherson	1.23	Stanton	1.14
Marion	1.24	Stevens	1.17
Marshall	1.27	Sumner	1.24
Meade	1.17	Thomas	1.17
Miami	1.31	Trego	1.21
Mitchell	1.23	Wabaunsee	1.28
Montgomery	1.28	Wallace	1.16
Morris	1.25	Washington	1.25
Morton	1.20	Wichita	1.16
Nemaha	1.28	Wilson	1.27
Neosho	1.28	Woodson	1.28
Ness	1.20	Wyandotte	1.31
Norton	1.21		

KENTUCKY

County	Rate per bushel	County	Rate per bushel
Adair	$1.29	Harrison	$1.30
Allen	1.28	Hart	1.28
Anderson	1.30	Henderson	1.26
Ballard	1.26	Henry	1.29
Barren	1.28	Hickman	1.26
Bath	1.30	Hopkins	1.27
Bell	1.29	Jackson	1.29
Boone	1.29	Jefferson	1.29
Bourbon	1.31	Jessamine	1.31
Boyd	1.31	Johnson	1.29
Boyle	1.31	Kenton	1.29
Bracken	1.30	Knox	1.29
Breathitt	1.29	Larue	1.29
Breckinridge	1.27	Laurel	1.30
Bullitt	1.29	Lawrence	1.30
Butler	1.27	Lee	1.30
Caldwell	1.27	Lewis	1.31
Calloway	1.26	Lincoln	1.31
Campbell	1.29	Livingston	1.26
Carlisle	1.26	Logan	1.27
Carroll	1.29	Lyon	1.27
Carter	1.30	McCracken	1.26
Casey	1.30	McCreary	1.29
Christian	1.27	McLean	1.26
Clark	1.31	Madison	1.31
Clay	1.29	Magoffin	1.29
Clinton	1.30	Marion	1.30
Crittenden	1.26	Marshall	1.26
Cumberland	1.29	Mason	1.30
Daviess	1.26	Meade	1.27
Edmonson	1.27	Menifee	1.29
Elliott	1.30	Mercer	1.31
Estill	1.30	Metcalfe	1.28
Fayette	1.31	Monroe	1.29
Fleming	1.30	Montgomery	1.30
Franklin	1.30	Morgan	1.29
Fulton	1.26	Muhlenberg	1.27
Gallatin	1.29	Nelson	1.30
Garrard	1.31	Nicholas	1.30
Grant	1.30	Ohio	1.27
Graves	1.26	Oldham	1.29
Grayson	1.28	Owen	1.30
Green	1.30	Owsley	1.29
Greenup	1.31	Pendleton	1.30
Hancock	1.27	Powell	1.30
Hardin	1.28	Pulaski	1.31

KENTUCKY—Continued

County	Rate per bushel	County	Rate per bushel
Robertson	$1.30	Trigg	$1.27
Rockcastle	1.31	Trimble	1.29
Rowan	1.31	Union	1.26
Russell	1.29	Warren	1.27
Scott	1.30	Washington	1.31
Shelby	1.29	Wayne	1.30
Simpson	1.28	Webster	1.26
Spencer	1.29	Whitley	1.29
Taylor	1.30	Wolfe	1.29
Todd	1.27	Woodford	1.31

LOUISIANA

All parishes	$1.37

MAINE

All counties	$1.34

MARYLAND

County	Rate per bushel	County	Rate per bushel
Allegany	$1.34	Howard	$1.46
Anne Arundel	1.43	Kent	1.43
Baltimore	1.43	Montgomery	1.42
Calvert	1.41	Prince Georges	1.42
Caroline	1.43	Queen Annes	1.43
Carroll	1.42	St. Marys	1.41
Cecil	1.42	Somerset	1.41
Charles	1.41	Talbot	1.43
Dorchester	1.43	Washington	1.39
Frederick	1.41	Wicomico	1.42
Garrett	1.33	Worcester	1.41
Harford	1.43		

MASSACHUSETTS

All counties	$1.37

MICHIGAN

County	Rate per bushel	County	Rate per bushel
Alcona	$1.12	Lake	$1.15
Alger	1.21	Lapeer	1.18
Allegan	1.18	Leelanau	1.14
Alpena	1.11	Lenawee	1.23
Antrim	1.13	Livingston	1.18
Arenac	1.13	Luce	1.07
Baraga	1.27	Mackinac	1.06
Barry	1.18	Macomb	1.22
Bay	1.15	Manistee	1.15
Benzie	1.15	Marquette	1.25
Berrien	1.28	Mason	1.15
Branch	1.19	Mecosta	1.15
Calhoun	1.22	Menominee	1.21
Cass	1.22	Midland	1.15
Charleviox	1.12	Missaukee	1.15
Cheboygan	1.11	Monroe	1.23
Chippewa	1.07	Montcalm	1.15
Clare	1.15	Montmorency	1.12
Clinton	1.17	Muskegon	1.15
Crawford	1.13	Newaygo	1.15
Delta	1.21	Oakland	1.20
Dickinson	1.22	Oceana	1.15
Eaton	1.18	Ogemaw	1.13
Emmet	1.11	Ontonagon	1.22
Genesee	1.18	Osceola	1.15
Gladwin	1.14	Oscoda	1.13
Gogebic	1.30	Otsego	1.12
Grand Traverse	1.14	Ottawa	1.18
Gratiot	1.17	Presque Isle	1.10
Hillsdale	1.19	Roscommon	1.14
Houghton	1.24	Saginaw	1.17
Huron	1.18	St. Clair	1.21
Ingham	1.18	St. Joseph	1.21
Ionia	1.17	Sanilac	1.18
Iosco	1.12	Schoolcraft	1.21
Iron	1.24	Shiawassee	1.18
Isabella	1.15	Tuscola	1.18
Jackson	1.22	Van Buren	1.20
Kalamazoo	1.21	Washtenaw	1.20
Kalkaska	1.14	Wayne	1.21
Kent	1.17	Wexford	1.15
Keweenaw	1.24		

MINNESOTA

County	Rate per bushel	County	Rate per bushel
Aitkin	$1.44	Benton	$1.43
Anoka	1.43	Big Stone	1.39
Becker	1.37	Blue Earth	1.43
Beltrami	1.39	Brown	1.43

MINNESOTA—Continued

County	Rate per bushel	County	Rate per bushel
Carlton	$1.44	Mower	$1.43
Carver	1.43	Murray	1.39
Cass	1.42	Nicollet	1.43
Chippewa	1.42	Nobles	1.36
Chisago	1.43	Norman	1.35
Clay	1.35	Olmstead	1.43
Clearwater	1.38	Otter Tail	1.39
Cottonwood	1.41	Pennington	1.35
Crow Wing	1.43	Pine	1.43
Dakota	1.43	Pipestone	1.36
Dodge	1.43	Polk	1.35
Douglas	1.41	Pope	1.41
Faribault	1.42	Ramsey	1.43
Fillmore	1.40	Red Lake	1.36
Freeborn	1.43	Redwood	1.42
Goodhue	1.43	Renville	1.43
Grant	1.40	Rice	1.43
Hennepin	1.43	Rock	1.34
Houston	1.38	Roseau	1.31
Hubbard	1.39	St. Louis	1.38
Isanti	1.43	Scott	1.43
Itasca	1.44	Sherburne	1.43
Jackson	1.40	Sibley	1.43
Kanabec	1.43	Stearns	1.43
Kandiyohi	1.43	Steele	1.43
Kittson	1.30	Stevens	1.40
Koochiching	1.37	Swift	1.42
Lac qui Parle	1.40	Todd	1.41
Lake of the Woods	1.35	Traverse	1.38
Le Sueur	1.43	Wabasha	1.43
Lincoln	1.38	Wadena	1.40
Lyon	1.40	Waseca	1.43
McLeod	1.43	Washington	1.43
Mahnomen	1.36	Watonwan	1.42
Marshall	1.33	Wilkin	1.37
Martin	1.41	Winona	1.43
Meeker	1.43	Wright	1.43
Mille Lacs	1.43	Yellow Medicine	1.41
Morrison	1.42		

MISSISSIPPI

All counties	$1.29

MISSOURI

County	Rate per bushel	County	Rate per bushel
Adair	$1.25	Grundy	$1.29
Andrew	1.31	Harrison	1.29
Atchison	1.31	Henry	1.31
Audrain	1.31	Hickory	1.28
Barry	1.26	Holt	1.31
Barton	1.28	Howard	1.28
Bates	1.31	Howell	1.27
Benton	1.29	Iron	1.31
Bollinger	1.31	Jackson	1.31
Boone	1.29	Jasper	1.28
Buchanan	1.31	Jefferson	1.33
Butler	1.36	Johnson	1.30
Caldwell	1.31	Knox	1.26
Callaway	1.30	Laclede	1.25
Camden	1.26	Lafayette	1.31
Cape Girardeau	1.35	Lawrence	1.26
Carroll	1.31	Lewis	1.26
Carter	1.31	Lincoln	1.34
Cass	1.31	Linn	1.29
Cedar	1.30	Livingston	1.30
Chariton	1.30	McDonald	1.26
Christian	1.26	Macon	1.27
Clark	1.26	Madison	1.31
Clay	1.31	Maries	1.32
Clinton	1.31	Marion	1.27
Cole	1.30	Mercer	1.28
Cooper	1.27	Miller	1.29
Crawford	1.30	Mississippi	1.36
Dade	1.27	Moniteau	1.27
Dallas	1.25	Monroe	1.28
Daviess	1.30	Montgomery	1.33
De Kalb	1.31	Morgan	1.27
Dent	1.28	New Madrid	1.37
Douglas	1.23	Newton	1.26
Dunklin	1.37	Nodaway	1.31
Franklin	1.34	Oregon	1.30
Gasconade	1.32	Osage	1.31
Gentry	1.31	Ozark	1.25
Greene	1.26	Pemiscot	1.37
		Perry	1.31

MISSOURI—Continued

County	Rate per bushel	County	Rate per bushel
Pettis	$1.29	Schuyler	$1.25
Phelps	1.29	Scotland	1.26
Pike	1.32	Scott	1.35
Platte	1.31	Shannon	1.28
Polk	1.27	Shelby	1.27
Pulaski	1.27	Stoddard	1.36
Putnam	1.26	Stone	1.25
Ralls	1.28	Sullivan	1.28
Randolph	1.28	Taney	1.24
Ray	1.31	Texas	1.23
Reynolds	1.28	Vernon	1.30
Ripley	1.35	Warren	1.34
St. Charles	1.34	Washington	1.31
St. Clair	1.30	Wayne	1.32
St. Francois	1.31	Webster	1.24
St. Genevieve	1.31	Worth	1.31
St. Louis	1.34	Wright	1.23
Saline	1.30		

MONTANA

County	Rate per bushel	County	Rate per bushel
Beaverhead	$1.10	McCone	$1.11
Big Horn	1.08	Madison	1.07
Blaine	1.08	Meagher	1.08
Broadwater	1.05	Mineral	1.08
Carbon	1.08	Missoula	1.08
Carter	1.15	Musselshell	1.08
Cascade	1.08	Park	1.05
Chouteau	1.08	Petroleum	1.08
Custer	1.12	Phillips	1.08
Daniels	1.09	Pondera	1.08
Dawson	1.13	Powder River	1.09
Deer Lodge	1.07	Powell	1.07
Fallon	1.15	Prairie	1.12
Fergus	1.08	Ravalli	1.06
Flathead	1.06	Richland	1.11
Gallatin	1.07	Roosevelt	1.10
Garfield	1.10	Rosebud	1.08
Glacier	1.08	Sanders	1.08
Golden Valley	1.08	Sheridan	1.12
Granite	1.06	Silver Bow	1.07
Hill	1.08	Stillwater	1.08
Jefferson	1.05	Sweet Grass	1.08
Judith Basin	1.08	Teton	1.08
Lake	1.06	Toole	1.08
Lewis and Clark	1.08	Treasure	1.08
Liberty	1.08	Valley	1.08
Lincoln	1.06	Wheatland	1.08
		Wibaux	1.15
		Yellowstone	1.08

NEBRASKA

County	Rate per bushel	County	Rate per bushel
Adams	$1.25	Garden	$1.15
Antelope	1.28	Garfield	1.24
Arthur	1.16	Gosper	1.23
Banner	1.11	Grant	1.16
Blaine	1.21	Greeley	1.27
Boone	1.28	Hall	1.26
Box Butte	1.15	Hamilton	1.28
Boyd	1.26	Harlan	1.23
Brown	1.21	Hayes	1.17
Buffalo	1.25	Hitchcock	1.18
Burt	1.31	Holt	1.25
Butler	1.31	Hooker	1.18
Cass	1.31	Howard	1.26
Cedar	1.27	Jefferson	1.28
Chase	1.16	Johnson	1.30
Cherry	1.19	Kearney	1.24
Cheyenne	1.12	Keith	1.16
Clay	1.26	Keya Paha	1.22
Colfax	1.31	Kimball	1.11
Cuming	1.31	Knox	1.28
Custer	1.23	Lancaster	1.31
Dakota	1.28	Lincoln	1.20
Dawes	1.14	Logan	1.21
Dawson	1.24	Loup	1.24
Deuel	1.15	McPherson	1.20
Dixon	1.28	Madison	1.29
Dodge	1.31	Merrick	1.28
Douglas	1.31	Morrill	1.14
Dundy	1.16	Nance	1.28
Fillmore	1.28	Nemaha	1.30
Franklin	1.24	Nuckolls	1.26
Frontier	1.21	Otoe	1.31
Furnas	1.22	Pawnee	1.28
Gage	1.29	Perkins	1.16

NEBRASKA—Continued

County	Rate per bushel	County	Rate per bushel
Phelps	$1.23	Sherman	$1.25
Pierce	1.29	Sioux	1.13
Platte	1.30	Stanton	1.31
Polk	1.29	Thayer	1.27
Red Willow	1.20	Thomas	1.20
Richardson	1.29	Thurston	1.30
Rock	1.22	Valley	1.25
Saline	1.30	Washington	1.31
Sarpy	1.31	Wayne	1.27
Saunders	1.31	Webster	1.25
Scotts Bluff	1.12	Wheeler	1.28
Seward	1.31	York	1.29
Sheridan	1.16		

NEVADA

All counties	$1.22

NEW HAMPSHIRE

All counties	$1.36

NEW JERSEY

Bergen	$1.43	Middlesex	$1.42
Burlington	1.43	Monmouth	1.42
Camden	1.44	Morris	1.42
Cape May	1.40	Ocean	1.41
Cumberland	1.42	Passaic	1.43
Essex	1.43	Salem	1.43
Gloucester	1.43	Somerset	1.42
Hunterdon	1.41	Sussex	1.42
Mercer	1.43	Warren	1.40

NEW MEXICO

Bernalillo	$1.14	Mora	$1.14
Catron	1.02	Otero	1.17
Chaves	1.21	Quay	1.25
Colfax	1.13	Rio Arriba	.94
Curry	1.26	Roosevelt	1.25
De Baca	1.20	Sandoval	1.14
Dona Ana	1.14	San Juan	.94
Eddy	1.20	San Miguel	1.14
Grant	1.00	Santa Fe	1.15
Guadalupe	1.19	Sierra	1.14
Harding	1.23	Socorro	1.14
Hidalgo	1.13	Taos	.95
Lea	1.23	Torrance	1.16
Lincoln	1.17	Union	1.22
Luna	1.13	Valencia	1.07
McKinley	.94		

NEW YORK

Albany	$1.45	Oneida	$1.39
Allegany	1.38	Onondaga	1.38
Broome	1.38	Ontario	1.38
Cattaraugus	1.33	Orange	1.41
Cayuga	1.38	Orleans	1.37
Chautauqua	1.28	Oswego	1.38
Chemung	1.38	Otsego	1.40
Chenango	1.38	Putnam	1.41
Clinton	1.34	Rensselaer	1.44
Columbia	1.43	Rockland	1.39
Cortland	1.38	St. Lawrence	1.33
Delaware	1.38	Saratoga	1.43
Dutchess	1.41	Schenectady	1.44
Erie	1.35	Schoharie	1.42
Essex	1.38	Schuyler	1.38
Franklin	1.31	Seneca	1.38
Fulton	1.38	Steuben	1.38
Genesee	1.38	Suffolk	1.39
Greene	1.42	Sullivan	1.35
Herkimer	1.41	Tioga	1.38
Jefferson	1.34	Tompkins	1.38
Lewis	1.35	Ulster	1.41
Livingston	1.38	Warren	1.41
Madison	1.38	Washington	1.41
Monroe	1.38	Wayne	1.38
Montgomery	1.43	Westchester	1.43
Nassau	1.39	Wyoming	1.37
Niagara	1.37	Yates	1.38

NORTH CAROLINA

All counties	$1.36

NORTH DAKOTA

County	Rate per bushel	County	Rate per bushel
Adams	$1.21	McKenzie	$1.13
Barnes	1.30	McLean	1.20
Benson	1.23	Mercer	1.20
Billings	1.19	Morton	1.22
Bottineau	1.17	Mountrail	1.16
Bowman	1.20	Nelson	1.28
Burke	1.16	Oliver	1.21
Burleigh	1.24	Pembina	1.28
Cass	1.32	Pierce	1.21
Cavalier	1.24	Ramsey	1.25
Dickey	1.31	Ransom	1.33
Divide	1.14	Renville	1.16
Dunn	1.19	Richland	1.36
Eddy	1.25	Rolette	1.19
Emmons	1.25	Sargent	1.34
Foster	1.27	Sheridan	1.22
Golden Valley	1.16	Sioux	1.23
Grand Forks	1.31	Slope	1.20
Grant	1.22	Stark	1.20
Griggs	1.29	Steele	1.30
Hettinger	1.21	Stutsman	1.28
Kidder	1.24	Towner	1.21
La Moure	1.29	Traill	1.31
Logan	1.26	Walsh	1.29
McHenry	1.19	Ward	1.17
McIntosh	1.27	Wells	1.24
		Williams	1.15

OHIO

Adams	$1.21	Licking	$1.23
Allen	1.22	Logan	1.21
Ashland	1.24	Lorain	1.24
Ashtabula	1.27	Lucas	1.22
Athens	1.23	Madison	1.22
Auglaize	1.21	Mahoning	1.26
Belmont	1.24	Marion	1.23
Brown	1.21	Medina	1.24
Butler	1.21	Meigs	1.21
Carroll	1.24	Mercer	1.21
Champaign	1.21	Miami	1.21
Clark	1.21	Monroe	1.24
Clermont	1.21	Montgomery	1.21
Clinton	1.21	Morgan	1.24
Columbiana	1.25	Morrow	1.23
Coshocton	1.24	Muskingum	1.24
Crawford	1.23	Noble	1.24
Cuyahoga	1.24	Ottawa	1.23
Darke	1.21	Paulding	1.21
Defiance	1.21	Perry	1.23
Delaware	1.23	Pickaway	1.22
Erie	1.23	Pike	1.21
Fairfield	1.23	Portage	1.24
Fayette	1.21	Preble	1.21
Franklin	1.23	Putnam	1.21
Fulton	1.21	Richland	1.24
Gallia	1.21	Ross	1.22
Geauga	1.27	Sandusky	1.23
Greene	1.21	Scioto	1.21
Guernsey	1.24	Seneca	1.23
Hamilton	1.21	Shelby	1.21
Hancock	1.23	Stark	1.24
Hardin	1.23	Summit	1.24
Harrison	1.24	Trumbull	1.27
Henry	1.21	Tuscarawas	1.24
Highland	1.21	Union	1.23
Hocking	1.23	Van Wert	1.21
Holmes	1.24	Vinton	1.23
Huron	1.23	Warren	1.21
Jackson	1.21	Washington	1.24
Jefferson	1.25	Wayne	1.24
Knox	1.23	Williams	1.21
Lake	1.25	Wood	1.23
Lawrence	1.21	Wyandot	1.23

OKLAHOMA

Adair	$1.26	Caddo	$1.26
Alfalfa	1.25	Canadian	1.26
Atoka	1.26	Carter	1.26
Beaver	1.23	Cherokee	1.26
Beckham	1.26	Choctaw	1.26
Blaine	1.26	Cimarron	1.21
Bryan	1.26	Cleveland	1.26

OKLAHOMA—Continued

County	Rate per bushel	County	Rate per bushel
Coal	$1.26	Major	$1.26
Comanche	1.26	Marshall	1.26
Cotton	1.26	Mayes	1.25
Craig	1.26	Murray	1.26
Creek	1.26	Muskogee	1.26
Custer	1.26	Noble	1.26
Delaware	1.26	Nowata	1.27
Dewey	1.26	Okfuskee	1.26
Ellis	1.24	Oklahoma	1.26
Garfield	1.26	Okmulgee	1.26
Garvin	1.26	Osage	1.24
Grady	1.26	Ottawa	1.26
Grant	1.25	Pawnee	1.26
Greer	1.26	Payne	1.26
Harmon	1.26	Pittsburg	1.26
Harper	1.24	Pontotoc	1.26
Haskell	1.26	Pottawatomie	1.26
Hughes	1.26	Pushmataha	1.26
Jackson	1.26	Roger Mills	1.25
Jefferson	1.26	Rogers	1.25
Johnston	1.26	Seminole	1.26
Kay	1.25	Sequoyah	1.26
Kingfisher	1.26	Stephens	1.26
Kiowa	1.26	Texas	1.23
Latimer	1.26	Tillman	1.26
Le Flore	1.26	Tulsa	1.25
Lincoln	1.26	Wagoner	1.25
Logan	1.26	Washington	1.26
Love	1.26	Washita	1.26
McClain	1.26	Woods	1.24
McCurtain	1.26	Woodward	1.25
McIntosh	1.26		

OREGON

Baker	$1.20	Lake	$1.27
Benton	1.29	Lane	1.24
Clackamas	1.30	Lincoln	1.18
Clatsop	1.24	Linn	1.28
Columbia	1.26	Malheur	1.16
Coos	1.13	Marion	1.31
Crook	1.27	Morrow	1.28
Curry	1.16	Multnomah	1.31
Deschutes	1.27	Polk	1.30
Douglas	1.17	Sherman	1.32
Gilliam	1.29	Tillamook	1.32
Grant	1.27	Umatilla	1.27
Harney	1.12	Union	1.22
Hood River	1.33	Wallowa	1.19
Jackson	1.17	Wasco	1.33
Jefferson	1.30	Washington	1.32
Josephine	1.17	Wheeler	1.27
Klamath	1.28	Yamhill	1.31

PENNSYLVANIA

Adams	$1.41	Greene	$1.29
Allegheny	1.30	Huntingdon	1.34
Armstrong	1.28	Indiana	1.31
Beaver	1.27	Jefferson	1.31
Bedford	1.33	Juniata	1.35
Berks	1.41	Lackawanna	1.36
Blair	1.32	Lancaster	1.41
Bradford	1.36	Lawrence	1.29
Bucks	1.43	Lebanon	1.39
Butler	1.29	Lehigh	1.41
Cambria	1.31	Luzerne	1.36
Carbon	1.39	Lycoming	1.34
Centre	1.33	McKean	1.32
Chester	1.32	Mercer	1.27
Clarion	1.29	Mifflin	1.35
Clearfield	1.31	Monroe	1.39
Clinton	1.33	Montgomery	1.43
Columbia	1.41	Montour	1.35
Crawford	1.27	Northampton	1.41
Cumberland	1.38	Northumberland	1.35
Dauphin	1.37	Perry	1.38
Delaware	1.43	Pike	1.35
Elk	1.32	Potter	1.31
Erie	1.27	Schuylkill	1.37
Fayette	1.32	Snyder	1.35
Forest	1.28	Somerset	1.32
Franklin	1.38	Sullivan	1.38
Fulton	1.36		

PENNSYLVANIA—Continued

County	Rate per bushel	County	Rate per bushel
Susquehanna	$1.37	Wayne	$1.35
Tioga	1.34	Westmoreland	1.29
Union	1.35	Wyoming	1.38
Venango	1.27	York	1.41
Warren	1.27		
Washington	1.27		

RHODE ISLAND

All counties	$1.38

SOUTH CAROLINA

All counties	$1.35

SOUTH DAKOTA

County	Rate per bushel	County	Rate per bushel
Aurora	$1.30	Jackson	$1.26
Beadle	1.33	Jerauld	1.31
Bennett	1.18	Jones	1.28
Bon Homme	1.31	Kingsbury	1.34
Brookings	1.34	Lake	1.33
Brown	1.33	Lawrence	1.20
Brule	1.30	Lincoln	1.32
Buffalo	1.31	Lyman	1.30
Butte	1.20	McCook	1.31
Campbell	1.26	McPherson	1.29
Charles Mix	1.29	Marshall	1.34
Clark	1.35	Meade	1.21
Clay	1.32	Mellette	1.23
Codington	1.36	Miner	1.32
Corson	1.24	Minnehaha	1.33
Custer	1.14	Moody	1.35
Davison	1.31	Pennington	1.23
Day	1.35	Perkins	1.22
Deuel	1.33	Potter	1.31
Dewey	1.24	Roberts	1.37
Douglas	1.29	Sanborn	1.31
Edmunds	1.31	Shannon	1.17
Fall River	1.11	Spink	1.34
Faulk	1.32	Stanley	1.30
Grant	1.38	Sully	1.31
Gregory	1.25	Todd	1.23
Haakon	1.26	Tripp	1.24
Hamlin	1.36	Turner	1.30
Hand	1.31	Union	1.32
Hanson	1.31	Walworth	1.29
Harding	1.21	Washabaugh	1.26
Hughes	1.30	Yankton	1.29
Hutchinson	1.30	Ziebach	1.23
Hyde	1.31		

TENNESSEE

County	Rate per bushel	County	Rate per bushel
Anderson	$1.34	Hardin	$1.28
Bedford	1.31	Hawkins	1.38
Benton	1.28	Haywood	1.26
Bledsoe	1.32	Henderson	1.28
Bount	1.35	Henry	1.27
Bradley	1.34	Hickman	1.29
Campbell	1.34	Houston	1.28
Cannon	1.30	Humphreys	1.28
Carroll	1.27	Jackson	1.30
Carter	1.37	Jefferson	1.35
Cheatham	1.29	Johnson	1.37
Chester	1.27	Knox	1.35
Claiborne	1.36	Lake	1.26
Clay	1.30	Lauderdale	1.26
Cocke	1.35	Lawrence	1.30
Coffee	1.31	Lewis	1.30
Crockett	1.26	Lincoln	1.32
Cumberland	1.32	Loudon	1.34
Davidson	1.29	McMinn	1.34
Decatur	1.28	McNairy	1.27
De Kalb	1.30	Macon	1.29
Dickson	1.29	Madison	1.26
Dyer	1.26	Marion	1.32
Fayette	1.26	Marshall	1.31
Fentress	1.32	Maury	1.30
Franklin	1.32	Meigs	1.33
Gibson	1.26	Monroe	1.35
Giles	1.31	Montgomery	1.28
Grainger	1.35	Moore	1.31
Greene	1.36	Morgan	1.33
Grundy	1.31	Obion	1.26
Hamblen	1.36	Overton	1.31
Hamilton	1.33	Perry	1.29
Hancock	1.37	Pickett	1.31
Hardeman	1.27	Polk	1.35

TENNESSEE—Continued

County	Rate per bushel	County	Rate per bushel
Putnam	$1.31	Tipton	$1.26
Rhea	1.33	Trousdale	1.29
Roane	1.33	Unicoi	1.36
Robertson	1.28	Union	1.35
Rutherford	1.30	Van Buren	1.31
Scott	1.33	Warren	1.31
Sequatchie	1.32	Washington	1.37
Sevier	1.35	Wayne	1.29
Shelby	1.26	Weakley	1.26
Smith	1.30	White	1.31
Stewart	1.28	Williamson	1.30
Sullivan	1.38	Wilson	1.29
Sumner	1.28		

TEXAS

County	Rate per bushel	County	Rate per bushel
Andrews	$1.25	Hale	$1.26
Archer	1.26	Hall	1.26
Armstrong	1.26	Hamilton	1.32
Atascosa	1.37	Hansford	1.24
Bailey	1.26	Hardeman	1.26
Bandera	1.35	Harris	1.55
Bastrop	1.39	Hartley	1.24
Baylor	1.26	Haskell	1.26
Bee	1.37	Hays	1.39
Bell	1.39	Hemphill	1.24
Bexar	1.39	Hill	1.38
Blanco	1.38	Hockley	1.26
Borden	1.26	Hood	1.34
Bosque	1.37	Howard	1.26
Bowie	1.30	Hudspeth	1.17
Briscoe	1.26	Hunt	1.34
Brown	1.35	Hutchinson	1.24
Burleson	1.42	Irion	1.23
Burnet	1.35	Jack	1.30
Caldwell	1.39	Jackson	1.43
Calhoun	1.39	Jeff Davis	1.17
Callahan	1.26	Johnson	1.37
Carson	1.26	Jones	1.26
Castro	1.26	Karnes	1.37
Chambers	1.45	Kaufman	1.36
Cherokee	1.40	Kendall	1.35
Childress	1.26	Kent	1.26
Clay	1.28	Kerr	1.33
Cochran	1.26	Kimble	1.35
Coke	1.26	King	1.26
Coleman	1.32	Kinney	1.27
Collin	1.35	Knox	1.26
Collingsworth	1.26	Lamar	1.30
Comal	1.39	Lamb	1.26
Comanche	1.29	Lampasas	1.35
Concho	1.35	Limestone	1.39
Cooke	1.30	Lipscomb	1.24
Coryell	1.35	Live Oak	1.37
Cottle	1.26	Llano	1.35
Crosby	1.26	Loving	1.19
Culberson	1.18	Lubbock	1.26
Dallam	1.23	Lynn	1.26
Dallas	1.35	McCulloch	1.35
Dawson	1.26	McLennan	1.39
Deaf Smith	1.26	Martin	1.25
Delta	1.32	Mason	1.35
Denton	1.35	Maverick	1.24
De Witt	1.39	Medina	1.37
Dickens	1.26	Menard	1.35
Dimmit	1.28	Midland	1.24
Donley	1.26	Milam	1.41
Eastland	1.26	Mills	1.35
Edwards	1.26	Mitchell	1.26
Ellis	1.37	Montague	1.30
El Paso	1.16	Moore	1.24
Erath	1.31	Motley	1.26
Falls	1.39	Navarro	1.38
Fannin	1.30	Nolan	1.26
Fisher	1.26	Ochiltree	1.24
Floyd	1.26	Oldham	1.26
Foard	1.26	Palo Pinto	1.30
Gaines	1.26	Parker	1.34
Galveston	1.56	Parmer	1.26
Garza	1.26	Pecos	1.19
Gillespie	1.34	Potter	1.26
Glasscock	1.26	Presidio	1.17
Goliad	1.39	Randall	1.26
Gray	1.26	Real	1.31
Grayson	1.30	Reeves	1.19
Guadalupe	1.39	Refugio	1.37
		Roberts	1.25

TEXAS—Continued

County	Rate per bushel	County	Rate per bushel
Robertson	$1.39	Tom Green	$1.26
Rockwall	1.35	Travis	1.39
Runnels	1.30	Uvalde	1.31
San Saba	1.35	Van Zandt	1.35
Schleicher	1.24	Victoria	1.39
Scurry	1.26	Waller	1.53
Shackelford	1.26	Ward	1.21
Sherman	1.23	Wharton	1.51
Somervell	1.34	Wheeler	1.26
Stephens	1.30	Wichita	1.26
Sterling	1.26	Wilbarger	1.26
Stonewall	1.26	Williamson	1.39
Sutton	1.22	Wilson	1.37
Swisher	1.26	Wise	1.32
Tarrant	1.36	Yoakum	1.26
Taylor	1.28	Young	1.30
Terry	1.26	Zavala	1.28
Throckmorton	1.28		

UTAH

County	Rate per bushel	County	Rate per bushel
Beaver	$1.19	Piute	$0.98
Box Elder	1.16	Rich	1.08
Cache	1.16	Salt Lake	1.18
Carbon	.98	San Juan	.98
Daggett	.97	Sanpete	.98
Davis	1.18	Sevier	.98
Duchesne	1.05	Summit	1.17
Emery	.98	Tooele	1.18
Garfield	.98	Uintah	1.01
Grand	.98	Utah	1.18
Iron	1.17	Wasatch	1.05
Juab	1.18	Washington	1.17
Kane	.98	Wayne	.98
Millard	1.19	Weber	1.18
Morgan	1.17		

VERMONT

All counties	$1.36

VIRGINIA

County	Rate per bushel	County	Rate per bushel
Accomack	$1.37	Henrico	$1.37
Albermarle	1.36	Henry	1.35
Alleghany	1.34	Highland	1.34
Amelia	1.37	Isle of Wight	1.36
Amherst	1.36	James City	1.37
Appomattox	1.37	King and Queen	1.37
Arlington	1.36	King George	1.37
Augusta	1.36	King William	1.37
Bath	1.34	Lancaster	1.37
Bedford	1.36	Lee	1.35
Bland	1.34	Loudoun	1.36
Botetourt	1.35	Louisa	1.36
Brunswick	1.26	Lunenburg	1.37
Buchanan	1.34	Madison	1.36
Buckingham	1.37	Mathews	1.37
Campbell	1.36	Mecklenburg	1.36
Caroline	1.37	Middlesex	1.37
Carroll	1.35	Montgomery	1.34
Charles City	1.37	Nansemond	1.36
Charlotte	1.37	Nelson	1.36
Chesapeake	1.36	New Kent	1.37
Chesterfield	1.37	Newport News	1.37
Clarke	1.36	Northampton	1.37
Craig	1.34	Northumberland	1.37
Culpeper	1.36	Nottoway	1.37
Cumberland	1.37	Orange	1.36
Dickenson	1.34	Page	1.36
Dinwiddie	1.37	Patrick	1.35
Essex	1.37	Pittsylvania	1.36
Fairfax	1.36	Powhatan	1.37
Fauquier	1.36	Prince Edward	1.37
Floyd	1.35	Prince George	1.37
Fluvanna	1.36	Prince William	1.36
Franklin	1.35	Pulaski	1.35
Frederick	1.36	Rappahannock	1.36
Giles	1.34	Richmond	1.37
Gloucester	1.37	Roanoke	1.35
Goochland	1.37		
Grayson	1.35		
Greene	1.36		
Greensville	1.36		
Halifax	1.36		
Hampton	1.37		
Hanover	1.37		

VIRGINIA—Continued

County	Rate per bushel	County	Rate per bushel
Rockbridge	$1.36	Tazewell	$1.34
Rockingham	1.36	Virginia Beach	1.36
Russell	1.35	Warren	1.36
Scott	1.35	Washington	1.35
Shenandoah	1.36	Westmoreland	1.37
Smyth	1.35	Wise	1.35
Southampton	1.36	Wythe	1.35
Spotsylvania	1.37	York	1.37
Stafford	1.37		
Surry	1.36		
Sussex	1.36		

WASHINGTON

Adams	$1.25	Lewis	$1.24
Asotin	1.21	Lincoln	1.24
Benton	1.29	Mason	1.23
Chelan	1.26	Okanogan	1.24
Clallam	1.16	Pacific	1.23
Clark	1.31	Pend Oreille	1.13
Columbia	1.26	Pierce	1.30
Cowlitz	1.28	San Juan	1.26
Douglas	1.25	Skagit	1.26
Ferry	1.19	Skamania	1.32
Franklin	1.27	Snohomish	1.28
Garfield	1.24	Spokane	1.21
Grant	1.26	Stevens	1.16
Grays Harbor	1.23	Thurston	1.25
Island	1.26	Wahkiakum	1.28
Jefferson	1.17	Walla Walla	1.27
King	1.30	Whatcom	1.25
Kitsap	1.21	Whitman	1.22
Kittitas	1.32	Yakima	1.31
Klickitat	1.31		

WEST VIRGINIA

Barbour	$1.31	Mineral	$1.33
Berkeley	1.35	Mingo	1.30
Boone	1.30	Monongalia	1.29
Braxton	1.30	Monroe	1.33
Brooke	1.28	Morgan	1.34
Cabell	1.28	Nicholas	1.32
Calhoun	1.29	Ohio	1.28
Clay	1.30	Pendleton	1.34
Doddridge	1.28	Pleasants	1.27
Fayette	1.32	Pocahontas	1.34
Gilmer	1.29	Preston	1.31
Grant	1.33	Putnam	1.28
Greenbrier	1.34	Raleigh	1.31
Hampshire	1.34	Randolph	1.33
Hancock	1.28	Ritchie	1.28
Hardy	1.34	Roane	1.28
Harrison	1.30	Summers	1.34
Jackson	1.27	Taylor	1.31
Jefferson	1.36	Tucker	1.33
Kanawha	1.29	Tyler	1.27
Lewis	1.30	Upshur	1.31
Lincoln	1.29	Wayne	1.29
Logan	1.30	Webster	1.32
McDowell	1.32	Wetzel	1.28
Marion	1.29	Wirt	1.28
Marshall	1.28	Wood	1.27
Mason	1.28	Wyoming	1.31
Mercer	1.33		

WISCONSIN

Adams	$1.28	Forest	$1.31
Ashland	1.41	Grant	1.24
Barron	1.39	Green	1.30
Bayfield	1.35	Green Lake	1.27
Brown	1.26	Iowa	1.27
Buffalo	1.35	Iron	1.36
Burnett	1.43	Jackson	1.33
Calumet	1.27	Jefferson	1.30
Chippewa	1.39	Juneau	1.29
Clark	1.36	Kenosha	1.33
Columbia	1.28	Kewaunee	1.23
Crawford	1.29	La Crosse	1.31
Dane	1.29	Lafayette	1.27
Dodge	1.29	Langlade	1.27
Door	1.20	Lincoln	1.27
Douglas	1.44	Manitowoc	1.27
Dunn	1.39	Marathon	1.33
Eau Claire	1.36	Marinette	1.24
Florence	1.24	Marquette	1.27
Fond du Lac	1.28	Menominee	1.28

WISCONSIN—Continued

County	Rate per bushel	County	Rate per bushel
Milwaukee	$1.32	Sauk	$1.28
Monroe	1.30	Sawyer	1.37
Oconto	1.24	Shawano	1.28
Oneida	1.27	Sheboygan	1.29
Outagamie	1.26	Taylor	1.38
Ozaukee	1.31	Trempealeau	1.33
Pepin	1.36	Vernon	1.30
Pierce	1.38	Vilas	1.25
Polk	1.42	Walworth	1.32
Portage	1.33	Washburn	1.37
Price	1.38	Washington	1.31
Racine	1.32	Waukesha	1.31
Richland	1.27	Waupaca	1.28
Rock	1.32	Waushara	1.26
Rusk	1.40	Winnebago	1.27
St. Croix	1.39	Wood	1.36

WYOMING

Albany	$1.06	Natrona	$1.01
Big Horn	1.00	Niobrara	1.11
Campbell	1.07	Park	1.00
Carbon	1.00	Platte	1.11
Converse	1.07	Sheridan	1.05
Crook	1.10	Sublette	.95
Fremont	.97	Sweetwater	.95
Goshen	1.11	Teton	1.10
Hot Springs	.98	Uinta	1.00
Johnson	1.05	Washakie	.99
Laramie	1.11	Weston	1.10
Lincoln	1.01		

(c) *Premiums and discounts.* The basic support rate shall be adjusted as applicable by premiums and discounts as follows (all footnotes at end of paragraph):

(1) *Class premiums and discounts:*

	Cents per bushel
(i) *Premiums:*	
Hard Amber Durum (No. 3 or better) [1]	+5
(ii) *Discounts:*	
Durum	−5
Red Durum	−20
Mixed Wheat (mixtures of classes other than contrasting classes)	−2
Mixed Wheat (mixtures of contrasting classes)	−10

(2) *Grade premiums and discounts:*

(i) *Premium:*	
Heavy, No. 3 or better [1]	+2
(ii) *Discounts:*	
No. 2	−1
No. 3	−3
No. 4	−6
No. 5	−9

Sample on one or more of the factors test weight, total damage (with not more than 3 percent heat damage), foreign material, and total defects (with not more than 3 percent heat damage), apply a discount of 14 cents. Add 1 cent for each pound or fraction thereof that test weight is below 50 pounds (49 pounds for Hard Red Spring) and add 1 cent for each percent or fraction thereof that total defects are in excess of 21 percent. Total discount on these factors shall not exceed 70 cents per bushel.

Smut—degree basis:	
Light Smutty	−2
Smutty	−6
Garlic—degree basis:	
Light Garlicky	−5
Garlicky	−10

(3) *Protein premiums.* Applicable to grade No. 5 or better, Hard Red Winter, Hard Red Spring, and Hard White Wheat of the varieties Baart, Bluestem, and Burt.[1]

Protein content (percent)	Cents per bushel
12.0–12.4	+ 1½
12.5–12.9	+ 3
13.0–13.4	+ 4½
13.5–13.9	+ 6
14.0–14.4	+ 7½
14.5–14.9	+ 9
15.0–15.4	+10½
15.5–15.9	+12
16.0–16.4	+13½
16.5–16.9	+15
17.0–17.4	+16½
17.5 and above	+18

(4) Variety discount ..... −20

The following varieties referred to in these regulations as "undesirable varieties" are subject to the discount:

Hard Red Winter	Hard Red Spring	White	Soft Red Winter
Blue Jacket	Henry	Florence	Nured
Cache [2]	Kinney	Gaines [4]	
Purkof	Spinkcota	Rex	
Red Chief [3]			
Stafford			
Yogo			

(5) Weed control discount (where required by § 1421.74) 10

(6) Other factors: Amounts determined by CCC to represent market discounts for quality factors not specified above which affect the value of wheat, such as (but not limited to) moisture, weevily, ergoty, stones, musty, sour and heating. Such discounts will be established not later than the time delivery of wheat to CCC begins and will thereafter be adjusted from time to time as CCC determines appropriate to reflect changes in market conditions. Producers may obtain schedules of such factors and discounts at ASCS county offices.

NOTE: Premiums and discounts are cumulative except only one grade discount shall be applied.

(Sec. 4, 62 Stat. 1070, as amended; 15 U.S.C. 714b. Interpret or apply sec. 5, 62 Stat. 1072, secs. 107, 401, 63 Stat. 1051, 1054; 15 U.S.C. 714c, 7 U.S.C. 1441, 1421)

Effective date: Upon publication in the FEDERAL REGISTER.

Signed at Washington, D.C., on May 27, 1968.

E. A. JAENKE,
Acting Executive Vice President, Commodity Credit Corporation.

[F.R. Doc. 68-6498; Filed, June 4, 1968; 8:45 a.m.]

[CCC Grain Price Support Regs., 1968 Crop Rye Supp.]

PART 1421—GRAINS AND SIMILARLY HANDLED COMMODITIES

Subpart—1968-Crop Rye Loan and Purchase Program

Correction

In F.R. Doc. 68-6158 appearing at page 7663 in the issue of Friday, May 24, 1968,

[1] Not applicable to the undesirable varieties listed in subparagraph (4).
[2] Except in Idaho and Utah.
[3] Including white seeded Red Chief.
[4] When grown east of Continental Divide.

the following changes should be made in § 1421.2865(b):

1. Under the center heading "Illinois," the county now reading "Livingstone" should read "Livingston".

2. Under the center heading "Michigan," the figure opposite "Kent" County should read "1.06" instead of "1.02".

Title 14—AERONAUTICS AND SPACE

Chapter I—Federal Aviation Administration, Department of Transportation

[Airworthiness Docket No. 68-WE-10-AD, Amdt. 39-606]

PART 39—AIRWORTHINESS DIRECTIVES

Lockheed Models 188A and 188C Series Airplanes

There have been reports of cracks emanating from the nacelle fillet attach holes of the upper wing plank on Lockheed Model 188A and 188C Series airplanes that could affect the useful life of the wing planks. Since this condition is likely to exist or develop in other airplanes of the same type design, and unless controlled would continue to deteriorate, an Airworthiness Directive is being issued to require inspection of the wing plank in the vicinity of the fillet attach holes in the wing upper and lower surface on both sides of the four nacelles.

The 400-hour compliance time for the initial inspection has been established on the basis of safety considerations. This compliance time provides the lead time for operators to schedule and plan compliance with the AD with a minimum burden. To prescribe the initial inspection required by this AD under the usual notice and public procedures within the time the Federal Aviation Administration has determined is required in the interest of safety, would necessarily result in a reduction of compliance time for the initial inspection required by this AD.

This could possibly leave the operators insufficient time to schedule airplanes for compliance with the AD. Therefore, accomplishment of the initial inspection required by this AD within the time determined necessary makes strict compliance with the notice and public procedure provisions of the Administrative Procedure Act impracticable, and this amendment becomes effective 30 days after publication in the FEDERAL REGISTER. However, interested persons are invited to submit such written data, views, or arguments as they may desire regarding this AD. Communications should identify the docket number and be submitted in duplicate to the Federal Aviation Administration, Western Region, Attention: Regional Counsel, Airworthiness Rules Docket, Post Office Box 90007, Airport Station, Los Angeles, Calif. 90009. All communications received before the effective date will be considered by the Administrator, and the AD may be changed in the light of comments received. All comments will be available both before and after the effective date in the Rules Docket for examination by interested persons. Operators are urged to submit their comments as early as possible since it may not be possible to evaluate comments received near the effective date in sufficient time to amend the AD before it becomes effective.

The substance of this AD has been informally coordinated with the Airline Transport Association. Several operators objected to a proposed requirement that the required inspections be performed by visual means only. Accordingly, this AD provides that the operator at his option may employ either visual inspection methods or other Federal Aviation Administration approved inspection methods.

In consideration of the foregoing, and pursuant to the authority delegated to me by the Administrator (14 CFR § 11.81), § 39.13 of Part 39 of the Federal Aviation Regulations is amended by adding the following new Airworthiness Directive:

LOCKHEED. Model 188A and 188C Series airplanes.

Compliance required as indicated.

To defect fatigue cracks in the upper and lower planks at the fillet attachment holes, accomplish the following:

(a) Within the next 400 hours' time in service after the effective date of this AD, unless already already accomplished within the last 1,000 hours' time in service, and thereafter at intervals not to exceed 1,400 hours' time in service from the last inspection, inspect visually or by other methods approved by the Chief, Aircraft Engineering Division, FAA Western Region the upper and lower wing planks in the vicinity of the fillet attachment holes on both sides of the four nacelles in accordance with paragraph (2)(B) of Lockheed Service Bulletin No. 88/SB-649 dated February 29, 1968 (or later FAA approved revision), and, if cracks are found, repair before further flight in accordance with section (2)(C) or (2)(D) of Lockheed Service Bulletin No. 88/SB-649 dated February 29, 1968 (or later FAA approved revision).

NOTE: The airplane may be flown to a base where the repairs can be performed pursuant to a special flight permit issued in accordance with FAR 21.197.

(b) The repetitive inspection required by (a) must be continued if repairs are accomplished only in accordance with sections (2)(C)(1) through (2)(C)(18) of Lockheed Service Bulletin No. 88/SB-649, but may be discontinued upon completion of the preventive repairs described in sections (2)(C)(19) through (2)(C)(22) of Lockheed Service Bulletin No. 88/SB-649 dated February 29, 1968 (or later FAA approved revision).

(c) Upon request of the operator, an FAA maintenance inspector, subject to prior approval of the Chief, Aircraft Engineering Division, FAA Western Region, may adjust the repetitive inspection intervals specified in this AD to permit compliance at an established inspection period of the operator if the request contains substantiating data to justify the increase for that operator.

This amendment becomes effective July 5, 1968.

(Secs. 313(a), 601, 603, Federal Aviation Act of 1958; 49 U.S.C. 1354(a), 1421, 1423)

Issued in Los Angeles, Calif., on May 27, 1968.

ARVIN O. BASNIGHT,
Director, FAA Western Region.

[F.R. Doc. 68-6611; Filed, June 4, 1968; 8:48 a.m.]

[Docket No 8776, Amdt. 39-607]

PART 39—AIRWORTHINESS DIRECTIVES

SIAI Marchetti S.205/22R Airplanes Serial Nos. 213 Through 4-125

A proposal to amend Part 39 of the Federal Aviation Regulations to include an airworthiness directive (AD) requiring installation of sealing plates and fireproof sealant on SIAI Marchetti S.205/22R airplanes was published in 33 F.R. 4831.

Interested persons have been afforded an opportunity to participate in the making of the amendment. No objections were received.

In consideration of the foregoing, and pursuant to the authority delegated to me by the Administrator (14 CFR 11.89), § 39.13 of Part 39 of the Federal Aviation Regulations is amended by adding the following new airworthiness directive:

SIAI MARCHETTI. Applies to Model S.205/22R airplanes, Serial Nos. 213 through 4-125.

Compliance required as indicated.

To avoid the possiblity of flames or harmful gases passing from the engine compartment into the cockpit or other parts of the airplane, within the next 200 hours' time in service after the effective date of this AD, unless already accomplished, incorporate sealing plates and apply fireproof sealant "Stabond HT 4" or an FAA-approved equivalent at the firewall and nose wheel well, in accordance with SIAI-Marchetti Service Bulletin No. 205B19, dated January 13, 1968, or later RAI-approved issue, or FAA-approved equivalent.

This amendment becomes effective July 5, 1968.

(Secs. 313(a), 601, 603, Federal Aviation Act of 1958; 49 U.S.C. 1354(a), 1421, 1423)

Issued in Washington, D.C., on May 28, 1968.

R. S. SLIFF,
Acting Director, Flight Standards Service.

[F.R. Doc. 68-6592; Filed, June 4, 1968; 8:47 a.m.]

Title 16—COMMERCIAL PRACTICES

Chapter I—Federal Trade Commission

PART 242—GUIDE AGAINST DECEPTIVE USE OF THE WORD "FREE" IN CONNECTION WITH THE SALE OF PHOTOGRAPHIC FILM AND FILM PROCESSING SERVICE

Statement by the Commission. The following Guide has been adopted by the Federal Trade Commission to encourage

voluntary and uniform compliance with the law by businessmen engaged in the sale of photographic film and film processing service. Adherence to the Guide will insure that the consuming public is not deceived by illusions of a bargain in the guise of an offer of "free" film, made in connection with an alleged charge for developing and processing service.

While the Guide is interpretive of laws administered by the Commission and thus is advisory in nature, proceedings to enforce the requirements of law as explained in the Guide may be brought under the Federal Trade Commission Act (15 U.S.C. secs. 41–58). Briefly stated, the Act makes it illegal for one to engage in "unfair methods of competition in commerce and unfair or deceptive acts or practices in commerce."

The Guide was published in the FEDERAL REGISTER on June 5, 1968, and becomes effective September 3, 1968.

Inquiries and requests for copies of the Guide should be directed to the Bureau of Industry Guidance, Federal Trade Commission, Washington, D.C. 20580.

§ 242.1 The guide.

(a) A common form of bargain advertising used to promote the sale of photographic film processing service is the offer of a roll of film, represented as being free to consumers who purchase a particular advertiser's service.

(b) Film processors should avoid representing film as "free" when their quoted price for processing is not their regular price for such service, or, when the price charged for processing in connection with the "free" film representation is in excess of the price regularly charged by them for processing alone. A regular price is the price at which an article or service is openly and actively sold by the advertiser to the public on a regular basis for a reasonably substantial period of time in the recent and regular course of business. A price which (1) is not the advertiser's actual selling price, (2) is a price which was not used in the recent past but at some remote period in the past, or (3) is a price which has been used only for a short period of time, is not a regular price. Consequently, use of any price or amount, other than the advertiser's own bona fide regular price, in connection with a "free" film representation is deceptive.

(c) "Free" film offers are understood by consumers to mean that the price charged by the advertiser is for processing alone and has not been raised to include any payment for the film. In other words, they understand that the film, in fact, is a gift to the consumer given by the advertiser in return for the processing business he receives. In such circumstances, if any portion of the represented price charged for processing includes any payment for the film to the processor, the "free" film offer is deceptive and consumers are misled.

(d) Where a processor has not established a regular price for processing service by itself, he has no basis, except in the case of introductory offers, upon which to make a "free" film representation. Likewise, a processor may not justify "free" film offers, whether advertised with or without qualification, on the ground that his price for processing and film is equal to or less than the price charged by local developers for processing alone, in a given trade area. Only the processor's own regular processing price may be used as a basis for the "free" film representation.

(e) Continuous free film offers or the repetition of such offers with great frequency should be avoided. Continuous or frequent offers of free film made in connection with the sale of processing service are false and misleading since the processor's price for his service alone will, by lapse of time, become his regular price for processing service and film in combination. The film, in such circumstances, would therefore no longer be "free".

(f) Introductory (temporary) offers of "free" film should not be advertised where processors do not, in good faith, expect to discontinue the offer after a limited time and commence selling processing service separately at the same price at which the offer of such service, together with the "free" film, was made.

(g) The guide does not preclude the use of nondeceptive "combination" offers in which film and processing are offered for sale as a single unit at a single stated price, and where no representation is made that the price is to be paid for one item and the other is "free". Similarly, film processors are not precluded from setting a price for processing which also includes furnishing the purchaser with a replacement roll of film at one inclusive price—again, where no representation is made that the latter is "free".

NOTE: On December 1, 1953, the Commission approved a trade practice rule on use of the word "Free". The provisions of the guide set forth above are advisory in nature and are not to be construed as replacing or modifying any of the provisions of the aforementioned trade practice rule.

(38 Stat. 717, as amended; 15 U.S.C. 41–58)

Adopted: May 9, 1968.

By direction of the Commission.

[SEAL] JOSEPH W. SHEA, *Secretary.*

[F.R. Doc. 68-6608; Filed, June 4, 1968; 8:48 a.m.]

Title 19—CUSTOMS DUTIES

Chapter I—Bureau of Customs, Department of the Treasury

[T.D. 68-148]

ANTIDUMPING REGULATIONS

Correction

In F.R. Doc. 68-6596 appearing at page 8243 of the issue for Saturday, June 1, 1968, the approval at the end should read: "Approved: May 29, 1968, JOSEPH M. BOWMAN, *Assistant Secretary of the Treasury.*"

Title 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

SUBCHAPTER B—FOOD AND FOOD PRODUCTS

PART 27—CANNED FRUITS AND FRUIT JUICES

Canned Pineapple Juice; Confirmation of Effective Date of Order Amending Standard Regarding Vitamin C

In the matter of amending the definition and standard of identity for canned pineapple juice (21 CFR 27.54) to provide for the optional addition of vitamin C to the food:

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (secs. 401, 701, 52 Stat. 1046, 1055, as amended 70 Stat. 919, 72 Stat. 948; 21 U.S.C. 341, 371) and in accordance with the authority delegated to the Commissioner of Food and Drugs (21 CFR 2.120), notice is given that no objections were filed to the order in the above-identified matter published in the FEDERAL REGISTER of April 12, 1968 (33 F.R. 5678). Accordingly, the amendment promulgated by that order became effective May 13, 1968.

(Secs. 401, 701, 52 Stat. 1046, 1055, as amended 70 Stat. 919, 72 Stat. 948; 21 U.S.C. 341, 371)

Dated: May 24, 1968.

R. E. DUGGAN, *Acting Associate Commissioner for Compliance.*

[F.R. Doc. 68-6607; Filed, June 4, 1968; 8:48 a.m.]

PART 120—TOLERANCES AND EXEMPTIONS FROM TOLERANCES FOR PESTICIDE CHEMICALS IN OR ON RAW AGRICULTURAL COMMODITIES

2-Chloro-4,6-Bis(Isopropylamino)-s-Triazine

A petition (PP 8F0687) was filed with the Food and Drug Administration by the Geigy Chemical Corp., Ardsley, N.Y. 10502, proposing the establishment of tolerances for negligible residues of the herbicide 2-chloro-4,6-bis(isopropylamino)-*s*-triazine in or on the raw agricultural commodities sorghum grain, forage, and fodder at 0.25 part per million.

The Secretary of Agriculture has certified that this pesticide chemical is useful for the purposes for which the tolerances are being established.

Based on consideration given the data submitted in the petition, and other relevant material, the Commissioner of Food and Drugs concludes that the tolerances established by this order will protect the public health. Therefore, by virtue of the authority vested in the Secretary of Health, Education, and Welfare by the Federal Food, Drug, and Cosmetic Act (sec. 408(d)(2), 68 Stat. 512; 21 U.S.C.

346a(d)(2)) and delegated to the Commissioner (21 CFR 2.120), Part 120 is amended by adding to Subpart C the following new section:

§ 120.243 2-Chloro-4,6-bis(isopropylamino)-*s*-triazine; tolerances for residues.

A tolerance of 0.25 part per million is established for negligible residues of the herbicide 2-chloro-4,6-bis(isopropylamino)-*s*-triazine in or in the raw agricultural commodities sorghum grain, forage, and fodder.

Any person who will be adversely affected by the foregoing order may at any time within 30 days from the date of its publication in the FEDERAL REGISTER file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington, D.C. 20201, written objections thereto, preferably in quintuplicate. Objections shall show wherein the person filing will be adversely affected by the order and specify with particularity the provisions of the order deemed objectionable and the grounds for the objections. If a hearing is requested, the objections must state the issues for the hearing. A hearing will be granted if the objections are supported by grounds legally sufficient to justify the relief sought. Objections may be accompanied by a memorandum or brief in support thereof.

Effective date. This order shall become effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 408(d)(2), 68 Stat. 512; 21 U.S.C. 346a(d)(2))

Dated: May 24, 1968.

R. E. DUGGAN,
Acting Associate Commissioner for Compliance.

[F.R. Doc. 68-6600; Filed, June 4, 1968; 8:47 a.m.]

PART 121—FOOD ADDITIVES

Subpart F—Food Additives Resulting From Contact With Containers or Equipment and Food Additives Otherwise Affecting Food

RUBBER ARTICLES INTENDED FOR REPEATED USE

The Commissioner of Food and Drugs, having evaluated the data in a petition (FAP 6B2030) filed by E. I. du Pont de Nemours & Co., Inc., 1007 Market Street, Wilmington, Del. 19898, and other relevant material, has concluded that the food additive regulations should be amended to provide for the use of additional optional substances (identified below) in the formulation of rubber articles intended for repeated food-contact use.

Therefore, pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1)) and under the authority delegated to the Commissioner (21 CFR 2.120), § 121.2562(c)(4)(ix) is amended by alphabetically inserting in the list two new items, as follows:

§ 121.2562 Rubber articles intended for repeated use.

* * * * *

(c) * * *

(4) * * *

(ix) *Miscellaneous (total not to exceed 5 percent by weight of rubber product).*

* * * * *

Diethyl xanthogen disulfide.

* * * * *

Tridecyl mercaptan.

* * * * *

Any person who will be adversely affected by the foregoing order may at any time within 30 days from the date of its publication in the FEDERAL REGISTER file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington, D.C. 20201, written objections thereto, preferably in quintuplicate. Objections shall show wherein the person filing will be adversely affected by the order and specify with particularity the provisions of the order deemed objectionable and the grounds for the objections. If a hearing is requested, the objections must state the issues for the hearing. A hearing will be granted if the objections are supported by grounds legally sufficient to justify the relief sought. Objections may be accompanied by a memorandum or brief in support thereof.

Effective date. This order shall become effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1))

Dated: May 23, 1968.

R. E. DUGGAN,
Acting Associate Commissioner for Compliance.

[F.R. Doc. 68-6601; Filed, June 4, 1968; 8:47 a.m.]

SUBCHAPTER C—DRUGS

PART 130—NEW DRUGS

New Drugs Exempted for Investigational Use in Human Beings

In the FEDERAL REGISTER of December 12, 1967 (32 F.R. 17671), a notice was published proposing a revision of § 130.3 of the new drug regulations to provide hearing procedures for investigators charged with submitting false data or failing to abide by commitments and for sponsors in connection with termination of their exemptions to ship new drugs for investigational use. The comments received in response to the proposal have been considered and the Commissioner of Food and Drugs concludes that the proposal should be adopted as set forth below.

Therefore, pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (secs. 505(i), 701(a), 52 Stat. 1053, as amended, 1055; 21 U.S.C. 355(i) 371(a)) and under the authority delegated to the Commissioner of Food and Drugs (21 CFR 2.120), § 130.3 is amended by revising paragraph (c) and the closing text of paragraph (d) following subparagraph (11) to read as follows:

§ 130.3 New drugs for investigational use in human beings; exemptions from section 505(a).

* * * * *

(c) (1) Whenever the Food and Drug Administration has information indicating that an investigator has repeatedly or deliberately failed to comply with the conditions of these exempting regulations outlined in Form FD-1572 or FD-1573 (set forth in paragraph (a)(12) and (13) of this section), or has submitted to the sponsor of the investigation false information in his Form FD-1572 or FD-1573 or in any required report, the Director of the Bureau of Medicine will furnish the investigator written notice of the matter complained of in general terms and offer him an opportunity to explain the matter in an informal conference and/or in writing. If an explanation is offered but not accepted by the Bureau of Medicine, the Commissioner will provide the investigator an opportunity for an informal hearing on the question of whether the investigator is entitled to receive investigational-use drugs, if the hearing is requested within 10 days after receipt of notification that the explanation is not acceptable.

(2) After evaluating all available information, including any explanation and assurance presented by the investigator, if the Commissioner determines that the investigator has repeatedly or deliberately failed to comply with the conditions of the exempting regulations in this section or has repeatedly or deliberately submitted false information to the sponsor of an investigation and has failed to furnish adequate assurance that the conditions of the exemption will be met, the Commissioner will notify the investigator and the sponsor of any investigation in which he has been named as a participant that the investigator is not entitled to receive investigational-use drugs with a statement of the basis for such determination.

(3) Each "Notice of Claimed Investigational Exemption for a New Drug" (Form FD-1571 set forth in paragraph (a)(2) of this section) and each approved new-drug application containing data reported by an investigator who has been determined to be ineligible to receive investigational-use drugs will be examined to determine whether he has submitted unreliable data that are essential to the continuation of the investigation or essential to the approval of any new-drug application.

(4) If the Commissioner determines after the unreliable data submitted by the investigator are eliminated from consideration that the data remaining are inadequate to support a conclusion that it is reasonably safe to continue the investigation, he will notify the sponsor and provide him with an opportunity for a conference and an informal hearing in accordance with paragraph (d) of this section. If an imminent hazard to the

public health exists, however, he shall terminate the exemption forthwith and notify the sponsor of the termination. In such event the Commissioner, on request, will afford the sponsor an opportunity for an informal hearing on the question of whether the exemption should be reinstated.

(5) If the Commissioner determines after the unreliable data submitted by the investigator are eliminated from consideration that the data remaining are such that a new-drug application would not have been approved, he will proceed to withdraw approval of the application in accordance with section 505(e) of the act.

(6) An investigator who has been determined to be ineligible may be reinstated as eligible to receive investigational-use drugs when the Commissioner determines that he has presented adequate assurance that he will employ such drugs solely in compliance with the exempting regulations in this section for investigational-use drugs.

(d) * * *

he shall notify the sponsor and invite his immediate correction or explanation. A conference will be arranged with the Bureau of Medicine if requested. If the Bureau of Medicine does not accept the explanation and/or the correction submitted by the sponsor, the Commissioner will provide the sponsor an opportunity for an informal hearing on the question of whether his exemption should be terminated, if the hearing is requested within 10 days after receipt of notification that the explanation or correction is not acceptable. After evaluating all the available information including any explanation and/or correction submitted by the sponsor, if the Commissioner determines that the exemption should be terminated he shall notify the sponsor of the termination of the exemption and the sponsor shall recall unused supplies of the drug. If at any time the Commissioner concludes that continuation of the investigation presents an imminent hazard to the public health, he shall terminate the exemption forthwith and notify the sponsor of the termination. The Commissioner will inform the sponsor that the exemption is subject to reinstatement on the basis of additional submissions that eliminate such hazard(s) and will afford the sponsor an opportunity for an informal hearing, on request, on the question of whether the exemption should be reinstated. The sponsor shall recall the unused supplies of the drug upon notification of the termination.

Effective date. This order shall be effective upon publication in the FEDERAL REGISTER.

(Secs. 505(i), 701(a), 52 Stat. 1053, as amended, 1055; 21 U.S.C. 355(i), 371(a))

Dated: May 27, 1968.

JAMES L. GODDARD,
Commissioner of Food and Drugs.

[F.R. Doc. 68-6602; Filed, June 4, 1968; 8:47 a.m.]

Title 28—JUDICIAL ADMINISTRATION

Chapter I—Department of Justice

[Order 395-68]

PART 0—ORGANIZATION OF THE DEPARTMENT OF JUSTICE

Subpart D—Office of the Solicitor General

PETITIONS FOR THE ISSUANCE OF EXTRAORDINARY WRITS

Under and by virtue of the authority vested in me by sections 509 and 510 of Title 28 and section 301 of Title 5 of the United States Code, paragraph (b) of § 0.20 of Subpart D of Part 0 of Chapter I of Title 28, Code of Federal Regulations, is amended to read as follows:

§ 0.20 General functions.

* * * * *

(b) Authorizing or declining to authorize appeals by the Government to all appellate courts (including petitions for rehearing en banc) and petitions to such courts for the issuance of extraordinary writs.

* * * * *

Dated: May 28, 1968.

RAMSEY CLARK,
Attorney General.

[F.R. Doc. 68-6588; Filed, June 4, 1968; 8:46 a.m.]

Title 31—MONEY AND FINANCE: TREASURY

Chapter V—Office of Foreign Assets Control, Department of the Treasury

PART 500—FOREIGN ASSETS CONTROL REGULATIONS

Quotas for Imports of Certain Commodities From Other Countries

Section 500.204, Appendix, item (101) is being amended to add to the list of commodities set forth therein, cotton manufactures from the U.S.S.R. As amended, item (101) reads as follows:

(101) *Quotas for imports of certain commodities from other countries.* Under certain limited circumstances, quotas have been established for the importation of certain commodities under annual limitations set by the amount determined as currently available for export.

Licenses are issued for:

Cotton manufactures from Czechoslovakia, Hungary, Poland, Rumania, and the U.S.S.R.
Dried eggs from Argentina, Poland, and South Africa.
Feathers, Asiatic, from Japan and Malaysia.
Firecrackers from Macao.
Lotus seeds from Thailand.
Lychees from Mexico.
Mung beans from Peru and Thailand.
Silk, raw and waste, from Bulgaria.
Tung oil from Malawi.
Vegetables, fresh, Chinese type, from Mexico.
Walnuts from India, Pakistan, Rumania, and Yugoslavia.

[SEAL] MARGARET W. SCHWARTZ,
Director,
Foreign Assets Control.

[F.R. Doc. 68-6612; Filed, June 4, 1968; 8:48 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

SUBCHAPTER B—LAND TENURE MANAGEMENT (2000)

[Circular No. 2242]

PART 2230—SPECIAL USES

Subpart 2234—Rights-of-Way

APPLICATIONS AND GRANTS

This amendment provides for the use of map stock other than tracing linen for right-of-way maps.

It is the policy of this Department to give advance notice and invite public participation in the rule making process, but because this amendment is beneficial to applicants and imposes no new requirement on them, proposed rule making has been deemed unnecessary. This amendment shall be effective upon publication in the FEDERAL REGISTER.

1. Introductory paragraph (d)(1) of § 2234.1-2 is amended to read as follows:

§ 2234.1-2 Procedures.

* * * * *

(d) *Documents which must accompany application*—(1) *Maps.* Each application, other than a reservoir declaratory statement under § 2234.3-2(b)(1), or an appropriation for Federal-aid highway purposes under Title 23, United States Code, section 317, must be accompanied by a map prepared on tracing linen, or on tracing paper having a 100 percent rag content, and three or, in the case of electric transmission lines, five print copies thereof, showing the survey of the right-of-way, properly located with respect to the public land surveys so that said right-of-way may be accurately located on the ground by any competent engineer or land surveyor. The map should comply with the following requirements:

* * * * *

2. Paragraph (b)(1)(a) of § 2234.2-4 is amended to read as follows:

§ 2234.2-4 Under Title 23, United States Code.

* * * * *

(b) *Application; grants.* (1)(*a*) Except where an application involves lands wholly within an Indian reservation, applications for rights-of-way and material sites under Title 23, United States Code, for lands under the jurisdiction of the Department of the Interior, together with four copies of a durable and legible map shall be filed by the appropriate

State highway department in the manner prescribed by § 2234.1–2(a). Maps should accurately describe the land or interest in land desired, showing the survey of the right-of-way, properly located with respect to the public land surveys so that said right-of-way may be accurately located on the ground by any competent engineer or land surveyor. The map should comply with the requirements of § 2234.1–2(d)(1), paragraphs (i) through (viii). Applications for lands wholly within an Indian reservation shall be filed in the office of the superintendent of the Bureau of Indian Affairs agency which has jurisdiction over the lands, or for lands for which there is no agency, in the office of the Area Director who has jurisdiction over the lands. Applications for lands outside of the jurisdiction of the Department of the Interior shall be filed pursuant to the rules or regulations of the Department or agency having jurisdiction over the lands.

* * * * *

DAVID S. BLACK,
Acting Secretary of the Interior.

MAY 29, 1968.

[F.R. Doc. 68–6629; Filed, June 4, 1968; 8:50 a.m.]

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4427]

[Arizona 734, etc.]

ARIZONA

Revocation of Withdrawals for Reclamation Projects, and for National Forest Administrative Site and Roadside Zones

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), and by virtue of the authority contained in section 3 of the act of June 17, 1902 (32 Stat. 388; 43 U.S.C. 416), as amended and supplemented, it is ordered as follows:

1. The departmental orders of January 31, 1903, September 8, 1903, and February 19, 1929, the order of the Bureau of Reclamation dated August 26, 1946, concurred in by the Bureau of Land Management on September 5, 1946, and any other order or orders, withdrawing lands for reclamation purposes are hereby revoked so far as they affect the following described lands:

(Arizona 734; 1530)

GILA AND SALT RIVER MERIDIAN

T. 3 N., R. 22 W.,
Sec. 11, lot 5 (patented) (part of former lot 3).
T. 1 N., R. 3 E.,
Sec. 13, lot 1 (patented).

2. Public Land Orders No. 1556 of November 19, 1957, No. 3152 of July 30, 1963, as amended by Public Land Order No. 3584 of March 31, 1965, No. 3147 of July 30, 1963, and No. 3965 of March 30, 1966, withdrawing national forest lands for administrative sites, recreation areas, and roadside zones, are hereby revoked so far as they affect the following described lands:

(ARIZONA 033067–A)

GILA AND SALT RIVER MERIDIAN

TONTO NATIONAL FOREST

PLO No. 3965—Ferndell Administrative Site

T. 2 S., R. 15 E.,
Sec. 4, NW¼SW¼;
Sec. 5, E½NE¼SE¼.

(Arizona 04756–A; 09390–A–B; 09391–A–B)

GILA AND SALT RIVER MERIDIAN

A strip of land 300 feet on each side of the centerline of the following roads through the subdivisions listed below:

PRESCOTT NATIONAL FOREST

PLO No. 1556—Senator Highway (Forest Highway No. 52) Roadside Zone

T. 13 N., R. 2 W.,
Sec. 26, lot 29.

COCONINO NATIONAL FOREST

PLO No. 3152—U.S. Highway 89–A Roadside Zone

T. 17 N., R. 6 E.,
Sec. 7, lots 6 and 7 (formerly parts of lots 3 and 4), S½NW¼SE¼, S½NE¼SW¼, and N½SE¼SW¼ (patented).

PLO No. 3152—U.S. Highway 66—Roadside Zone

T. 21 N., R. 6 E.,
Sec. 24, NW¼NE¼.

KAIBAB NATIONAL FOREST

PLO No. 3147—Bill Williams Mountain Road—Roadside Zone

T. 21 N., R. 2 E.,
Sec. 22, N½N½NW¼ (patented).

PLO No. 3147—U.S. Highway 66—Roadside Zones

T. 22 N., R. 2 E.,
Sec. 31, SW¼NE¼, S½ lot 12.
T. 22 N., R. 3 E.,
Sec. 25, N½NE¼, NE¼NW¼.
T. 22 N., R. 4 E.,
Sec. 26, Lots 5 and 6;
Sec. 27, Lots 5, 6, 7 and 13;
Sec. 28, W½E½NE¼, W½NE¼, NW¼;
Sec. 29, S½N½;
Sec. 30, Lots 1 and 2, NE¼, E½NW¼.

The areas described, including the national forest lands and patented lands, aggregate 594.71 acres in Coconino, Gila, Maricopa, Yavapai, and Yuma Counties, of which 141.22 acres are nonpublic lands.

3. At 10 a.m. on July 4, 1968, the national forest lands shall be open to such forms of disposition as may by law be made of such lands.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MAY 29, 1968.

[F.R. Doc. 68–6574; Filed, June 4, 1968; 8:46 a.m.]

[Public Land Order 4428]

[Sacramento 927]

CALIFORNIA

Withdrawal for National Forest Recreation Area

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Subject to valid existing rights, the following described national forest lands are hereby withdrawn from appropriation under the mining laws (30 U.S.C., Ch. 2), but not from leasing under the mineral leasing laws, in aid of programs of the Department of Agriculture:

MOUNT DIABLO MERIDIAN

PLUMAS NATIONAL FOREST

T. 22 N., R. 11 E.,
Sec. 14, N½NE¼ and NE¼NW¼.

The areas described aggregate approximately 120 acres in Plumas County.

2. The withdrawal made by this order does not alter the applicability of those public land laws governing the use of the national forest lands under lease, license, or permit, or governing the disposal of their mineral or vegetative resources other than under the mining laws.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MAY 29, 1968.

[F.R. Doc. 68–6575; Filed, June 4, 1968; 8:46 a.m.]

[Public Land Order 4429]

[Colorado 1861]

COLORADO

Revocation of Reclamation Project Withdrawal

By virtue of the authority contained in section 3 of the act of June 17, 1902 (32 Stat. 388; 43 U.S.C. 416), as amended and supplemented, it is ordered as follows:

1. The order of the Bureau of Reclamation dated September 2, 1947, concurred in by the Bureau of Land Management on September 19, 1947, withdrawing the following described lands for the San Luis Valley Project, is hereby revoked:

NEW MEXICO PRINCIPAL MERIDIAN

T. 43 N., R. 3 W.,
Secs. 24 to 28, inclusive, and 33 to 36, inclusive.
T. 39 N., R. 4 W., unsurveyed,
Secs. 5 to 9, inclusive, and 13 to 29, inclusive.
T. 40 N., R. 4 W.,
Secs. 15, 21, 22, 28, 29, 31, 32, and 33.
T. 39 N., R. 5 W., unsurveyed,
Secs. 12, 13, and 14.

The areas described aggregate 28,800 acres in the Gunnison, San Juan, and Rio Grande National Forests in Hinsdale County.

2. At 10 a.m. on July 4, 1968, the lands shall be open to such forms of disposition as may by law be made of national forest lands.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MAY 29, 1968.

[F.R. Doc. 68–6576; Filed, June 4, 1968; 8:46 a.m.]

[Public Land Order 4430]

[Riverside 26]

CALIFORNIA

Elimination of Lands From Havasu Lake National Wildlife Refuge

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

Executive Order No. 8647 of January 22, 1941, establishing the Havasu Lake National Wildlife Refuge, is hereby revoked so far as it affects the following described lands:

SAN BERNARDINO MERIDIAN

T. 7 N., R. 24 E.,
Sec. 5, SE¼SW¼.

The tract described contains 40 acres of acquired lands of the Bureau of Reclamation.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MAY 29, 1968.

[F.R. Doc. 68-6577; Filed, June 4, 1968; 8:46 a.m.]

[Public Land Order 4431]

[Montana 6496]

MONTANA

Partial Revocation of Executive Order No. 1032

By virtue of the authority vested in the President and pursuant to Executive Order 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

Executive Order No. 1032 of February 25, 1909, so far as it withdrew the following described lands as the Willow Creek Reservation, the name of which has been changed to Willow Creek National Wildlife Refuge, is hereby revoked:

PRINCIPAL MERIDIAN

T. 21 N., R. 6 W.,
Sec. 18, lot 4;
Sec. 19, lots 1 to 4, inclusive, SW¼NE¼, SE¼NW¼, E½SW¼, and W½SE¼;
Sec. 30, lots 1 and 2, NW¼NE¼, NE¼NW¼, and SE¼NW¼.
T. 21 N., R. 7 W.,
Sec. 13, S½S½;
Sec. 14, NW¼NE¼, S½NE¼, E½NW¼, E½SW¼, and SE¼;
Sec. 23, NE¼, NE¼NW¼, S½NW¼, N½SW¼, SE¼SW¼, and SE¼;
Sec. 24;
Sec. 25, N½ and NW¼SW¼;
Sec. 26, NE¼, N½SE¼, S½NW¼, N½SW¼.

The areas described aggregate approximately 3,118.85 acres in Lewis and Clark County. The lands remain withdrawn for reclamation purposes.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MAY 29, 1968.

[F.R. Doc. 68-6578; Filed, June 4, 1968; 8:46 a.m.]

[Public Land Order 4432]

[New Mexico 5244]

NEW MEXICO

Partial Revocation of Public Water Reserve

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. The Executive Order of April 17, 1926, creating Public Water Reserve No. 107 is hereby revoked so far as it affects the following described land:

NEW MEXICO PRINCIPAL MERIDIAN

T. 11 S., R. 21 E.,
Sec. 12, SW¼NE¼.

The area described contains 40 acres in Chaves County.

The land is located 20 miles west of Roswell, N. Mex. The terrain is moderately rolling to rolling in nature; the soil is a thin rocky, sandy loam. Vegetation is comprised of a fair turf of native grasses with some cholla, snakeweed and scattered mesquite.

2. At 10 a.m. on July 4, 1968, the land shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on July 4, 1968, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. The land will be open to location for nonmetalliferous minerals at 10 a.m. on July 4, 1968. It has been open to applications and offers under the mineral leasing laws and to location under the U.S. mining laws for metalliferous minerals.

The State of New Mexico has waived the preference right of application granted to certain states by R.S. 2276, as amended (43 U.S.C. 852).

Inquiries concerning the land should be addressed to the Manager, Land Office, Bureau of Land Management, Santa Fe, New Mexico.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MAY 29, 1968.

[F.R. Doc. 68-6579; Filed, June 4, 1968; 8:46 a.m.]

[Public Land Order 4433]

[ES-3546]

MICHIGAN

Transfer of Jurisdiction Over Oil and Gas Deposits

Whereas, the hereinafter described lands to which title has been acquired by the United States, and which comprise the Army Reserve Center Site at Marine City, Mich., are reported to be subject to drainage of their oil and gas deposits by wells on adjacent lands; and

Whereas, it is necessary in the public interest that such protective action be taken as will prevent loss to the United States by reason of such drainage or threatened drainage; and

Whereas, in order to facilitate such action, it is considered advisable that jurisdiction over the oil and gas deposits in such acquired lands be transferred from the Department of the Army to the Department of the Interior, in which transfer the Secretary of the Army concurs.

Now, therefore, by virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. The jurisdiction over the oil and gas deposits owned by the United States in the following described lands is hereby transferred from the Department of the Army to the Department of the Interior:

MICHIGAN MERIDIAN

T. 3 N., R. 16 E.,
Sec. 16, in the W½NE¼NW¼, a tract of land containing approximately 18.89 acres, and more particularly described as follows:

Beginning at a point on the north line of sec. 16, being S. 89°37'48" E., 1,344.35 feet from the northwest corner of sec. 16, thence S. 89°37'48" E., along the north line of sec. 16, 620.02 feet to a point, said point being N. 89°37'48" W., 724.33 feet from the north quarter corner of sec. 16, thence S. 0°02'14" E., 1,321.75 feet to a point; thence S. 89°49'-22" W., 1,327.67 feet to the point of beginning.

2. The Secretary of the Interior shall take such action as may be necessary to protect the United States from loss on account of the drainage or threatened drainage of oil and gas from such lands.

3. The jurisdiction of the Department of the Interior over such deposits shall be limited only by the primary jurisdiction of the Department of the Army over the lands for military purposes.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MAY 29, 1968.

[F.R. Doc. 68-6580; Filed, June 4, 1968; 8:46 a.m.]

Title 49—TRANSPORTATION

Subtitle A—Office of the Secretary of Transportation

[OST Docket No. 12; Amdt. 91-1]

PART 91—AIRCRAFT LOAN GUARANTEE PROGRAM

Revocation of Part

Effective June 13, 1968, the authority of the Assistant Secretary for Policy Development to carry out the functions, powers, and duties of the Secretary of Transportation with respect to the Act of September 7, 1957, as amended (49 U.S.C. 1324 (note)) and section 6(a)(3)(A) of the Department of Transportation Act, 49 U.S.C. 1655(a)(3)(A) relating to guarantees of private loans for the

purchase of aircraft, was revoked and the authority to carry out those functions, powers, and duties was delegated to the Administrator of the Federal Aviation Administration (49 CFR 1.4(b)(4)). For this reason, Part 91 of the Regulations of the Office of the Secretary "Aircraft Loan Guarantee Program" is no longer necessary and is being revoked and replaced by an appropriate regulation issued by the Administrator, Federal Aviation Administration.

Since this amendment relates to Departmental management, procedure, and practices, notice and public procedure thereon is unnecessary, and it may be made effective in less than 30 days after publication in the FEDERAL REGISTER.

In consideration of the foregoing, Part 91 of Title 49 of the Code of Federal Regulations is revoked, effective June 13, 1968.

(Sec. 9 of the Department of Transportation Act (49 U.S.C. 1657))

Issued in Washington, D.C., on May 15, 1968.

ALAN S. BOYD,
Secretary of Transportation.

[F.R. Doc. 68-6598; Filed, June 4, 1968; 8:47 a.m.]

Proposed Rule Making

DEPARTMENT OF THE TREASURY

Internal Revenue Service

[26 CFR Part 1]

INCOME TAX

Consolidated Returns

The proposed amendment to the regulations under the Internal Revenue Code, relating to consolidated returns appears in the FEDERAL REGISTER for April 17, 1968.

A public hearing on the provisions of this proposed amendment to the regulations will be held on Thursday, June 27, 1968, at 10 a.m., e.d.s.t., in Room 3313, Internal Revenue Service Building, Constitution Avenue between 10th and 12th Streets NW., Washington, D.C.

Persons who plan to attend the hearing are requested to notify the Commissioner of Internal Revenue, Attention: CC:LR:T, Washington, D.C. 20224, by June 14, 1968. Notification of intention to attend the hearing may be given by telephone, 202–964–3935.

JAMES F. DRING,
Director, Legislation and Regulations Division.

[F.R. Doc. 68–6614; Filed, June 4, 1968; 8:49 a.m.]

DEPARTMENT OF AGRICULTURE

Consumer and Marketing Service

[7 CFR Part 51]

RADISHES [1]

U.S. Standards for Grades

Notice is hereby given that the U.S. Department of Agriculture is considering the revision of U.S. Standards for Radishes (7 CFR, §§ 51.2395–51.2412) pursuant to the Agricultural Marketing Act of 1946 (60 Stat. 1087, as amended; 7 U.S.C. 1621–1627).

All persons who desire to submit written data, views, or arguments for consideration in connection with the proposal should file the same in duplicate, not later than July 15, 1968, with the Hearing Clerk, U.S. Department of Agriculture, Room 112, Administration Building, Washington, D.C. 20250, where they will be available for public inspection during official hours of business (paragraph (b) of § 1.27, as amended at 29 F.R. 7311).

Statement of considerations leading to the proposed revision of the grade standards. The U.S. Standards for Radishes were last revised effective July 16, 1954, and amended December 15, 1963. Since 1954 many changes have taken place in the production of radishes. The most important of these is the present general use of mechanical harvesters. Prior to the development of mechanical harvesters the radish crop was harvested and topped by hand, or shipped with tops still attached. While mechanical harvesting is an economic necessity, it has created problems, including cuts and abrasions resulting from harvesting and topping. Most lots of radishes now being traded by the fruit and vegetable industry will not grade U.S. No. 1 under the present definition of damage by cuts, which is as follows: "Cuts when discolored, rough or deep or when the aggregate area exceeds the area of a circle three-eighths inch in diameter." Because of this situation, over which the grower has little control, a producers' organization in Florida has requested that the definition of damage by cuts be relaxed in order to make the application of the U.S. No. 1 grade more practical.

Of almost equal concern to the industry is the need for relaxing the definition of damage by growth cracks or air cracks, which is as follows: "Growth cracks or air cracks when discolored or deep or when more than three-eighths inch in length or the appearance is materially affected."

Investigations made following the request by the Florida producers' organization clearly indicate that revision of these two definitions is justified. The proposed changes in these definitions, § 51.2409 (a) and (b) together with Table I, provide somewhat more liberal requirements. They incorporate allowable lengths of air cracks and growth cracks, and areas of harvester cuts and abrasions, which vary with the diameter of the radish.

In § 51.2396 a minor change is proposed. The length of tops permitted on individual topped radishes would be increased from three-eighths to one-half inch. This change also reflects a problem caused by mechanical harvesting.

The designation "Unclassified," often misunderstood and rarely used, would be deleted.

An added feature would be "Sample for Grade Determination" in § 51.2399. It specifies the constant number of 50 roots or 25 bunches which shall be considered the individual sample, whereas otherwise the sample size might vary widely with the type of container. This method of sampling tends to compensate for variations within very small containers.

A "Metric Conversion Table" would be added in § 51.2413 to provide a means of comparing measurements in terms of inches with their equivalents in terms of millimeters.

Additional minor changes have been made in the wording of the standards in the interest of clarity. This includes a revision of the general definition of damage in accordance with wording used in other recently revised standards.

The proposed standards, as revised, are as follows:

STYLES

Sec.
51.2395 Topped radishes.
51.2396 Bunched radishes.

GRADES

51.2397 U.S. No. 1.
51.2398 U.S. Commercial.

SAMPLE FOR GRADE DETERMINATION

51.2399 Sample for grade determination.

APPLICATION OF TOLERANCES

51.2400 Application of tolerances.

STANDARD BUNCHING

51.2401 Standard bunching.

SIZE TERMS

51.2402 Size terms.

DEFINITIONS

51.2403 Similar varietal characteristics.
51.2404 Clean.
51.2405 Well formed.
51.2406 Smooth.
51.2407 Firm.
51.2408 Tender.
51.2409 Damage.
51.2410 Fresh.
51.2411 Diameter.
51.2412 Serious damage.

METRIC CONVERSION TABLE

51.2413 Metric conversion table.

AUTHORITY: The provisions of this subpart issued under secs. 203, 205, 60 Stat. 1087, as amended, 1090 as amended; 7 U.S.C. 1622, 1624.

STYLES

§ 51.2395 Topped radishes.

"Topped radishes" means radishes with the tops clipped back to not more than one-half inch in length.

§ 51.2396 Bunched radishes.

"Bunched radishes" means radishes with full length tops which are tied in bunches.

GRADES

§ 51.2397 U.S. No. 1.

"U.S. No. 1" consists of radishes of similar varietal characteristics the roots of which are clean, well formed, smooth, firm, tender, and free from decay and free from damage caused by freezing, growth cracks or air cracks, cuts, pithiness, disease, insects, or other means. Bunched radishes have tops which are fresh and free from decay and free from damage caused by freezing, seedstems, yellowing or other discoloration, disease, insects, or other means.

[1] Packing of the product in conformity with the requirements of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act or with applicable State laws and regulations.

(a) Unless otherwise specified, the diameter of each root shall be not less than five-eighths inch.

(b) In order to allow for variations incident to proper grading and handling, the following tolerances are provided:

(1) *For defects of roots.* 10 percent, by count, for roots in any lot which fail to meet the requirements for the grade, including therein not more than 1 percent for decay;

(2) *For defects of tops of bunched radishes.* 10 percent, by count, for bunches in any lot which fail to meet the requirements for the grade, including therein not more than 5 percent for decay;

(3) *For off-size roots.* 10 percent, by count, for roots in any lot which fail to meet the specified minimum diameter: *Provided,* That when both minimum and maximum diameters are specified, an additional tolerance of 10 percent shall be allowed for roots which are larger than the maximum diameter specified; and,

(4) *For excess length of tops of topped radishes.* 5 percent, by count, for roots in any lot with tops which are more than one-half inch long.

§ 51.2398 U.S. Commercial.

"U.S. Commercial" consists of radishes which meet the requirements for the U.S. No. 1 grade except for the increased tolerances specified in this section.

(a) In order to allow for variations incident to proper grading and handling, the following tolerances are provided:

(1) *For defects of roots.* 20 percent, by count, for roots in any lot which fail to meet the requirements for the grade, but not more than one-half of this amount, or 10 percent, shall be allowed for serious damage, including therein not more than 1 percent for decay;

(2) *For defects of tops of bunched radishes.* 10 percent, by count, for bunches in any lot which fail to meet the requirements for the grade, including therein not more than 5 percent for decay;

(3) *For off-size roots.* 10 percent, by count, for roots in any lot which fail to meet the specified minimum diameter: *Provided,* That when both minimum and maximum diameters are specified, an additional tolerance of 10 percent shall be allowed for roots which are larger than the maximum diameter specified; and,

(4) *For excess length of tops of topped radishes.* 10 percent, by count, for roots in any lot with tops which are more than one-half inch long.

SAMPLE FOR GRADE DETERMINATION

§ 51.2399 Sample for grade determination.

(a) *Topped radishes.* Each sample shall consist of 50 roots.

(b) *Bunched radishes.*

(1) When applying the requirements for tops, each sample shall consist of 25 bunches.

(2) When applying the requirements for roots, each sample shall consist of 50 roots taken from whole or part bunches selected at random from the original 25-bunch sample.

(c) When individual packages contain less than 50 topped radishes or less than 25 bunches, a sufficient number of adjoining packages are opened to obtain the prescribed size sample.

(d) When practical, at point of packing, the sample may be obtained in the packing house from the belt or bin after sorting has been completed.

APPLICATION OF TOLERANCES

§ 51.2400 Application of tolerances.

Individual samples shall have not more than one and one-half times a specified tolerance of 10 percent, and not more than double a specified tolerance of less than 10 percent: *Provided,* That two roots affected by decay may be permitted in any sample: *And provided further,* That the averages for the entire lot are within the tolerances specified for the grade.

STANDARD BUNCHING

§ 51.2401 Standard bunching.

(a) Standard bunches of radishes shall be fairly uniform in size, and radishes in the individual bunches shall not vary more than one-half inch in diameter.

(b) Not more than 10 percent of the bunches in any lot may fail to meet the requirements for "Standard Bunching."

SIZE TERMS

§ 51.2402 Size terms.

(a) The following terms are provided for describing the diameters of radish roots:

(1) "Small" means less than three-fourths inch in diameter;

(2) "Medium" means three-fourths to 1 inch in diameter;

(3) "Large" means over 1 to 1¼ inches in diameter; and,

(4) "Very large" means over 1¼ inches in diameter.

DEFINITIONS

§ 51.2403 Similar varietal characteristics.

"Similar varietal characteristics" means that the radishes in any sample are similar in color and shape; for example, red varieties shall not be mixed with white varieties and globe-shaped varieties shall not be mixed with long-shaped varieties.

§ 51.2404 Clean.

"Clean" means that the radishes are practically free from dirt or other foreign material.

§ 51.2405 Well formed.

"Well formed" means that the root has the shape characteristic of the variety.

§ 51.2406 Smooth.

"Smooth" means that the root is not rough, or ridged to the extent that the appearance is materially affected.

§ 51.2407 Firm.

"Firm" means that the root is crisp and not soft, flabby, or wilted.

§ 51.2408 Tender.

"Tender" means that the root is not stringy or woody.

§ 51.2409 Damage.

"Damage" means any specific defect described in this section; or an equally objectionable variation of any one of these defects, any other defect, or any combination of defects, which materially detracts from the appearance, or the edible or marketing quality of the individual radish, the individual bunch of radishes, or the appearance of the sample as a whole.

The following specific defects shall be considered as damage:

(a) Growth cracks or air cracks:

(1) When more than one are present;

(2) When the flesh is discolored;

(3) When more than one-fourth inch deep; or,

(4) When the length of any crack exceeds the limitations set forth in Table I.

(b) Cuts, including harvester cuts and abrasions:

(1) When the flesh is discolored;

(2) When rough or deep;

(3) When the area of exposed flesh of any cut exceeds the limitations set forth in Table I; or,

(4) When the aggregate of all cuts or abrasions detracts from the appearance more than the maximum size single cut permitted.

TABLE I

Diameter of root	Maximum length of growth crack or air crack permitted	Maximum area of cut permitted—equivalent to:
⅝ inch	⅜ inch	⅜ inch circle.
¾ inch	½ inch	½ inch circle.
⅞ inch	½ inch	½ inch circle.
1 inch	⅝ inch	⅝ inch circle.
1⅛ inch	¾ inch	¾ inch circle.

(c) Pithiness when there is any distinctly open space, or when more than one-fourth of the surface at a center cut is dry and cottony;

(d) Insects or insect injury when the appearance of the root is materially affected, or when the injury penetrates into the flesh of the root or when the tops are affected to the extent that the appearance of the bunch is materially affected; and,

(e) Yellowing or other discoloration of the tops when the appearance of the bunch is materially affected. The appearance of bunches with tops having slight discoloration such as yellowing, browning, or other abnormal color affecting a few leaves shall not be considered materially affected if the tops as a whole show a predominantly normal green color.

§ 51.2410 Fresh.

"Fresh" means that the tops have normal green color and are not more than slightly wilted.

§ 51.2411 Diameter.

"Diameter" means the greatest dimension of the root measured at right angles to a line running from the crown to the base of the root.

§ 51.2412 **Serious damage.**

"Serious damage" means any defect or any combination of defects which seriously detracts from the appearance, or the edible or marketing quality of the individual root or the appearance of the bunch.

METRIC CONVERSION TABLE

§ 51.2413 **Metric conversion table.**

Inches	*Millimeters (mm)*
⅛	3.2
¼	6.4
⅜	9.5
½	12.7
⅝	15.9
¾	19.1
⅞	22.2
1	25.4
1¼	31.8
1½	38.1

Dated: May 29, 1968.

G. R. GRANGE,
Deputy Administrator,
Marketing Services.

[F.R. Doc. 68-6633; Filed, June 4, 1968; 8:50 a.m.]

[7 CFR Parts 1094; 1103]

[Docket Nos. AO-103-A28; AO-346-A8]

MILK IN NEW ORLEANS, LOUISIANA, AND MISSISSIPPI MARKETING AREAS

Notice of Recommended Decision and Opportunity To File Written Exceptions on Proposed Amendments to Tentative Marketing Agreements and to Orders

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of the filing with the Hearing Clerk of this recommended decision with respect to proposed amendments to the tentative marketing agreements and orders regulating the handling of milk in the New Orleans, Louisiana, and Mississippi marketing areas. Interested parties may file written exceptions to this decision with the Hearing Clerk, U.S. Department of Agriculture, Washington, D.C. 20250, by the 5th day after publication of this decision in the FEDERAL REGISTER. The exceptions should be filed in quadruplicate. All written submissions made pursuant to this notice will be made available for public inspection at the office of the Hearing Clerk during regular business hours (7 CFR 1.27(b)).

PRELIMINARY STATEMENT

The hearing on the record of which the proposed amendments, as hereinafter set forth, to the tentative marketing agreements and to the orders as amended, were formulated, was conducted at New Orleans, La., on April 11, 1968, pursuant to notice thereof which was issued March 21, 1968 (33 F.R. 4494).

The material issues on the record of the hearing relate to:

1. Review of the operation of the supply-demand adjustors of both orders and consideration of deletion or modification of the adjustors.
2. Diversion of producer milk under either order to an other order plant.
3. Qualification of a cooperative's plant as a pool plant under the New Orleans order.
4. Definition of "route" in the New Orleans order.

FINDINGS AND CONCLUSIONS

The following findings and conclusions on the material issues are based on evidence presented at the hearing and the record thereof:

1. *Supply-demand adjustors.* The supply-demand adjustor provisions of the Mississippi and New Orleans orders should be deleted.

Producer cooperative associations in each of these markets requested at the hearing that the supply-demand adjustors in both the Mississippi and New Orleans orders be removed. The associations claimed that the adjustors had been erratic and disturbed price alignment with other markets. They also pointed out that the adjusted prices generally have not been effective because of premiums.

While they did offer testimony on possible revisions of the existing adjustors, this was intended to apply only if a supply-demand adjustor were retained in the respective order contrary to their request for deletion. The type of modified adjustor discussed in their testimony would be based on combined receipts and sales in the Mississippi, New Orleans, and Northern Louisiana markets.

The merits of a common supply-demand adjustor for these markets need not be discussed in these findings, in view of the conclusion herein that no supply-demand adjustor should apply under current conditions. Any supply-demand adjustor which might be devised for these markets would operate under conditions making it ineffective and unable to achieve the objectives of an adjustor.

In each of the marketing areas, class prices are established also by State agencies as well as the Federal order. The Class I prices of the State agencies may be higher or lower than the Federal order prices.

In the New Orleans market, the State order price has been higher than the Federal order Class I price in each month since December 1966. The difference has ranged from 6 cents to 58 cents during the period through September 1967 in which the supply-demand adjustor continued in effect.

For the period after September 1967 and through May 1968, if the adjustor had continued in effect, the premium over the Federal order price would have ranged from 12½ to 40½ cents.[1]

Since the supply-demand adjustor was not effective in the October 1967–April 1968 period, actual premiums over the Federal order price were less than the amounts just cited. The actual premiums in the October–April period were 4 to 4½ cents. For May 1968 no premium applies.

In the Mississippi market, if the calculated supply-demand adjustor had been effective during all months of 1967, the State order prices would have exceeded the Federal order price by 4 to 38 cents. In January through April 1968, if the adjustor had been effective, the premium would have been 26 to 33 cents. In May 1968, although the Federal order price was increased due to a 28-cent higher minimum basic formula price, it would nevertheless have been 4 cents below the State price if the adjustor had been effective.[2]

The adjustments provided by supply-demand adjustors now in the two orders have been characteristically negative. In the New Orleans market, the annual average adjustment in 1966 was minus 19 cents and in 1967 (including adjustmen s suspended, October–December) was minus 31.1 cents. In Mississippi, the calculated adjustment (although not effective) averaged minus 8.1 cents in 1967.

It may be expected that if the adjustors were operative in the future that the adjustments would be generally negative unless there is a substantial improvement in utilization. Further, under premium pricing conditions which exists in these markets, any adjustor (or adjustors) which would respond to changing supply and demand conditions would produce prices often differing considerably from effective levels of returns received by producers.

The intended purpose of a supply-demand adjustor in either market, thus, cannot be achieved because under existing conditions it would be ineffective in modifying producer returns and handlers' cost in relation to market conditions. Prices paid by regulated handlers in these two markets for Class I milk, as shown, exceed order Class I prices by varying amounts.

In order for a supply-demand adjustor to operated in an appropriate or beneficial way in the markets under consideration, it must have a significant influence on the effective Class I price level. In a situation where substantial premiums have persisted for a considerable period the premium price is the one which influences the supply-sales balance rather than the supply-demand adjustor price. In these two markets, State agency Class I prices are fixed independently of the Federal order prices. Thus, Federal order supply-demand adjustors, even if effective, cannot be regarded as influencing the level of premium prices.

The purpose of the supply-demand adjustor is to achieve—by the timely changes it makes in the Class I prices—an appropriate supply-sales balance. If the Class I prices which result from the

[1] Official notice is taken of the announcements of the New Orleans market administrator for the months of April and May 1968 and Class I prices published by the Commissioner of Agriculture, Louisiana State Department of Agriculture, for the months of April and May 1968.

[2] Official notice is taken of the announcements of the Mississippi market administrator for the months of April and May 1968 and Class I prices published by the Mississippi Milk Commission for the months of April and May 1968.

supply-demand adjustor are not in fact the effective prices, obviously the supply-demand adjustor is not influencing the supply-sales balance. Hence, in a situation where substantial premiums are effective and where they persist for considerable periods, the supply-demand adjustor is nullified as a price-making factor on sales in the marketing area.

When a supply-demand adjustor is rendered ineffective by the existence of substantial premiums, as in these two markets, the adjustor becomes a disruptive factor wherever milk is sold at the minimum order prices. Where premiums are effective the supply-demand adjustor is not only rendered inconsequential but it usually results in prices below those which it would provide if it were effective.

For example, if a 20-cent premium is instituted in a market it may attract an increase in supply relative to sales which would normally call for a minus 20 cents supply-demand adjustor. But when the minus 20 cents is applied to the minimum order price, such price may be too low to maintain an adequate supply.

Usually, premium prices apply only within specified areas or regions. Milk sold outside these areas or regions is sold at order minimums. When the supply-demand adjustor gives too low a price, milk sold at minimum order prices disrupts marketing and price conditions in any area where it is disposed of.

It is necessary, therefore, to eliminate the New Orleans and Mississippi supply-demand adjustors because of the persistence of substantial premiums which would cause the adjustors to result in inappropriate Class I prices if reinstated at this time, whether in the present form or in any form which might be based on this record.

2. *Diversion.* Both the Mississippi and New Orleans orders should be modified to allow producer milk under one of the orders to be diverted for Class II use to a plant regulated by the other order.

In the Mississippi order definition of "producer," it is already provided that a producer's milk may be diverted to an other order plant for Class II use. A similar provision should be included in the New Orleans order under the definitions of producer and producer milk. Also, each order should provide that milk received at a pool plant will not be producer milk if received as milk diverted from the other order.

The purpose of these provisions is to allow a more efficient handling of reserve milk under the two orders. Some of the Mississippi order reserve milk may be most conveniently diverted to a New Orleans pool plant at Franklinton, La. The Franklinton plant, however, cannot now receive such milk except as producer milk under the New Orleans order. Since such a shift to pricing and pooling under the New Orleans order is not desired, the cooperative handling the milk has in practice diverted it to the more distant unregulated plant at Brookhaven, Miss.

It is desirable that the milk of dairy farmers continue under the same order, although their milk is temporarily delivered to a plant under another order for manufacturing. For the individual farmer, producer status under two orders in the same month is confusing and may disrupt the application of the base and excess plan to his milk. For the cooperative association handling the milk, it complicates methods of accounting and interferes in the relationship between the cooperative and its membership. To change the regulation of the milk to the other order during diversion for Class II use would serve no useful purpose.

The modifications in the diversion provisions are not intended to change the limits for diversion as already stated in these orders. For instance, in the New Orleans order a cooperative association may divert 20 percent of its member-producer milk received by all pool handlers during the month. Such limit and the alternative limit of 15 days of production (of any one dairy farmer) should apply to total diversions to nonpool plants whether or not such plant is regulated by another order. The term "pool plants" is substituted for "pool handlers' " in the proposed provisions for greater specificity.

Similarly, under the Mississippi order, the limitations for diversion, whether stated in days of production or percentage of member-producer milk, should apply to combined diversions to other order plants and plants not regulated by any order.

3. *Cooperative pool plant.* A plant operated by a cooperative should qualify as a pool plant if 50 percent or more of the association's member-producer milk is received at pool distributing plants directly from producers' farms.

The purpose of this provision is to facilitate the pooling of reserve milk handled by a cooperative association. The cooperative that is the proponent of this provision handles a large part of the reserve milk of the New Orleans market. Under the proposal, milk of member dairy farmers, when not needed at pool distributing plants would automatically qualify as producer milk if delivered to the association plant.

All of the milk produced by association members is assembled by the association as a bulk tank handler. The tank trucks of the association collect the milk from farmers for movement to city distributing plants or to manufacturing plants. The supply requirements of the city distributing plants are met primarily in this manner. Very little of the milk for distributing plants is shipped from other plants.

Thus, it is essential that some method be provided for pooling reserve milk in those periods when it is not required by the pool distributing plants. In this case a plant of the cooperative is the most efficient and adequate outlet for the reserve milk which must in any case be used primarily in manufacturing. The most direct method of pooling the milk, therefore, is to designate the plant as a pool plant. This method of providing for the handling of reserve milk serves a purpose similar to that of diversion. In this market, the provision for pooling the cooperative plant will provide a more flexible method of handling reserve milk.

The requirement that 50 percent of the member-producer milk of the cooperative association be delivered to pool distributing plants will establish identification of the entire member milk supply with the market. This is the same percentage as applies in the case of shipments by supply plants in order to qualify as pool plants. There is no need to apply a higher percentage in the case of a cooperative plant.

In this market where the cooperative operates several plants, it is necessary that the cooperative designate the particular plants for which it desires pool status. Such designations would remain in effect as long as the requirement for pooling is met or until the cooperative requests nonpool status for any such plant.

4. *Definition of "route".* The definition of "route" should be modified. The new provision should define "route" as any delivery of a fluid milk product from a milk processing plant to wholesale or retail outlets (including any delivery by a vendor and from a plant store or through a vending machine) other than a delivery to any milk receiving and/or processing plant.

The quantity of milk disposed of on routes by a processing plant (including sales through vendors) serves to determine the regulated status of the plant. The route disposition, therefore, should be clear as to the type of disposition intended to be used as a basis for qualifying a plant for pooling.

Disposition by handlers of packaged products to retail and wholesale outlets represents the regular method of distributing milk for fluid comsumption in this market. It is a proper and adequate basis, therefore, to measure the association of the plant with the fluid market. It, also, serves as a measure for determination that the plant is primarily in the business of distributing milk to fluid outlets. Route disposition to retail and wholesale outlets has been the basis on which all existing distributing plants have qualified for pooling.

While the modified provision would include all regular disposition to retail and wholesale outlets, including disposition through vendors and plant stores, it would not provide for disposition to other plants as part of the pooling qualification. Interplant transfers in packaged or bulk form have not been a factor in determining pool status of plants. Under current trade practices in the market, it is most appropriate to continue the existing basis for pool qualification. It is necessary that the definition of route be clarified in this respect.

Rulings on Proposed Findings and Conclusions

A period was provided through May 1, 1968, for filing briefs. No briefs were filed.

General Findings

The findings and determinations hereinafter set forth are supplementary and

in addition to the findings and determinations previously made in connection with the issuance of each of the aforesaid orders and of the previously issued amendments thereto; and all of said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein. The following findings are hereby made with respect to each of the aforesaid orders:

(a) The tentative marketing agreements and the orders, as hereby proposed to be amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the Act;

(b) The parity prices of milk as determined pursuant to section 2 of the Act are not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply and demand for milk in the marketing areas, and the minimum prices specified in the proposed marketing agreements and the orders, as hereby proposed to be amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk, and be in the public interest; and

(c) The tentative marketing agreements and the orders, as hereby proposed to be amended, will regulate the handling of milk in the same manner as, and will be applicable only to persons in the respective classes of industrial and commercial activity specified in, a marketing agreement upon which a hearing has been held.

RECOMMENDED MARKETING AGREEMENT AND ORDER AMENDING THE ORDER

The following order amending the orders as amended regulating the handling of milk in the specified marketing areas is recommended as the detailed and appropriate means by which the foregoing conclusions may be carried out. The recommended marketing agreements are not included in this decision because the regulatory provisions thereof would be the same as those contained in the orders, as hereby proposed to be amended:

PART 1094—MILK IN NEW ORLEANS, LOUISIANA, MARKETING AREA

1. Section 1094.7 is revised to read as follows:

§ 1094.7 Route.

"Route" means any delivery of a fluid milk product from a milk processing plant to wholesale or retail outlets (including any delivery by a vendor and from a plant store or through a vending machine) other than a delivery to any milk receiving and/or processing plant.

2. In § 1094.10, a new paragraph (d) is added to read as follows:

§ 1094.10 Pool plant.

* * * * *

(d) A plant, other than a distributing plant, which is operated by a cooperative association and which does not meet the requirements of paragraphs (b) or (c) of this section, in any month in which the volume of milk received at pool distributing plants directly from member-producers of such cooperative association is not less than 50 percent of the total pounds of such association's member-producer milk (including that received at such plant), if written request is made to the market administrator by the cooperative association prior to or during the month that the plant be a pool plant pursuant to this provision for the month, or for each month, such request to be effective until withdrawn.

3. In § 1094.14, the introductory text which precedes paragraph (a), and paragraphs (b) and (c) are revised to read as follows:

§ 1094.14 Producer.

"Producer" means any person, other than a producer-handler as defined in any order (including this part) issued pursuant to the Act, who produces milk in compliance with the Grade A inspection requirements of a duly constituted health authority which milk is received at a pool plant (except milk received by diversion from a plant at which such milk is fully subject to the pricing provisions of another order issued pursuant to the Act) or by a cooperative association pursuant to § 1094.12(d) or is diverted pursuant to paragraphs (a) through (c) of this section: *Provided*, That milk so diverted shall be deemed to have been received at the location of the pool plant from which diverted.

* * * * *

(b) To a nonpool plant (except that diversion to an other order plant shall be limited to Class II use) during any month(s) of December and February through August;

(c) Except as provided in subparagraphs (1) and (2) of this paragraph, to a nonpool plant (except that diversion to an other order plant shall be limited to Class II use) during each month of January and September through November, but not more than 15 days production of any dairy farmer during any such month: *Provided*, That if this limit is exceeded for any dairy farmer, such dairy farmer shall be a producer only with respect to that milk physically received at pool plants during such month:

(1) A cooperative association may divert for its account the milk of any member-producer without limit during the month if the total volume of milk so diverted does not exceed 20 percent of its member-producer milk physically received at all pool plants during the month: *Provided*, That if this percentage limitation is exceeded all diversions by such association during the month shall be subject to the 15-day limitation prescribed above.

(2) A handler in his capacity as the operator of a pool plant may divert for his account the milk of any nonmember producer without limit during the month if the total volume of nonmember milk so diverted does not exceed 20 percent of the nonmember producer milk physically received at such pool plant during the month: *Provided*, That if this percentage limitation is exceeded all diversions by such handler during the month shall be subject to the 15-day limitation prescribed above.

4. Section 1094.15 is revised to read as follows:

§ 1094.15 Producer milk.

"Producer milk" means milk received at a pool plant directly from producers or diverted pursuant to § 1094.14: *Provided*, That milk received at a pool plant by diversion from a plant at which such milk is fully subject to the pricing provisions of another order issued pursuant to the Act shall not be producer milk.

5. In § 1094.51, the text of paragraph (a) is revised to delete language referring to the supply-demand adjustor and subparagraphs (1) through (6) are deleted. Paragraph (a) as revised reads as follows:

§ 1094.51 Class prices.

* * * * *

(a) *Class I milk price.* The Class I milk price shall be the basic formula price for the preceding month plus $2.65, plus 20 cents through April 1969.

* * * * *

PART 1103—MILK IN MISSISSIPPI MARKETING AREA

1. In § 1103.15, the introductory text which precedes paragraph (a) is revised to read as follows:

§ 1103.15 Producer.

"Producer" means any person, other than a producer-handler as defined in any order (including this part) issued pursuant to the Act, who produces milk in compliance with Grade A inspection requirements of a duly constituted health authority, which milk is received during the month at a pool plant (except milk received by diversion from a plant at which such milk is fully subject to the pricing and pooling provisions of another order issued pursuant to the Act) or by a cooperative association pursuant to § 1103.13(d), or is diverted pursuant to paragraphs (a) through (e) of this section: *Provided*, That milk diverted in accordance with the provisions of said paragraphs shall be deemed to have been received by the diverting handler at the location of the pool plant from which it was diverted and: *Provided further*, That if a handler, diverting milk pursuant to paragraph (d) or (e) of this section, diverts in excess of the limits prescribed all diversions by such handler during the month shall be pursuant to paragraph (c) and: *Provided also*, That if a handler diverting milk pursuant to paragraph (c) of this section, diverts milk of any dairy farmer in excess of the limits prescribed, such dairy farmer shall be a producer only with respect to that milk physically received at a pool plant:

* * * * *

2. Section 1103.16, is revised to read as follows:

§ 1103.16 **Producer milk.**

"Producer milk" means only the skim or butterfat contained in milk (a) received at a pool plant(s) directly from a producer (except that milk received at a pool plant by diversion from a plant at which such milk is fully subject to the pricing and pooling provisions of another order issued pursuant to the Act shall not be producer milk), (b) diverted in accordance with the provisions of § 1103.15 to the pool plant of another pool handler or to a nonpool plant, or (c) received by a cooperative association pursuant to § 1103.13(d).

3. In § 1103.51, the text of paragraph (a) is revised to delete language referring to the supply-demand adjustor and subparagraphs (1), (2), and (3) are deleted. Paragraph (a) as revised reads as follows:

§ 1103.51 **Class prices.**

* * * * *

(a) *Class I milk price.* The minimum Class I price for the month shall be the basic formula price for the preceding month plus $2.27, plus 20 cents through April 1969.

* * * * *

Signed at Washington, D.C., on May 29, 1968.

JOHN C. BLUM,
Deputy Administrator,
Regulatory Programs.

[F.R. Doc. 68-6599; Filed, June 4, 1968; 8:47 a.m.]

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Food and Drug Administration

[21 CFR Part 130]

DRUGS FOR HUMAN USE; DRUG EFFICACY STUDY IMPLEMENTATION

Announcement and Proposal Regarding Methylergonovine Maleate Tablets and Methylergonovine Maleate Injection

The Food and Drug Administration has reviewed and evaluated reports received from the National Academy of Sciences—National Research Council, Drug Efficiency Study Group, on the following methylergonovine maleate preparations:

1. Methergine tables; 0.2 milligram of methylergonovine maleate per tablet; manufactured by Sandoz, Inc., Hanover, N.J. 07936.

2. Methergine injection; methylergonovine maleate, 0.2 milligram per milliter; manufactured by Sandoz, Inc., Hanover, N.J. 07936.

The Food and Drug Administration concurs in the conclusions of the Academy that these drugs are effective for the indications for which they are labeled.

Therefore, the Commission of Food and Drugs proposes that § 130.302 (proposed in the FEDERAL REGISTER of May 28, 1968; 33 F.R. 7762) of the new-drug regulations be amended by adding to paragraph (b) a new subparagraph listing the subject drugs as follows:

§ 130.302 **List of drugs for human use that do not now require an approved new-drug application.**

* * * * *

(b) * * *

( ) Methylergonovine maleate tablets and methylergonovine maleate injection, subject to the following conditions:

(i) The preparation is in tablet form and contains not more than 0.2 milligram of methylergonovine maleate per dosage unit or is in injectable form suitable for intravenous administration and contains not more than 0.2 milligram of methylergonovine maleate per milliliter.

(ii) The label bears the prescription legend "Caution: Federal law prohibits dispensing without prescription."

(iii) The preparation meets all the requirements of paragraph (a) of this section.

(iv) The parts of the labeling set forth below in this subdivision are substantially as indicated; no other claims are made; and the labeling otherwise meets all the requirements of the act and regulations thereunder:

ACTION

Induces a tetanic uterotonic effect.

INDICATIONS

For routine management after delivery of the placenta; postpartum atony and hemorrhage; subinvolution; under full obstetric supervision, it may be given in the second stage of labor following delivery of the anterior shoulder.

CONTRAINDICATIONS

Hypertension; toxemia; pregnancy; and hypersensitivity.

WARNING

This drug should not be administered intravenously routinely because of sudden hypertensive and cerebrovascular accidents associated with the use by this route. If it is considered essential as a lifesaving measure to administer it intravenously, it should be given in no less than a 60-second period. Blood pressure should be carefully monitored.

PRECAUTIONS

Caution should be exercised in the presence of sepsis, obliterative vascular disease, hepatic or renal involvement.

ADVERSE REACTIONS

Nausea; vomiting; transient hypertension; dizziness; headache; tinnitus; diaphoresis and palpitation; temporary chest pain; and dyspnea.

DOSAGE AND ADMINISTRATION

Intravenously: See "Warning" section. (Dosage same as intramuscular dosage.)

Intramuscularly: 0.2 milligram (1/320 grain) after delivery of the placenta, or after delivery of the anterior shoulder, or during the puerperium. May be repeated as required, at intervals of 2–4 hours.

Orally: 0.2 milligram (1/320 grain) in the puerperium, 3 or 4 times daily for a maximum of 1 week.

Usually accepted time for onset of action: i.v.—immediate; i.m.—2 to 5 minutes; and orally—5 to 10 minutes.

The holders of new-drug applications for the drugs listed above have been mailed a copy of the NAS–NRC report together with a copy of the labeling conditions contained in this announcement. Any manufacturer, packer, or distributor of a drug of composition and labeling similar to the drugs listed in this announcement or any other interested person may obtain a copy of the NAS–NRC report by writing to the Food and Drug Administration, Press Relations Office, 200 C Street SW., Washington, D.C. 20204.

Any interested person may, within 30 days from the date of publication of this notice in the FEDERAL REGISTER, submit written comments (preferably in quintuplicate) regarding the proposal herein, including any medical reports, data, or labeling comments. Comments should be directed to the Special Assistant for Drug Efficacy Study Implementation, Bureau of Medicine, Food and Drug Administration, 200 C Street SW., Washington, D.C. 20204. A copy of such comments will be made a matter of public record and will be available in the Office of the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington, D.C. 20201.

This notice is issued pursuant to the authority vested in the Secretary of Health, Education, and Welfare by the Federal Food, Drug, and Cosmetic Act (secs. 502, 505, 701(a), 52 Stat. 1050–53, as amended, 1055; 21 U.S.C. 352, 355, 371(a)) and delegated to the Commissioner (21 CFR 2.120).

Dated: May 28, 1968.

JAMES L. GODDARD,
Commissioner of Food and Drugs.

[F.R. Doc. 68-6603; Filed, June 4, 1968; 8:48 a.m.]

Social Security Administration

[20 CFR Part 404]

[Regs. No. 4]

DISABILITY INSURANCE

Rights and Benefits Based on Disability

Correction

In F.R. Doc. 68-5778, appearing at page 7244 of the issue for Thursday, May 16, 1968, make the following changes:

1. In line 3 of the Example in § 404.1502(c), the word "or" should read "of".

2. In the appendix:

a. In line 2 of 2.00E, the word "of" should read "or".

b. Category 3.09A should read:

A. Culture of specific organisms from sputa and serial X-ray evidence of increasing or decreasing extent of lesion, both occurring more than 3 months following onset of disability; or

c. In the first line of 3.10A, the word "laryngectomy" should read "Laryngectomy."

d. In line 2 of 4.09A, the word "criterial" should read "criteria".

e. In the fourth paragraph of 12.00B, delete the word "psychotic" and insert instead "psychological integrity of the individual. Psychoneurotic".

DEPARTMENT OF TRANSPORTATION

Federal Aviation Administration

[14 CFR Part 39]

[Docket No. 8918]

AIRWORTHINESS DIRECTIVES

SIAI-Marchetti Model S.205/22R Airplanes

The Federal Aviation Administration is considering amending Part 39 of the Federal Aviation Regulations by adding an airworthiness directive (AD) applicable to SIAI-Marchetti Model S.205/22R airplanes. The means by which indication is given to the pilot that the main landing wheels are secured in the extreme positions is not adequate. While the entire landing gear retraction system is interconnected, the present system is actuated by the extreme position of the nose landing gear only. The proposed AD would require installation of a microswitch applicable to the main landing gear on each wing on SIAI-Marchetti Model S.205/22R airplanes.

Interested persons are invited to participate in the making of the proposed rule by submitting such written data, views, or arguments as they may desire. Communications should identify the docket number and be submitted in duplicate to the Federal Aviation Administration, Office of the General Counsel, Attention: Rules Docket, 800 Independence Avenue SW., Washington, D.C. 20590. All communications received on or before July 5, 1968, will be considered by the Administrator before taking action upon the proposed rule. The proposals contained in this notice may be changed in the light of comments received. All comments will be available, both before and after the closing date for comments, in the Rules Docket for examination by interested persons.

This amendment is proposed under the authority of sections 313(a), 601, and 603 of the Federal Aviation Act of 1958 (49 U.S.C. 1354(a), 1421, and 1423).

In consideration of the foregoing, it is proposed to amend § 39.13 of Part 39 of the Federal Aviation Regulations by adding the following new airworthiness directive:

SIAI-MARCHETTI. Applies to Model S.205/22R airplanes. Serial Nos. 213, 370, 371, 372, 373, 374, 379, 380, 381, 382, and 384.

Compliance required within the next 200 hours' time in service after the effective date of this AD, unless already accomplished.

To provide a position indicating means for the main landing gear, install a Burgess MK4BR microswitch on the right and left wing in accordance with SIAI-Marchetti Service Bulletin No. 205B5A, dated April 11, 1968, or later RAI-approved issue, or an FAA-approved equivalent.

Issued in Washington, D.C., on May 28, 1968.

R. S. SLIFF,
Acting Director,
Flight Standards Service.

[F.R. Doc. 68-6594; Filed, June 4, 1968; 8:47 a.m.]

[14 CFR Parts 71, 73]

[Airspace Docket No. 68-WE-25]

POINT ARGUELLO, CALIF.

Designation of Restricted Area and Alteration of Continental Control Area

The Federal Aviation Administration (FAA) is considering amendments to Parts 71 and 73 of the Federal Aviation Regulations that would designate a new joint-use restricted area near Point Arguello, Calif., and include it in the continental control area.

Interested persons may participate in the proposed rule making by submitting such written data, views, or arguments as they may desire. Communications should identify the airspace docket number and be submitted in triplicate to the Director, Western Region, Attention: Chief, Air Traffic Division, Federal Aviation Administration, 5651 West Manchester Avenue, Post Office Box 90007, Airport Station, Los Angeles, Calif. 90009. All communications received within 45 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendments. The proposals contained in this notice may be changed in the light of comments received.

An official docket will be available for examination by interested persons at the Federal Aviation Administration, Office of the General Counsel, Attention: Rules Docket, 800 Independence Avenue SW., Washington, D.C. 20590. An informal docket also will be available for examination at the office of the Regional Air Traffic Division Chief.

The Department of the Air Force has requested the designation of a joint-use restricted area adjacent to the eastern boundary of R-2517 Point Arguello, Calif. The stated requirement for this proposed restricted area is to support the programed Department of Defense (DoD) missile test programs and space rocket launch operations assigned to the Air Force Western Test Range (AFWTR) at Vandenberg Air Force Base, Calif.

These tests and space programs, which also utilize R-2517, require southeasterly launch azimuths beyond the eastern boundary of R-2517. The Air Force states that the proposed restricted airspace is required to:

Protect nonparticipating aircraft from the hazards of toxic and explosive launch vehicle propellants and from early launch vehicle destruct action; and

To provide a noise-free radiofrequency (RF) environment for launch facilities and instrumentation sites.

It is anticipated that close coordination between AFWTR and the FAA controlling agency would reduce the length of time the airspace is withdrawn from public use to the minimum time required for final countdown and vehicle launch. It is further anticipated that this coordination would result in the scheduling of vehicle launches at times which would minimize possible impact on IFR civil operations which could be adversely affected.

The proposed restricted area would be subdivided into two areas, A and B, to enable AFWTR to invoke only that airspace actually required for a specific test operation, thereby minimizing the amount of airspace withdrawn from public use at a given time.

It is anticipated that the area would be used four to six times per month and that the duration of each period would be 1 to 2 hours.

If action is taken to adopt this proposal, new restricted areas will be designated at Point Arguello, Calif., as follows:

R-2534A POINT ARGUELLO, CALIF.

Boundaries: Beginning at lat. 34°38'35" N., long. 120°31'20" W.; to lat. 34°35'45" N., long. 120°28'10" W.; to lat. 34°36'20" N., long. 120°27'20" W.; to lat. 34°30'00" N., long. 120°15'30" W.; to lat. 34°25'10" N., long. 120°15'30" W.; thence three miles from and parallel to the shoreline to lat. 34°24'40" N., long. 120°19'10" W.; to point of beginning.

Designated altitudes: Surface to unlimited.

Time of designation: Continuous.

Controlling agency: FAA, ARTCC, Los Angeles, Calif.

Using agency: Commander, Air Force Western Test Range, Vandenberg AFB, Calif.

R-2534B POINT ARGUELLO, CALIF.

Boundaries: Beginning at lat. 34°38'35" N., long. 120°31'20" W.; to lat. 34°24'40" N., long. 120°19'10" W.; thence three miles from and parallel to the shoreline to lat. 34°23'40" N., long. 120°26'55" W.; to lat. 34°35'00" N., long. 120°31'40" W.; to point of beginning.

Designated altitudes: Surface to unlimited.

Time of designation: Continuous.

Controlling agency: FAA, ARTCC, Los Angeles, Calif.

Using agency: Commander, Air Force Western Test Range, Vandenberg AFB, Calif.

These amendments are proposed under the authority of section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348).

Issued in Washington, D.C., on May 27, 1968.

T. MCCORMACK,
Acting Chief, Airspace and
Air Traffic Rules Division.

[F.R. Doc. 68-6595; Filed, June 4, 1968; 8:47 a.m.]

Federal Highway Administration

[49 CFR Part 293]

[Docket No. 3; Notice 68-3]

PARKING BRAKES

Advance Notice of Proposed Rulemaking

A petition for rulemaking has been filed by the WIZ Corp. seeking an amendment to § 293.41 of the Motor Carrier Safety Regulations. The amendment requested would, among other things, permit each parking brake to be held in the applied position by captive air pressure in self-contained cells, provided the cells do not lose more than 5 pounds of air pressure during a 30-day period from their standard operating pressure as established by the manufacturer.

Because this petition for rulemaking raises vital questions of general applicability affecting motor carrier safety, comments are requested to assist in arriving at a decision. It is also requested that comments deal specifically with, but not be limited to, the question of whether § 293.41 of the Motor Carrier Safety Regulations should be amended to permit parking brakes which are kept in the applied position by means of captive air pressure in self-contained cells, electric energy, or fluid pressure. Comments should be accompanied by appropriate supporting data and information where practicable.

Interested persons are invited to submit written data, views, and arguments. Comments must identify the docket number, the notice number and be submitted in three copies to the Bureau of Motor Carrier Safety, Federal Highway Administration, Room 302A, Donohoe Building, 6th and D Streets SW., Washington, D.C. 20591. All comments received on or before the close of business July 5, 1968, will be considered by the Administrator. All comments will be available in the Rules Docket for examination both before and after the closing date for comments. Following submission of comments, the Bureau, if appropriate, will hold, with interested persons, an informal hearing or meeting devoted to the specific safety and engineering issues involved.

After consideration of the available data and comments, the Administrator will either deny the petition for rulemaking or issue an appropriate notice of proposed rulemaking.

This advance notice of proposed rulemaking is issued under the authority of section 204 of the Interstate Commerce Commission Act, as amended (49 U.S.C. 304), section 6 of the Department of Transportation Act (49 U.S.C. 1955), and the delegation of authority published on April 5, 1967 (32 F.R. 5606).

Issued in Washington, D.C., on May 29, 1968.

LOWELL K. BRIDWELL,
Federal Highway Administrator.

[F.R. Doc. 68-6610; Filed, June 4, 1968; 8:48 a.m.]

ATOMIC ENERGY COMMISSION

[10 CFR Part 32]

SPECIFIC LICENSES TO MANUFACTURE, DISTRIBUTE, OR IMPORT EXEMPTED AND GENERALLY LICENSED ITEMS CONTAINING BY-PRODUCT MATERIAL

Amendment of Labeling Requirements for Luminous Aircraft Safety Devices Used Under General License

The Atomic Energy Commission has issued, in § 31.7, 10 CFR Part 31, "General Licenses for Certain Quantities of Byproduct Material and Byproduct Material Contained in Certain Items", a general license to own, receive, acquire, possess, and use tritium or promethium 147 contained in luminous safety devices for use in aircraft, provided, among other things, that each device has been manufactured, assembled, or imported in accordance with a specific license issued under the provisions of § 32.53, 10 CFR Part 32, "Specific Licenses to Manufacture, Distribute, or Import Exempted and Generally Licensed Items Containing Byproduct Material", or manufactured or assembled in accordance with a specific license issued by an agreement State.[1]

One of the requirements imposed on a person licensed under § 32.53 is that he affix to each device a label which makes specific reference to § 31.7 (§ 32.54). The required specific reference in the label to the effect that the device is generally licensed by the AEC pursuant to § 31.7 makes the label inappropriate when the device is used in an agreement State. There the device is not used pursuant to the Commission's general license contained in § 31.7, but rather pursuant to the general license, or equivalent, in the appropriate section of the agreement State's regulations.

In the interest of uniformity in labeling of such devices, which are distributed and used throughout the United States, it appears desirable to amend the present labeling requirements which are imposed on Commission licensees by § 32.54. The labeling which would be required by the proposed amendment to § 32.54 would omit the specific reference to § 31.7 and thus, following similar amendment of agreement State regulations, could be appropriately used on luminous aircraft safety devices within either agreement States or nonagreement States. The amendment would also specify some of the information now required by specific licenses issued under § 32.53.

The amendment would permit devices distributed prior to January 1, 1969, to bear labels presently prescribed in § 32.54. Suppliers of these generally licensed devices would thus be allowed a reasonable time to deplete current stocks of labels. Minor editorial changes would also be made.

Pursuant to the Atomic Energy Act of 1954, as amended, and section 553 of title 5 of the United States Code, notice is hereby given that adoption of the following amendment to 10 CFR Part 32 is contemplated. All interested persons who desire to submit written comments or suggestions for consideration in connection with the proposed amendment should send them to the Secretary, U.S. Atomic Energy Commission, Washington, D.C. 20545, Attention: Chief, Public Proceeding Branch, within 30 days after publication of this notice in the FEDERAL REGISTER. Comments received after that period will be considered if it is practicable to do so, but assurance of consideration cannot be given except as to comments filed within the period specified. Copies of comments may be examined in the Commission's Public Document Room at 1717 H Street NW., Washington, D.C.

Section 32.54 of 10 CFR Part 32 is amended to read as follows:

§ 32.54 Same: labeling of devices.

(a) A person licensed under § 32.53 to manufacture, assemble or import devices containing tritium or promethium 147 for distribution to persons generally licensed under § 31.7 of this chapter shall, except as provided in paragraph (b) of this section, affix to each device a label which shall include: [1]

(1) The following or a substantially similar statement:

The receipt, possession, use and transfer of this device are subject to a general license and the regulations of the U.S. AEC or of a State with which the AEC has entered into an agreement for the exercise of regulatory authority. Do not remove this label.

(2) The radiation symbol prescribed by § 20.203(a) of this chapter, the identity and quantity of radioactive material contained in the device, the model number of the device and the name of the manufacturer, assembler, or importer of the device, and

(3) Such other information as may be required by the Commission, including disposal instructions when appropriate.

(b) If the Commission determines that labeling on the device is not feasible and that no significant risk to the health and safety of the public will be created, it may dispense with part or all of the labeling of the device on condition that a leaflet bearing the prescribed information is enclosed in the container in which the device is shipped.

* * * * *

(Sec. 81, 68 Stat. 935; 42 U.S.C. 2111; sec. 161, 68 Stat. 948; 42 U.S.C. 2201)

Dated at Washington, D.C., this 27th day of May 1968.

For the Atomic Energy Commission.
W. B. McCOOL,
Secretary

[F.R. Doc. 68-6563; Filed, June 4, 1968; 8:45 a.m.]

[1] A State to which the Commission has transferred certain regulatory authority over radioactive material by formal agreement, pursuant to section 274 of the Atomic Energy Act of 1954, as amended.

[1] Devices distributed prior to January 1, 1969, may bear labels authorized by the regulations in effect on January 1, 1968.

Notices

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[AA-379]

ALASKA

Notice of Proposed Withdrawal and Reservation of Lands

MAY 24, 1968.

The Coast Guard, Department of Transportation, has filed an application, Anchorage Serial No. AA-379, for the withdrawal of the lands described below from all forms of appropriation under the public land laws. The applicant agency requires the land as a site for an aid to navigation (LORAN) station. The land is being released from a Naval Reserve and the Coast Guard has operated the station under a license issued by the Department of the Navy.

For a period of 30 days from the date of publication of this notice, all persons who wish to submit comments, suggestions, or objections in connection with the proposed withdrawal may present their views in writing to the undersigned officer of the Bureau of Land Management, 555 Cordova Street, Anchorage, Alaska 99501.

The Department's regulations, 43 CFR 2311.1-3(c), provide that the authorized officer of the Bureau of Land Management will undertake such investigations as are necessary to determine the existing and potential demand for the lands and their resources. He will also undertake negotiations with the applicant agency with the view of adjusting the application to reduce the area to the minimum essential to meet the applicant's needs, to provide for the maximum concurrent utilization of the lands for purposes other than the applicant's, to eliminate lands needed for purposes more essential than the applicant's, and to reach agreement on the concurrent management of the lands and their resources.

The authorized officer will also prepare a report for consideration by the Secretary of the Interior who will determine whether the lands will be withdrawn as requested by the applicant agency.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER. A separate notice will be sent to each interested party of record.

If circumstances warrant, a public hearing will be held at a convenient time and place, which will be announced.

The lands involved in the application are:

ON ATTU ISLAND, ALEUTIANS, ALASKA

Beginning at a point on the mean high waterline of Massacre Bay approximately 5.03 chains southwesterly of Signal Point, at approximate latitude 52°50'39.898" N., longitude 173°12'15.560" E., thence west approximately 184.848 chains to a point; thence south approximately 121.212 chains to a point; thence east approximately 41.515 chains to a point on the mean high waterline of Casco Bay; thence easterly and southerly along mean high waterline of Casco Bay to the southernmost tip of Casco Point; thence northerly along mean high waterline of Massacre Bay, including Loaf Island, to the point of beginning, containing approximately 1,800 acres.

The land is a part of the Aleutian Islands National Wildlife Refuge.

BURTON W. SILCOCK,
State Director.

[F.R. Doc. 68-6630; Filed, June 4, 1968; 8:50 a.m.]

[R 1444]

CALIFORNIA

Notice of Proposed Withdrawal and Reservation of Lands

MAY 28, 1968.

The Bureau of Reclamation, U.S. Department of the Interior has filed an application, Serial Number R 1444, for the withdrawal of lands described below from all forms of appropriation under the public land laws, including the mining laws but not the mineral leasing laws, subject to valid existing rights. The lands have previously been withdrawn for the Forest Service, U.S. Department of Agriculture, by Departmental Order of July 26, 1906. The applicant desires the land for flood control in the area of the Lower Reservation levee and the flood plain of the Colorado River.

For a period of 30 days from the date of publication of this notice, all persons who wish to submit comments, suggestions, objections in connection with the proposed withdrawal may present their views in writing to the undersigned officer of the Bureau of Land Management, U.S. Department of the Interior, 1414 University Avenue, Post Office Box 723, Riverside, Calif. 92502.

The Department's regulations (43 CFR 2311.1-3(c)) provides that the authorized officer of the Bureau of Land Management will undertake such investigations as are necessary to determine the existing and potential demand for the lands and their resources. He will also undertake negotiations with the applicant agency with the view of adjusting the application to reduce the area to the minimum essential to meet the applicant's need, to provide for the maximum concurrent utilization of the lands for purposes other than the applicant's, and to reach agreement on the concurrent management of the lands and their resources.

The authorized officer will also prepare a report for consideration by the Secretary of the Interior who will determine whether or not the lands will be withdrawn as requested by the applicant agency.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER. A separate notice will be sent to each interested party of record.

The lands involved in the application are:

SAN BERNARDINO MERIDIAN, CALIFORNIA

T. 16 S., R. 22 E.
Sec. 30, lots 5, 6, 7, 8, 9, and 10.

The area described contains 165.92 acres in Imperial County, California.

IRA J. PEAVY,
Acting Manager.

[F.R. Doc. 68-6582; Filed, June 4, 1968; 8:45 a.m.]

[C-2906, etc.]

COLORADO

Notice of Proposed Classification of Public Lands

MAY 27, 1968.

1. Pursuant to the Act of September 19, 1964 (43 U.S.C. 1411-18), and to the regulations in 43 CFR, Parts 2410 and 2411, it is proposed to classify public lands described below for disposal through public sale under section 2455 of the Revised Statutes (43 U.S.C. 1171), the Public Land Sale Act of September 19, 1964 (43 U.S.C. 1421-27); and the Recreation and Public Purposes Act of June 14, 1926, as amended (43 U.S.C. 869; 869-1 to 869-4). As used herein "public lands" means any lands withdrawn or reserved by Executive Order No. 6910 of November 26, 1934, as amended, or within a grazing district established pursuant to the Act of June 28, 1934 (43 Stat. 1269), as amended, which are not otherwise withdrawn or reserved for Federal use or purpose.

2. Publication of this proposed classification segregates the described lands from all forms of disposal under the public land laws, including the mining laws, except the forms of disposal for which it is proposed to classify the lands. However, publication does not alter the applicability of the public land laws governing the use of the lands under lease, license, or permit, or governing the disposal of their mineral and vegetative resources other than under the mining laws.

3. This proposal has been discussed with Federal, State, and local governmental officials and interested citizen groups. Information obtained from field data, discussions with the public and other sources indicate that these lands meet the criterion of 43 CFR 2410.1-3(a), which authorizes classification of lands for disposal under appropriate authority where such lands are found to be chiefly valuable for disposal, and are not needed

for the support of a Federal program.

4. The public lands proposed for classification are located within the following described area and are shown on maps on file in the Glenwood Springs District Office, Bureau of Land Management, Glenwood Springs, Colo., and at the Land Office, Bureau of Land Management, Room 15019, Federal Building, 1961 Stout Street, Denver, Colo. 80202. For a period of 60 days from date of this publication, interested parties may submit comments to the State Director, Bureau of Land Management, Federal Building, 1961 Stout Street, Denver, Colo. 80202.

SIXTH PRINCIPAL MERIDIAN, COLORADO

(C–2906)

WASHINGTON COUNTY

T. 3 S., R. 50 W.,
Sec. 21, SW¼NE¼;
Sec. 23, SE¼NW¼, E½SW¼.
T. 5 N., R. 54 W.,
Sec. 6, lots 6 and 7.

The described land aggregates approximately 243.45 acres of public land in Washington County.

(C–2910)

ELBERT COUNTY

T. 6 S., R. 57 W.,
Sec. 24, SE¼SE¼.
T. 13 S., R. 57 W.,
Sec. 27, SE¼SE¼.
T. 6 S., R. 58 W.,
Sec. 6, lot 4.
T. 13 S., R. 58 W.,
Sec. 26, NW¼SW¼.
T. 7 S., R. 62 W.,
Sec. 30, N½ of lot 2.
T. 8 S., R. 62 W.,
Sec. 14, NW¼NE¼.

The area involves approximately 266.83 acres of public land in Elbert County.

(C–2913)

LINCOLN COUNTY

T. 6 S., R. 52 W.,
Sec. 2, S½SE¼.
T. 13 S., R. 52 W.,
Sec. 28, NE¼NW¼, NW¼SE¼.
T. 11 S., R. 53 W.,
Sec. 2, lots 2 and 4.
T. 16 S., R. 54 W.,
Sec. 27, NW¼NE¼, NE¼NW¼.
T. 17 S., R. 54 W.,
Sec. 22, NW¼.
T. 15 S., R. 55 W.,
Sec. 26, SE¼SW¼, W½SE¼;
Sec. 35, N½.
T. 16 S., R. 55 W.,
Sec. 1, tracts 38, 39, 40, and 42;
Sec. 2, lots 1 and 2;
Secs. 30 and 31, tracts 53, 54, and 55;
Sec. 31, tract 57.
T. 17 S., R. 55 W.,
Sec. 1, lots 3 and 4;
Sec. 18, tracts 52 and 53.
T. 16 S., R. 56 W.,
Sec. 25, SE¼SE¼.
T. 17 S., R. 56 W.,
Sec. 3, W½SE¼;
Sec. 25, NE¼SW¼, S½SW¼.
T. 16 S., R. 57 W.,
Sec. 6, NE¼SE¼;
Sec. 7, lot 3, SE¼SE¼;
Sec. 17, NE¼NW¼.
T. 17 S., R. 57 W.,
Sec. 18, lot 3, NE¼NW¼;
Sec. 19, lot 3.
T. 14 S., R. 58 W.,
Sec. 2, NE¼SE¼.
T. 16 S., R. 58 W.,
Sec. 3, lot 2, SW¼NE¼;
Sec. 6, lots 3 and 4.
T. 17 S., R. 58 W.,
Sec. 14, SE¼NE¼;
Sec. 24, NE¼SE¼.
T. 17 S., R. 59 W.,
Sec. 35, E½.

The described land aggregates approximately 2,468.62 acres of public land in Lincoln County.

The total area described in this classification aggregates approximately 2,978.90 acres of public land.

E. I. ROWLAND,
State Director.

[F.R. Doc. 68–6583; Filed, June 4, 1968; 8:45 a.m.]

COLORADO

Notice of Proposed Classification of Public Lands

MAY 27, 1968.

1. Pursuant to the Act of September 19, 1964 (43 U.S.C. 1411–18), and to the regulations in 43 CFR, Parts 2410 and 2411, it is proposed to classify public lands described below for disposal through public sale under section 2455 of the Revised Statutes (43 U.S.C. 1171); the Public Land Sale Act of September 19, 1964 (43 U.S.C. 1421–27); and the Recreation and Public Purposes Act of June 14, 1926, as amended (43 U.S.C. 869; 869–1 to 869–4). As used herein "public lands" means any lands withdrawn or reserved by Executive Order No. 6910 of November 26, 1934, as amended, or within a grazing district established pursuant to the Act of June 28, 1934 (48 Stat. 1269) as amended, which are not otherwise withdrawn or reserved for Federal use or purpose.

2. Publication of this proposed classification segregates the lands from all forms of disposal under the public land laws including the mining laws, except the forms of disposal for which it is proposed to classify the land. However, publication does not alter the applicability of the public land laws governing the use of the lands under lease, license, or permit or disposal of their mineral and vegetative resources other than under the mining laws.

3. This proposal has been discussed with the local government officials; State Game, Fish and Parks; National Forest Service; Izaak Walton League; State Land Board; the District Advisory Board; and other interested parties. Information obtained from field data, discussions with the public and other sources indicate that these lands meet the criterion of 43 CFR 2410.1–3(a), which authorizes classification of lands for disposal under appropriate authority where such lands are found to be chiefly valuable for disposal, for grazing use and other values and which lands are not needed for the support of a Federal program.

4. The public lands proposed for classification are located within the following described area and are shown on maps on file in the Glenwood Springs District Office, Bureau of Land Management, Glenwood Springs, Colo., and at the Land Office, Bureau of Land Management, Room 15019, Federal Building, 1961 Stout Street, Denver, Colo. 80202. For a period of 60 days from date of this publication, interested parties may submit comments to the State Director, Bureau of Land Management, Federal Building, 1961 Stout Street, Denver, Colo. 80202.

SIXTH PRINCIPAL MERIDIAN, COLORADO

(C–2905)

YUMA COUNTY

T. 3 S., R. 42 W.,
Sec. 22, lot 3.
T. 5 S., R. 43 W.,
Sec. 11, lot 21;
Sec. 15, lot 13.
T. 5 S., R. 44 W.,
Sec. 22, lot 30;
Sec. 23, lot 25;
Sec. 28, lot 13;
Sec. 31, lot 16;
Sec. 32, lot 3.
T. 5 S., R. 45 W.,
Sec. 27, lots 12 and 13;
Sec. 31, lot 14;
Sec. 32, SW¼NE¼, SW¼SW¼.
T. 1 S., R. 46 W.,
Sec. 27, lots 13, 16.
T. 4 S., R. 46 W.,
Sec. 5, lot 1.
T. 3 N., R. 43 W.,
Sec. 24, NE¼NE¼;
Sec. 25, NE¼SE¼.

The area described aggregates approximately 378.12 acres of public land in Yuma County.

(C–2909)

DOUGLAS COUNTY

T. 9 S., R. 68 W.,
Sec. 28, NW¼NE¼.

The area described aggregates approximately 40 acres of public land in Douglas County.

(C–2911)

KIT CARSON COUNTY

T. 5½ S., R. 44 W.,
Sec. 32, SE¼SW¼.
T. 6 S., R. 44 W.,
Sec. 6, lot 1;
Sec. 14, SE¼SE¼;
Sec. 23, NE¼NE¼.
T. 11 S., R. 44 W.,
Sec. 5, lot 3.

The area described aggregates approximately 173.22 acres of public land in Kit Carson County.

(C–2912)

CHEYENNE COUNTY

T. 16 S., R. 45 W.,
Sec. 4, lot 12;
Sec. 22, lots 5 and 6;
Sec. 28, lots 5 and 6.
T. 16 S., R. 47 W.,
Sec. 2, lot 5.

The area described aggregates approximately 299.96 acres of public land in Cheyenne County.

The total area involved in this proposal aggregates approximately 891.30 acres of public land.

E. I. ROWLAND,
State Director.

[F.R. Doc. 68–6584; Filed, June 4, 1968; 8:45 a.m.]

[Idaho 015852]

IDAHO

Revocation of Small Tract Classification Order Opening Lands

Pursuant to authority delegated to me by Bureau Order No. 701, dated July 23, 1964 (29 F.R. 10526), Idaho Small Tract Classification Order No. 14 dated November 30, 1964 is hereby revoked in entirety.

The public lands affected by this order are hereby restored as of 10 a.m. on June 14, 1968, to the operation of the public land laws, subject to any valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law, rules and regulations.

ORVAL G. HADLEY,
Land Office Manager.

[F.R. Doc. 68-6631; Filed, June 4, 1968; 8:50 a.m.]

[M 8905]

MONTANA

Notice of Proposed Classification of Public Lands for Multiple-Use Management

MAY 28, 1968.

1. Pursuant to the Act of September 19, 1964 (43 U.S.C. 1411–18) and to the regulations in 43 CFR, 2410 and 2411, it is proposed to classify for multiple-use management the public lands within the areas described below, together with any lands therein which may become public lands in the future. As used herein, "public lands" means any lands withdrawn or reserved by Executive Order No. 6910 of November 26, 1934, as amended, or within a grazing district established pursuant to the Act of June 28, 1934 (48 Stat. 1269), as amended, which are not otherwise withdrawn or reserved for a Federal use or purpose.

2. Publication of this notice has the effect of segregating the lands described from appropriation only under the agricultural land laws (43 U.S.C. Parts 7 and 9; 25 U.S.C. sec. 334), and from sales under section 2455 of the Revised Statutes (43 U.S.C. 1171). The lands shall remain open to all other applicable forms of appropriation including the mining and mineral leasing laws.

3. The public lands are located within Fergus, Chouteau, and Judith Basin counties and are shown on maps on file in the Lewistown District Office, Bureau of Land Management, Lewistown, Mont., and in the Land Office, Federal Building, 316 North 26th Street, Billings, Mont.

The overall description of the Area is as follows:

PRINCIPAL MERIDIAN, MONTANA IN FERGUS, CHOUTEAU, AND JUDITH BASIN COUNTIES

BLOCK A

T. 20 N., R. 24 E.,
Secs. 1 to 6 inclusive;
Sec. 12, N½NE¼.
T. 21 N., R. 24 E.,
Secs. 19 to 36 inclusive.
T. 19 N., R. 25 E.,
Secs. 1, 12.
T. 20 N., R. 25 E.,
Secs. 1, 4, 5, and 6;
Sec. 13, S½;
Secs. 24, 25, and 26.
T. 21 N., R. 25 E.,
Secs. 19 to 36 inclusive.
T. 18 N., R. 26 E.,
Sec. 4, lots 2, 3, 4;
Sec. 5, lot 1.
T. 19 N., R. 26 E.,
Secs. 1 to 16 inclusive;
Secs. 20 to 24 inclusive;
Sec. 26, N½NW¼;
Secs. 28 to 33 inclusive.
T. 20 N., R. 26 E.
T. 19 N., R. 27 E.,
Secs. 6, 7, 18, and 19.
T. 20 N., R. 27 E.,
Secs. 6, 7, 18, 19, 30, and 31.

The public lands described in this block aggregate approximately 32,505 acres.

BLOCK B

T. 24 N., R. 8 E.,
That portion situated south of Missouri River.
T. 24 N., R. 9 E.,
Secs. 2, 3, and 4;
Secs. 8 to 12 inclusive;
Secs. 15 to 19 inclusive;
Sec. 30.
T. 25 N., R. 9 E.,
Sec. 33.
T. 24 N., R. 10 E.,
Secs. 4 to 7 inclusive.
T. 25 N., R. 10 E.,
Secs. 1 to 5 inclusive;
Secs. 8 to 12 inclusive;
Secs. 15 to 22 inclusive;
Secs. 27 to 34 inclusive.
T. 19 N., R. 11 E.,
Secs. 22 to 27 inclusive.
T. 25 N., R. 11 E.,
Secs. 6 and 7.
T. 26 N., R. 11 E.,
Secs. 9 to 17 inclusive;
Secs. 19 to 24 inclusive;
Secs. 28 to 31 inclusive.
T. 19 N., R. 12 E.,
Secs. 1 to 4 inclusive;
Secs. 9 to 17 inclusive;
Secs. 18, SE¼NE¼;
Secs. 19 to 22 inclusive;
Secs. 27 to 32 inclusive.
T. 20 N., R. 12 E.,
Sec. 34, SE¼SE¼.
T. 25 N., R. 12 E.,
Sec. 1.
T. 26 N., R. 12 E.,
Secs. 2 to 5 inclusive;
Secs. 7 to 13 inclusive;
Secs. 18, 19, 24, and 25;
Sec. 35, N½NE¼;
Sec. 36.
T. 19 N., R. 13 E.,
Secs. 1 to 10 inclusive;
Sec. 15, NW¼NW¼;
Secs. 16 to 18 inclusive.
T. 20 N., R. 13 E.,
Secs. 11 to 14 inclusive;
Secs. 23 to 26 inclusive;
Secs. 34 to 36 inclusive.
T. 24 N., R. 13 E.,
Secs. 3, 4, 5, 8, 9, 10, 16, and 17;
Sec. 18, NE¼SE¼, SE¼NE¼;
Secs. 20 to 29 inclusive;
Secs. 32 to 36 inclusive.
T. 25 N., R. 13 E.,
Secs. 4 to 9 inclusive;
Secs. 16 to 21 inclusive;
Secs. 28 to 34 inclusive.
T. 26 N., R. 13 E.,
Sec. 17, W½;
Secs. 18 and 19;
Secs. 29 to 32 inclusive.
T. 20 N., R. 14 E.,
Secs. 1 to 5 inclusive;
Secs. 7 to 22 inclusive;
Sec. 28, NW¼NW¼;
Secs. 29 to 31 inclusive.
T. 21 N., R. 14 E.,
Sec. 1, E½NE¼;
Sec. 13;
Sec. 14, SE¼SE¼;
Secs. 23 to 26 inclusive;
Secs. 34 to 36 inclusive.
T. 22 N., R. 14 E.,
Secs. 1 to 6 inclusive;
Secs. 9 to 14 inclusive;
Secs. 23 and 24.
T. 23 N., R. 14 E.,
That portion of the following sections situated south of Missouri River:
Secs. 4 to 17 inclusive;
Secs. 20 to 29 inclusive;
Secs. 31 to 36 inclusive.
T. 24 N., R. 14 E.,
That portion of the following sections situated south of Missouri River:
Secs. 30 and 31.
T. 20 N., R. 15 E.,
Secs. 3 to 10, inclusive;
Secs. 17 and 18;
Sec. 19, NW¼NW¼.
T. 21 N., R. 15 E.,
Secs. 4 to 9 inclusive;
Secs. 16 to 21 inclusive;
Secs. 28 to 33 inclusive.
Tps. 22 and 23 N., R. 15 E.,
That portion situated south of Missouri River.
T. 20 N., R. 16 E.,
Secs. 1 to 5 inclusive;
Sec. 8, N½;
Sec. 9, N½;
Sec. 10, N½;
Sec. 11, N½.
T. 21 N., R. 16 E.,
Secs. 1 to 4 inclusive;
Secs. 9 to 16 inclusive;
Secs. 21 to 29 inclusive;
Secs. 31 to 36 inclusive.
Tps. 22 and 23 N., R. 16 E.,
That portion situated south of the Missouri River.
T. 20 N., R. 17 E.,
Secs. 3 to 6 inclusive.
T. 21 N., R. 17 E.,
Secs. 5 to 8 inclusive;
Sec. 9, S½SW¼;
Secs. 17 to 21 inclusive;
Sec. 22, SE¼NW¼, SW¼, SW¼SE¼;
Sec. 27, N½NW¼;
Secs. 28 to 33 inclusive.
T. 22 N., R. 17 E.,
Secs. 1 to 34 inclusive.
T. 23 N., R. 17 E.,
That portion situated south of Missouri River.
T. 22 N., R. 18 E.,
Secs. 1 to 30 inclusive.
T. 23 N., R. 18 E.,
That portion situated south of Missouri River.
T. 22 N., R. 19 E.,
Secs. 3 to 7 inclusive;
Secs. 18 and 19;
Sec. 20, W½NW¼;
Sec. 30.
T. 23 N., R. 19 E.,
That portion of the following sections situated south of Missouri River.
Secs. 1, 2, 3, and 9;
Secs. 10 to 17 inclusive;
Secs. 19 to 24 inclusive;
Sec. 26, NW¼NE¼, NE¼NW¼, W½NW¼;
Secs. 27 to 34 inclusive.
T. 20 N., R. 20 E.,
Sec. 13, NE¼NE¼, SE¼SE¼.
T. 22 N., R. 20 E.,
Secs. 1 to 3 inclusive;
Secs. 10 to 12 inclusive.

T. 23 N., R. 20 E.,
That portion of the following sections situated south of Missouri River:
Secs. 1 and 2;
Secs. 5 to 27 inclusive;
Secs. 34 to 36 inclusive.
T. 19 N., R. 21 E.,
Secs. 1 to 3 inclusive;
Sec. 10, N½.
T. 20 N., R. 21 E.,
Secs. 1 to 3 inclusive;
Sec. 4, S½S½;
Secs. 7 to 28 inclusive;
Secs. 33 to 36 inclusive.
T. 21 N., R. 21 E.,
Secs. 1, 12, and 13;
Sec. 14, SE¼, S½NE¼;
Secs. 23 to 28 inclusive;
Secs. 33 to 36 inclusive.
T. 22 N., R. 21 E.,
Secs. 1 to 30 inclusive;
Sec. 34, NE¼SE¼;
Secs. 35 and 36.
Tps. 23 and 24 N., R. 21 E.,
That portion south of the Missouri River.
T. 20 N., R. 22 E.,
Secs. 1 to 8 inclusive;
Secs. 12, 17, 18, 19, and 20;
Secs. 29 and 30.
T. 21 N., R. 22 E.
T. 22 N., R. 22 E.
T. 23 N., R. 22 E.,
That portion situated south of Missouri River.
T. 20 N., R. 23 E.,
Secs. 1 to 12 inclusive;
Secs. 15 to 21 inclusive.
T. 21 N., R. 23 E.,
Secs. 19 to 36 inclusive.

The public lands described in this block aggregate approximately 192,144 acres.

BLOCK C

T. 20 N., R. 12 E.,
Sec. 19, E½E½, SW¼SE¼, S½SW¼;
Sec. 20;
Sec. 21, SW¼;
Sec. 28, W½;
Secs. 29 and 30.

The public lands described in this block aggregate approximately 1,946 acres.

BLOCK D

T. 18 N., R. 17 E.,
Sec. 13, S½S½;
Sec. 23, E½E½;
Secs. 24 and 25;
Sec. 26, N½;
Sec. 36.
T. 17 N., R. 18 E.,
Sec. 6, N½N½.
T. 18 N., R. 18 E.,
Sec. 17, S½S½;
Sec. 18, S½S½;
Secs. 19, 20, 29, 30, 31, and 32.

The public lands described in this block aggregate approximately 3,187 acres.

BLOCK E

T. 16 N., R. 17 E.,
Sec. 2, W½;
Sec 3;
Sec. 10, N½NE¼.
T. 17 N., R. 17 E.,
Sec. 34;
Sec. 35, W½W½.

The public land described in this block aggregate approximately 1,211 acres.

BLOCK F

T. 16 N., R. 19 E.,
Secs. 1 and 2;
Sec. 8, E½E½;
Sec. 9;
Secs. 11 to 26, inclusive;
Sec. 29, N½NW¼, SE¼NW¼.
T. 17 N., R. 19 E.,
Secs. 23 to 26, inclusive;
Secs. 35 and 36.
T. 16 N., R. 20 E.,
Secs. 3 to 9, inclusive;
Sec. 10, W½W½;
Sec. 17, W½W½;
Secs. 18 and 19;
Sec. 29, NW¼SW¼;
Sec. 30;
Sec. 31, W½NW¼.
T. 17 N., R. 20 E.,
Sec. 10, S½;
Sec. 11, S½S½, NW¼SW¼;
Sec. 12, S½S½;
Secs. 13 to 22 inclusive;
Sec. 23, N½, SW¼;
Sec. 27, NW¼, W½NE¼;
Secs. 28 to 33 inclusive.
T. 17 N., R. 21 E.,
Sec. 5, SW¼SE¼, SE¼SW¼;
Sec. 7, S½S½;
Secs. 8 to 10 inclusive;
Sec. 11, SW¼SW¼;
Sec. 15, W½NW¼;
Sec. 17, NW¼;
Sec. 18, N½S½, N½.

The public lands described in this block aggregate approximately 21,997 acres.

Total public domain lands within the areas described aggregate approximately 252,990 acres.

4. For a period of sixty (60) days from the date of publication of this notice in the FEDERAL REGISTER, all persons who wish to submit comments, suggestions, or objections in connection with the proposed classification may present their views in writing to the District Manager, Bureau of Land Management, Drawer 699, Lewistown, Mont. 59457.

5. A public hearing on the proposed classification will be held on June 14, 1968, at 2 p.m., in the Fergus County Courtroom, Lewistown, Mont.

HAROLD TYSK,
State Director.

[F.R. Doc. 68-6581; Filed, June 4, 1968; 8:45 a.m.]

[M 2147]

MONTANA

Notice of Classification of Public Lands for Multiple Use Management

MAY 28, 1968.

1. Pursuant to the Act of September 19, 1964 (43 U.S.C. 1411–18) and to the regulations in 43 CFR, 2410 and 2411, the public lands within the areas described below together with any lands therein which may become public lands in the future are classified for multiple use management. The described public lands are segregated from appropriation only under the agricultural land laws (43 U.S.C. Parts 7 and 9; 25 U.S.C. Sec. 334) and from sales under section 2455 of the Revised Statutes (43 U.S.C. 1171); and the lands shall remain open to all other applicable forms of appropriation including the mining and mineral leasing laws. As used herein, "public lands" means any lands withdrawn or reserved by Executive Order 6910 of November 26, 1934, as amended, or within a grazing district established pursuant to the Act of June 28, 1934 (48 Stat. 1269), as amended, which are not otherwise withdrawn or reserved for a Federal use or purpose.

2. One adverse comment was received following publication of the notice of proposed classification (33 F.R. 3287 and 3288, dated February 22, 1968). The comment did not present sufficient information to warrant a change in the classification. The public record on this classification is available for inspection at the Missoula District Office.

3. The overall description of the areas is as follows:

PRINCIPAL MERIDIAN, MONTANA

GRANITE COUNTY

T. 7 N., R. 13 W.,
Secs. 6, 7, 18, 19, 30, and 31.
T. 8 N., R. 13 W.,
Secs. 4, 9, 16, 17, 19, 20, 30, and 31.
T. 9 N., R. 13 W.,
Secs. 17, 31, and 32.
T. 5 N., R. 14 W.,
Sec. 18.
T. 6 N., R. 14 W.,
Sec. 12.
T. 7 N., R. 14 W.,
Secs. 1, 12, 13, 18, 19, 20, 24, 25, 30, and 36.
T. 8 N., R. 14 W.,
Secs. 24, 25, and 36.
T. 9 N., R. 14 W.,
Secs. 1, 2, 3, 6, 17, 20, 21, 26, 27, 31, 32, 33, 34, 35, and 36.
T. 5 N., R. 15 W.,
Secs. 6, 20, and 30.
T. 6 N., R. 15 W.,
Secs. 3, 4, 5, 6, 8, 9, 22, 23, 26, 27, 28, 30, 31, 34, and 35.
T. 7 N., R. 15 W.,
Secs. 2, 3, 5, 6, 7, 10, 11, 12, 13, 24, 25, and 32.
T. 8 N., R. 15 W.,
Secs. 5, 8, 17, 20, 21, 28, 29, and 32.
T. 6 N., R. 16 W.,
Secs. 25 and 36.
T. 7 N., R. 16 W.,
Secs. 3, 4, 5, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 23, 24, 25, and 26.

The public lands in the areas described aggregate approximately 22,600 acres.

4. For a period of thirty (30) days from the date of publication of this notice in the FEDERAL REGISTER, this classification shall be subject to the exercise of administrative review by the Secretary of Interior as provided for in 43 CFR 2411.2c.

HAROLD TYSK,
State Director.

[F.R. Doc. 68-6585; Filed, June 4, 1968; 8:45 a.m.]

[N-145]

NEVADA

Order Opening Lands to Mineral Location, Entry and Patenting; Correction

MAY 27, 1968.

In Federal Register Document 68-5264, appearing at page 6748 in the issue of Thursday, May 2, 1968, the following lands should have been included in paragraph 2:

T. 39 N., R. 61 E.,
Sec. 5, E½;
Secs. 7, 11.
T. 38 N., R. 62 E.,
Sec. 21.

A. JOHN HILLSAMER,
Acting Land Office Manager.

[F.R. Doc. 68-6586; Filed, June 4, 1968; 8:45 a.m.]

[N–1525]

NEVADA

Notice of Proposed Classification of Public Lands for Multiple Use Management

MAY 27, 1968.

1. Pursuant to the Act of September 19, 1964 (43 U.S.C. 1411–18) and to the regulations in 43 CFR, Parts 2410 and 2411, it is proposed to classify for multiple use management, the public lands described in paragraph 3 below.

2. Publication of this notice has the effect of segregating all of the public lands described in paragraph 3 of this notice from appropriation only under the agricultural land laws (43 U.S.C. Chs. 7 and 9; 25 U.S.C. Sec. 334) and the lands shall remain open to all other applicable forms of appropriation, including the mining laws and mineral leasing and material sale laws, with the exception contained in paragraph 4. As used in this notice, the term "public lands" means any lands withdrawn or reserved by Executive Order No. 6910 of November 26, 1934, as amended, or within a grazing district established pursuant to the Act of June 28, 1934 (48 Stat. 1269), as amended, which are not otherwise withdrawn or reserved for a Federal use or purpose.

3. The public lands proposed to be classified are shown on Map No. N–1525 on file in the Las Vegas District Office, Bureau of Land Management, 1859 North Decatur Boulevard, Las Vegas, Nev., and the Nevada Land Office, Bureau of Land Management, Federal Building, 300 Booth Street, Reno, Nev.

The lands are generally described as follows:

All public lands in Esmeralda County with the exception contained in paragraph 5 below.

The public lands described above aggregate approximately 1,918,796 acres.

4. As provided in paragraph 2 above, the following lands are segregated from all applicable forms of appropriation, including the general mining laws, but not the Recreation and Public Purposes Act (44 Stat. 741, 68 Stat. 173; 43 U.S.C. 869) or the mineral leasing and material sale laws:

MOUNT DIABLO MERIDIAN, NEVADA

T. 2 S., R. 34 E.,
Sec. 9, N½SW¼, SW¼SW¼, SE¼NW¼.
Indian Creek Camp;
T. 6 S., R. 40 E.,
Sec. 7, SE¼NE¼. Lida Summit.

The area described above aggregates approximately 200 acres.

5. As provided in paragraph 3 above, the following described lands, located in Fish Lake Valley, are not included as part of this proposed classification. These lands will remain open to all applicable forms of appropriation, including the general mining laws:

MOUNT DIABLO MERIDIAN, CALIFORNIA

T. 3 S., R. 35 E.,
Sec. 22, All, in Nevada;
Sec. 26, All, in Nevada;
Sec. 27, All, in Nevada;
Sec. 35, All, in Nevada;
Sec. 36, All, in Nevada.

T. 5 S., R. 37 E.,
Sec. 4, All, in Nevada;
Sec. 9, Lot 1, NW¼NE¼, S½NE¼;
Sec. 10, Lots 1 to 6, inclusive, NW¼SW¼, S½SW¼;
Sec. 14, Lots 1 to 5, inclusive, SW¼, SW¼SE¼;
Sec. 15, All, in Nevada;
Sec. 23, All, in Nevada.

MOUNT DIABLO MERIDIAN, NEVADA

T. 1 S., R. 34 E.,
Sec. 20, NE¼NE¼, SW¼, S½SE¼;
Sec. 21, N½N½SE¼, SE¼SE¼;
Sec. 22 to 24, inclusive;
Sec. 25, N½N½, S½;
Sec. 26, NE¼NE¼, S½;
Sec. 27, S½;
Sec. 28, Lots 1 to 8, inclusive, S½NE¼, SE¼NW¼;
Sec. 29, NW¼NW¼, SE¼SW¼, SE¼;
Secs. 32 to 36, inclusive.

T. 2 S., R. 34 E.,
Sec. 1, Lots 1 to 4, inclusive, S½S½, NE¼SE¼;
Sec. 2, Lots 1 to 4, inclusive, SW¼NE¼, S½NW¼, SW¼, S½SE¼;
Sec. 3, All, partially surveyed;
Sec. 4, All, unsurveyed;
Sec. 9, E½, N½NW¼, SW¼NW¼, SE¼SW¼, unsurveyed;
Sec. 10, All, unsurveyed;
Sec. 11, All, partially surveyed;
Sec. 12, All;
Sec. 13, All;
Sec. 14, All, unsurveyed;
Sec. 23, All, unsurveyed;
Sec. 24, All;
Sec. 25, All;
Sec. 26, All, partially surveyed;
Sec. 36, All.

T. 3 S., R. 34 E.,
Sec. 1, All, unsurveyed;
Sec. 12, All, unsurveyed.

T. 1 S., R. 35 E.,
Secs. 1 to 8, inclusive;
Sec. 9, E½, W½NW¼, NW¼SW¼;
Secs. 10 to 15, inclusive;
Sec. 16, NE¼, W½;
Secs. 17 to 21, inclusive;
Sec. 22, N½, SW¼, N½SE¼;
Sec. 23, N½, N½S½, SE¼SE¼;
Sec. 24, All;
Sec. 25, E½, NE¼SW¼, S½SW¼;
Sec. 28, N½N½, S½SW¼, SW¼SE¼;
Sec. 29, N½N½, S½S½;
Sec. 30, N½N½, SW¼, S½SE¼;
Sec. 31, All;
Sec. 32, All;
Sec. 33, N½, SW¼, NW¼SE¼;
Sec. 34, SE¼NE¼, N½NW¼, NE¼SW¼, S½SW¼, SE¼;
Sec. 35, S½N½, S½;
Sec. 36, All.

T. 2 S., R. 35 E.,
Secs. 1 and 2;
Sec. 3, Lots 1 and 2, S½N½, N½SW¼, SE¼;
Sec. 4, Lot 4, SW¼NW¼, SW¼, W½SE¼;
Secs. 5 to 12, inclusive;
Sec. 13, NE¼NE¼, W½NE¼, NW¼;
Sec. 14, All;
Sec. 15, E½, NW¼NW¼, NW¼SW¼, S½SW¼;
Secs. 16 to 20, inclusive;
Sec. 21, N½NE¼, W½, W½SE¼;
Sec. 23, W½NE¼, NW¼, N½SW¼, NW¼SE¼;
Sec. 24, NE¼NE¼, S½NE¼, SE¼;
Sec. 25, E½, E½NW¼, NE¼SW¼, S½SW¼;
Sec. 26, SE¼SE¼;
Sec. 28, NW¼, N½SW¼, SW¼SW¼;
Sec. 29 to 32, inclusive;
Sec. 33, S½NW¼, SW¼;
Sec. 35, E½NE¼, SW¼NE¼, E½SW¼, SE¼;
Sec. 36, All.

T. 3 S., R. 35 E.,
Sec. 1, All;
Sec. 2, Lots 1, 2, and 3, S½NE¼, SE¼NW¼, E½SW¼, SE¼;
Sec. 4, Lots 3 and 4, SW¼NW¼, NW¼SW¼, S½SW¼;
Sec. 5 to 8, All;
Sec. 9, NW¼NE¼, NW¼, NW¼SW¼, S½SW¼;
Sec. 11, E½, E½NW¼;
Sec. 12 to 13, All;
Sec. 14, N½NE¼, SE¼NE¼;
Sec. 16, Lot 1, NW¼, N½SW¼, SE¼SW¼, SW¼SE¼;
Sec. 17, All;
Sec. 21, All;
Sec. 22, Lot 1, SW¼NE¼, NW¼, N½SW¼, SE¼SW¼, SE¼;
Sec. 24, E½, E½NW¼;
Sec. 25, NE¼, E½SE¼;
Sec. 27, Lots 1, 2, 3, and 4, N½NE¼, SE¼NE¼;
Sec. 36, Lots 1, 2, and 3, E½, NE¼SW¼.

T. 4 S., R. 35 E.,
Sec. 1, Lots 1, 2, 3, and 4, NE¼, N½NE¼NW¼, SW¼NE¼NW¼, W½SE¼NE¼NW¼, NW¼NW¼, SE¼NW¼, N½SE¼, NW¼, NW¼NW¼, SE¼NW¼, N½SE¼, SE¼SE¼;
Sec. 2, Lots 1, 2, and 3;
Sec. 12, Lot 1.

T. 1 S., R. 36 E.,
Sec. 5 to 8, inclusive;
Sec. 17 to 19, inclusive;
Sec. 20, N½NE¼, NE¼NW¼, NW¼SW¼, S½S½;
Sec. 30, All;
Sec. 31, All.

T. 2 S., R. 36 E.,
Sec. 5 and 6;
Sec. 7, Lots 1, 2, 3, and 4, NW¼NE¼, E½NW¼, NE¼SW¼, E½SE¼;
Sec. 8, E½, E½NW¼, SW¼NW¼, SW¼;
Sec. 18, E½ SE¼NW¼ E½SW¼.

T. 3 S., R. 36 E.,
Sec. 18 to 20, inclusive;
Sec. 28, All, unsurveyed;
Sec. 29 to 31, inclusive;
Sec. 32, E½E½, NW¼NE¼, W½W½;
Sec. 33, All;
Sec. 34, All, unsurveyed.

T. 4 S., R. 36 E.,
Sec. 3, N½, N½SW¼, N½SE¼SW¼, N½SW¼SE¼SW¼, SE¼SW¼SE¼SW¼, SE¼;
Sec. 4, N½N½, SE¼NE¼, NE¼SE¼;
Sec. 5, N½NW¼, SE¼NW¼;
Sec. 6, Lots 1, 2, 3, and 4, NE¼, E½NW¼, NE¼SW¼, N½SE¼SW¼, SW¼SE¼SW¼, N½SE¼SE¼SW¼;
Sec. 7, Lots 3, 5 through 16, W½NE¼NE¼NE¼, NW¼NE¼NE¼, S½NE¼NE¼, NE¼NW¼NE¼, SW¼NW¼NE¼, N½SE¼NW¼NE¼, S½, NE¼NE¼NW¼, W½NW¼NE¼NW¼, S½NE¼NW¼, SE¼NW¼;
Sec. 8, Lots 1, 2, and 3, E½E½, N½NW¼, SE¼NW¼;
Sec. 9, SW¼;
Sec. 10, E½, E½NW¼NW¼, NE¼NW¼NW¼, NE¼NW¼NE¼NW¼, S½NW¼NE¼NW¼, S½NE¼NW¼, SE¼NW¼, NE¼SW¼, S½SW¼;
Sec. 15, NE¼, NE¼SE¼;
Sec. 16, SW¼NE¼, W½;
Sec. 17, All;
Sec. 18, All;
Sec. 20, All;
Sec. 21, All;
Sec. 22, W½E½, SW¼;
Sec. 23, E½NW¼, NW¼NW¼, NE¼SW¼;
Sec. 26, All;
Sec. 27, All;
Sec. 28, All;
Sec. 35, Lots 1, 2 3, and 4;
Sec. 36, Lots 1 through 6, N½, NE¼SW¼, N½SE¼.

T. 4 S., R. 37 E.,
Sec. 31 and 32, inclusive, unsurveyed.

T. 5 S., R. 37 E.,
Sec. 4, W½W½, unsurveyed;
Sec. 5, All, unsurveyed;
Sec. 6, All, unsurveyed;
Sec. 8, All, unsurveyed;
Sec. 9, W½W½, unsurveyed.

The public lands described above aggregate approximately 89,434 acres.

6. For a period of 60 days from the date of publication of this notice in the FEDERAL REGISTER, all persons who wish to submit comments, suggestions, or objections in connection with the proposed classification may present their views in writing to the District Manager, Bureau of Land Management, 1859 North Decatur Boulevard, Las Vegas, Nev. 89108.

7. A public hearing on the proposed classification will be held on July 10, 1968, at 7 p.m., in the courtroom of the Esmeralda County Courthouse, Goldfield, Nev.

For the State Director.

ROLLA E. CHANDLER,
Manager, Nevada Land Office.

[F.R. Doc. 68-6587; Filed, June 4, 1968; 8:45 a.m.]

DEPARTMENT OF COMMERCE

Bureau of International Commerce

[File No. 22(68)-9]

PIERRE M. STEVENS

Order Temporarily Denying Export Privileges

In the matter of Pierre M. Stevens, 55 West 85th Street, New York, N.Y. 10024, Respondent, File No. 22(68)-9.

The Director, Investigations Division, Office of Export Control, Bureau of International Commerce, U.S. Department of Commerce, pursuant to the provisions of § 382.11 of the Export Regulations (Title 15, Chapter III, Subchapter B, Code of Federal Regulations), has applied to the Compliance Commissioner for an order temporarily denying export privileges to the above named respondent. The Compliance Commissioner has reviewed the application and evidence presented in support thereof and has submitted his report and has recommended that the application be granted.

On the evidence presented there is reasonable basis to believe the following: The respondent Pierre M. Stevens is a Belgian national and a resident of New York; he arranged with two suppliers of strategic electronic equipment in New York to purchase various items of such equipment having a total value of approximately $62,000; he took delivery from said suppliers in New York of approximately $13,000 worth of such equipment; all of said equipment required validated licenses for exportation from the United States and the respondent knew of this requirement; notwithstanding said knowledge respondent on March 12 and 13, 1968, placed said equipment on a pier in New York for exportation by ocean going vessel without having applied for or obtained from the Department of Commerce the required export licenses; in connection with said transaction respondent made false statements in a Shipper's Export Declaration in that he described the goods as personal effects and household goods; the respondent's attempted exportation was discovered and the exportation was prevented. The evidence presented further shows that on March 25, 1968, an indictment was returned against said respondent in the U.S. District Court for the Southern District of New York charging said respondent with violations of the Export Control Act and Regulations thereunder and with making false statements in a Shipper's Export Declaration in connection with the above described transaction.

On the evidence presented I find that an order temporarily denying export privileges to the respondent is reasonably necessary for the protection of the public interest and national security pending final disposition of the above mentioned criminal proceedings and administrative proceedings which will follow after the issuance of a charging letter by the Director, Investigations Division, Office of Export Control, against said respondent.

Accordingly, it is hereby ordered:

I. All outstanding validated export licenses in which respondent appears or participates, in any manner or capacity, are hereby revoked and shall be returned forthwith to the Bureau of International Commerce for cancellation.

II. The respondent, his representatives, agents, and employees hereby are denied all privileges of participating, directly or indirectly, in any manner or capacity, in any transaction involving commodities or technical data exported from the United States in whole or in part, or to be exported, or which are otherwise subject to the Export Regulations. Without limitation of the generality of the foregoing, participation prohibited in any such transaction, either in the United States or abroad, shall include participation, directly or indirectly, in any manner or capacity, (a) as a party or as a representative of a party to any validated export license application; (b) in the preparation or filing of any export license application or reexportation authorization, or any document to be submitted therewith; (c) in the obtaining or using of any validated or general export license or other export control document; (d) in the carrying on of negotiations with respect to, or in the receiving, ordering, buying, selling, delivering, storing, using, or disposing of any commodities or technical data in whole or in part, exported or to be exported from the United States; and (e) in the financing, forwarding, transporting or other servicing of such commodities or technical data.

III. Such denial of export privileges shall extend not only to the respondent, but also to his representatives, agents, and employees and to any person, firm, corporation, or business organization with which he now or hereafter may be related by affiliation, ownership, control, position of responsibility, or other connection in the conduct of trade or services connected therewith.

IV. This order shall take effect forthwith and shall remain in effect until the criminal proceedings now pending against said respondent in the U.S. District Court for the Southern District of New York are finally disposed of, and also until administrative compliance proceedings which will follow after the issuance of a charging letter against said respondent have been completed.

V. No person, firm, corporation, partnership, or other business organization, whether in the United States or elsewhere, without prior disclosure to and specific authorization from the Bureau of International Commerce, shall do any of the following acts, directly or indirectly, or carry on negotiations with respect thereto, in any manner or capacity, on behalf of or in any association with said respondent, or whereby said respondent may obtain any benefit therefrom or have any interest or participation therein, directly or indirectly: (a) Apply for, obtain, transfer, or use any license, Shipper's Export Declaration, bill of lading, or other export control document relating to any exportation, reexportation, transshipment, or diversion of any commodity or technical data exported or to be exported from the United States, by, to, or for said respondent or (b) order, buy, receive, use, sell, deliver, store, dispose of, forward, transport, finance, or otherwise service or participate in any exportation, reexportation, transshipment, or diversion of any commodity or technical data exported or to be exported from the United States.

VI. A copy of this order shall be served upon the respondent.

VII. In accordance with the provisions of § 382.11(c) of the Export Regulations, the respondent may move at any time to vacate or modify this temporary denial order by filing an appropriate motion therefor, supported by evidence, with the Compliance Commissioner, Bureau of International Commerce, Washington, D.C. 20230, and may request an oral hearing thereon which, if requested, shall be held before the Compliance Commissioner in Washington, D.C., at the earliest convenient date.

Dated: May 28, 1968.

RAUER H. MEYER,
Director,
Office of Export Control.

[F.R. Doc. 68-6566; Filed, June 4, 1968; 8:45 a.m.]

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Food and Drug Administration

FMC CORP.

Notice of Filing of Petition Regarding Pesticide Chemicals

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec.

408(d)(1), 68 Stat. 512; 21 U.S.C. 346a(d)(1)), notice is given that a petition (PP 8F0723) has been filed by the FMC Corp., Middleport, N.Y. 14105, proposing the establishment of tolerances for residues of the insecticide endosulfan in or on the raw agricultural commodities lettuce and soybeans at 2 parts per million.

The analytical method proposed in the petition for determining residues of the insecticide is a microcoulometric-gas chromatographic procedure.

Dated: May 24, 1968.

R. E. DUGGAN,
Acting Associate Commissioner for Compliance.

[F.R. Doc. 68-6604; Filed, June 4, 1968; 8:48 a.m.]

SUCCINIC ACID 2,2-DIMETHYLHYDRAZIDE

Notice of Establishment of Temporary Tolerance

Notice is given that at the request of the Uniroyal Chemical Division of Uniroyal, Inc., Bethany, Conn. 06525, a temporary tolerance of 30 parts per million is established for residues of the plant growth regulator succinic acid 2,2-dimethylhydrazide in or on peanuts. The Commissioner of Food and Drugs has determined that this temporary tolerance will protect the public health.

A condition under which this temporary tolerance is established is that the plant growth regulator will be used in accordance with the temporary permit issued by the U.S. Department of Agriculture. Distribution will be under the Uniroyal name.

This temporary tolerance expires May 24, 1969.

This action is taken pursuant to the authority vested in the Secretary of Health, Education, and Welfare by the Federal Food, Drug, and Cosmetic Act (sec. 408(j), 68 Stat. 516; 21 U.S.C. 346a(j)) and delegated to the Commissioner (21 CFR 2.120).

Dated: May 24, 1968.

J. K. KIRK,
Associate Commissioner for Compliance.

[F.R. Doc. 68-6605; Filed, June 4, 1968; 8:48 a.m.]

2 - METHYL - 2 - (METHYLTHIO)PROPIONALDEHYDE O - (METHYLCARBAMOYL)OXIME

Notice of Extension of Temporary Tolerance

A temporary tolerence of 0.2 part per million for residues of the insecticide 2 - methyl - 2 (methylthio) propionaldehyde *O*-(methylcarbamoyl)oxime in or on cottonseed and potatoes was established at the request of the Union Carbide Corp., 270 Park Avenue, New York, N.Y. 10017. This temporary tolerance expired on April 22, 1967. The company has requested an extension of the temporary tolerance in or on cottonseed only to permit additional tests in accordance with the temporary permit issued by the U.S. Department of Agriculture.

The Commissioner of Food and Drugs has determined that extension of this temporary tolerance will protect the public health; therefore, an extension of the temporary tolerance, for cottonseed only, has been granted that will expire May 24, 1969.

This action is taken pursuant to the authority vested in the Secretary of Health, Education, and Welfare by the Federal Food, Drug, and Cosmetic Act (sec. 408(j), 68 Stat. 516; 21 U.S.C. 346a(j)) and delegated to the Commissioner (21 CFR 2.120).

Dated: May 24, 1968.

R. E. DUGGAN,
Acting Associate Commissioner for Compliance.

[F.R. Doc. 68-6606; Filed, June 4, 1968; 8:48 a.m.]

DEPARTMENT OF THE TREASURY

Office of Foreign Assets Control

COTTON MANUFACTURES

Importation From the U.S.S.R.

The Office of Foreign Assets Control, Treasury Department, will issue licenses for the importation into the United States from the U.S.S.R. of cotton piece goods and other cotton manufactures. Applications for such licenses should be filed on form TFAC-1 with the Foreign Assets Control Division, Federal Reserve Bank of New York, 33 Liberty Street, New York, N.Y. 10045.

The licenses will not authorize any entry or withdrawal from warehouse of any cotton products which are affected by section 204 of the Agricultural Act of 1956, 70 Stat. 200, as amended by Public Law 87-488, June 19, 1962, 76 Stat. 104 (7 U.S.C.A. 1854), if such entry or withdrawal from warehouse is prohibited by the aforesaid act as amended, or any directive which has been or may hereafter be issued thereunder. Applicants for licenses may wish to obtain further information with respect to the abovementioned restrictions from the Chairman, Interagency Textile Administrative Committee, Department of Commerce, Washington, D.C.

[SEAL] MARGARET W. SCHWARTZ,
Director, Foreign Assets Control.

[F.R. Doc. 68-6613; Filed, June 4, 1968; 8:49 a.m.]

ATOMIC ENERGY COMMISSION

CESIUM-137

Increase in Price

On November 10, 1965, the Commission reduced prices on cesium-137 and other fission product radioisotopes to levels below then existing AEC full costs for their production and distribution. This action was taken as a means of market stimulation prior to construction and operation of a then planned private fission products conversion and encapsulation plant. Subsequently plans for this private plant were canceled.

The Commission has determined that the current cesium-137 price schedule is inadequate to recover AEC full costs for this radioisotope even at the full capacity of existing AEC cesium-137 conversion and encapsulation facilities which are primarily developmental facilities. Accordingly, the Commission is now proposing to increase the cesium-137 price to levels designed to recover AEC full costs. The present and proposed price schedules are as follows:

Present price schedule		Proposed price schedule	
Order size (curies)	Unit price ($/curie)	Order size (curies)	Unit price ($/curie)
0-10,000	0.50	0-50,000	3.00
10,001-50,000	.45	50,001-200,000	2.00
50,001-200,000	.35	Over 200,000	.85
Over 200,000	.125		

Should the Commission make a final determination to increase cesium-137 prices, all orders accepted prior to the publication date of this notice in the FEDERAL REGISTER for delivery before June 30, 1969 will be billed at the present cesium-137 price schedule.

All interested persons who desire to submit written comments for consideration in connection with the Commission's proposed increase in cesium-137 prices should send them to the Secretary, U.S. Atomic Energy Commission, Washington, D.C. 20545 within 30 days after publication of this notice in the FEDERAL REGISTER. Comments received after that period will be considered if it is practicable to do so, but assurance of consideration cannot be given except as to comments filed within the period specified.

The Commission will make a final decision on the proposed cesium-137 price increase following receipt and evaluation of public comments.

(Sec. 161, 68 Stat. 948; 42 U.S.C. 2201)

Dated at Washington, D.C. this 28th day of May 1968.

For the Atomic Energy Commission.

W. B. MCCOOL,
Secretary.

[F.R. Doc. 68-6564; Filed, June 4, 1968; 8:45 a.m.]

[Docket No. 50-267]

PUBLIC SERVICE COMPANY OF COLORADO

Notice of Hearing on Application for a Provisional Construction Permit

Pursuant to the Atomic Energy Act of 1954, as amended (the Act) and the regulations in Title 10, Code of Federal Regulations, Part 50, Licensing of Production and Utilization Facilities, and Part 2, Rules of Practice, notice is hereby given

that a hearing will be held at 10 a.m., local time, on July 16, 1968, in the Weld County Courthouse, Ninth Avenue and Ninth Street, Greeley, Colo., to consider the application filed under section 104b of the Act by Public Service Company of Colorado (Fort St. Vrain Nuclear Generating Station) (the applicant) for a provisional construction permit for a high temperature gas-cooled reactor designed to operate at 837 megawatts (thermal) to be located at the applicant's site in Weld County, Colo., about 3½ miles northwest of Platteville, Colo.

The hearing will be conducted by the Atomic Safety and Licensing Board designated by the Atomic Energy Commission consisting of Dr. David B. Hall, Los Alamos, N. Mex.; Mr. Hood Worthington, Wilmington, Del.; and Arthur W. Murphy, Esq., Chairman, New York, N.Y. Dr. Clark Goodman, Houston, Tex., has been designated as a technically qualified alternate.

A prehearing conference will be held by the Board at 10 a.m., local time, on July 2, 1968, in the Weld County Courthouse, Ninth Avenue and Ninth Street, Greeley, Colo., to consider the matters provided for consideration by § 2.752 of 10 CFR Part 2 and section II of Appendix A to 10 CFR Part 2.

The Director of Regulation proposes to make affirmative findings on Item Nos. 1–3 and a negative finding on Item 4 specified below as the basis for the issuance of a provisional construction permit to the applicant substantially in the form proposed in Appendix A hereto.

1. Whether in accordance with the provisions of 10 CFR 50.35(a):

(a) The applicant has described the proposed design of the facility, including, but not limited to, the principal architectural and engineering criteria for the design, and has identified the major features or components incorporated therein for the protection of the health and safety of the public;

(b) Such further technical or design information as may be required to complete the safety analysis and which can reasonably be left for later consideration, will be supplied in the final safety analysis report;

(c) Safety features or components, if any, which require research and development have been described by the applicant and the applicant has identified, and there will be conducted, a research and development program reasonably designed to resolve any safety questions associated with such features or components; and

(d) On the basis of the foregoing, there is reasonable assurance that (i) such safety questions will be satisfactorily resolved at or before the latest date stated in the application for completion of construction of the proposed facility, and (ii) taking into consideration the site criteria contained in 10 CFR Part 100, the proposed facility can be constructed and operated at the proposed location without undue risk to the health and safety of the public;

2. Whether the applicant is technically qualified to design and construct the proposed facility;

3. Whether the applicant is financially qualified to design and construct the proposed facility; and

4. Whether the issuance of a permit for the construction of the facility will be inimical to the common defense and security or to the health and safety of the public.

In the event that this proceeding is not a contested proceeding, as defined by § 2.4 of the Commission's rules of practice, 10 CFR Part 2, the Board will, without conducting a de novo evaluation of the application, consider the issues of whether the application and the record of the proceeding contain sufficient information, and the review by the Commission's regulatory staff has been adequate, to support the findings proposed to be made and the provisional construction permit proposed to be issued by the Director of Regulation.

In the event that this proceeding becomes a contested proceeding, the Board will consider and initially decide, as the issues in this proceeding, Item Nos. 1 through 4 above as the basis for determining whether the provisional construction permit should be issued to the applicant.

As they become available, the application, the report of the Commission's Advisory Committee on Reactor Safeguards (ACRS) and the Safety Evaluation by the Commission's regulatory staff will be placed in the Commission's Public Document Room, 1717 H Street NW., Washington, D.C., where they will be available for inspection by members of the public. Copies of the ACRS report and the regulatory staff's Safety Evaluation may be obtained by request to the Director of the Division of Reactor Licensing, U.S. Atomic Energy Commission, Washington, D.C. 20545.

Any person who wishes to make an oral or written statement in this proceeding setting forth his position on the issues specified, but who does not wish to file a petition for leave to intervene, may request permission to make a limited appearance pursuant to the provisions of § 2.715 of the Commission's rules of practice. Limited appearances will be permitted at the time of the hearing in the discretion of the Board, within such limits and on such conditions as may be fixed by the Board. Persons desiring to make a limited appearance are requested to inform the Secretary, United States Atomic Energy Commission, Washington, D.C. 20545, by June 27, 1968.

Any person whose interest may be affected by the proceeding who does not wish to make a limited appearance and who wishes to participate as a party in the proceeding must file a petition for leave to intervene.

Petitions for leave to intervene, pursuant to the provisions of § 2.714 of the Commission's rules of practice, must be received in the Office of the Secretary, U.S. Atomic Energy Commission, Germantown, Md., or the Commission's Public Document Room, 1717 H Street NW., Washington, D.C., not later than June 27, 1968, or in the event of a postponement of the prehearing conference, at such time as the Board may specify.

The petition shall set forth the interest of the petitioner in the proceeding, how that interest may be affected by Commission action and the contentions of the petitioner. A petition for leave to intervene which is not timely filed will be denied unless the petitioner shows good cause for failure to file it on time.

A person permitted to intervene becomes a party to the proceeding, and has all the rights of the applicant and the regulatory staff to participate fully in the conduct of the hearing. For example, he may examine and cross-examine witnesses. A person permitted to make a limited appearance does not become a party, but may state his position and raise questions which he would like to have answered to the extent that the questions are within the scope of the hearing as specified in the issues set out above. A member of the public does not have the right to participate unless he has been granted the right to intervene as a party or the right of limited appearance.

An answer to this notice, pursuant to the provisions of § 2.705 of the Commission's rules of practice, must be filed by the applicant on or before June 27, 1968.

Papers required to be filed in this proceeding may be filed by mail or telegram addressed to the Secretary, U.S. Atomic Energy Commission, Washington, D.C. 20545, or may be filed by delivery to the Office of the Secretary, U.S. Atomic Energy Commission, Germantown, Md., or the Commission's Public Document Room, 1717 H Street NW., Washington, D.C.

Pending further order of the Board, parties are required to file, pursuant to the provisions of § 2.708 of the Commission's rules of practice, an original and twenty conformed copies of each such paper with the Commission.

Dated at Washington, D.C., this 28th day of May 1968.

UNITED STATES ATOMIC ENERGY COMMISSION,
W. B. McCOOL,
Secretary.

APPENDIX A

PUBLIC SERVICE COMPANY OF COLORADO (FORT ST. VRAIN NUCLEAR GENERATING STATION)

[Docket No. 50-267]

PROVISIONAL CONSTRUCTION PERMIT

Construction Permit No. ------

1. Pursuant to section 104b of the Atomic Energy Act of 1954, as amended (the Act), and Title 10, Chapter 1, Code of Federal Regulations, Part 50, "Licensing of Production and Utilization Facilities", and pursuant to the order of the Atomic Safety and Licensing Board, the Atomic Energy Commission (the Commission) hereby issues a provisional construction permit to Public Service Company of Colorado (the applicant), for a utilization facility (the facility), designed to operate at 837 megawatts (thermal), described in the application and amendments thereto (the application) filed in this matter by the applicant and as more fully described in the evidence received at the public hearing upon St. Vrain Nuclear Generating Station, will be located at the applicant's site in Weld

County, Colo., about 3½ miles northwest of Platteville, Colo.

2. This permit shall be deemed to contain and be subject to the conditions specified in §§ 50.54 and 50.55 of said regulations; is subject to all applicable provisions of the Act, and rules, regulations, and orders of the Commission now or hereafter in effect; and is subject to the conditions specified or incorporated below:

A. The earliest date for the completion of the facility is October 1, 1970, and the latest date for completion of the facility is October 31, 1971.

B. The facility shall be constructed and located at the site as described in the application, in Weld County, Colo., about 3½ miles northwest of Platteville, Colo.

C. This construction permit authorizes the applicant to construct the facility described in the application and the hearing record in accordance with the principal architectural and engineering criteria set forth therein.

3. This permit is provisional to the extent that a license authorizing operation of the facility will not be issued by the Commission unless (a) the applicant submits to the Commission, by amendment to the application, the complete final safety analysis report, portions of which may be submitted and evaluated from time to time; (b) the Commission finds that the final design provides reasonable assurance that the health and safety of the public will not be endangered by the operation of the facility in accordance with procedures approved by it in connection with the issuance of said license; and (c) the applicant submits proof of financial protection and the execution of an indemnity agreement as required by section 170 of the Act.

For the Atomic Energy Commission.

[F.R. Doc. 68-6565; Filed, June 4, 1968; 8:45 a.m.]

CIVIL AERONAUTICS BOARD

[Docket No. 18650; Order No. E-26854]

INTERNATIONAL AIR TRANSPORT ASSOCIATION

Order Regarding Specific Commodity Rates

Issued under delegated authority May 29, 1968.

An agreement has been filed with the Board pursuant to section 412(a) of the Federal Aviation Act of 1958 (the Act) and Part 261 of the Board's economic regulations, between various air carriers, foreign air carriers, and other carriers, embodied in the resolutions of the Joint Conferences of the International Air Transport Association (IATA), and adopted pursuant to the provisions of Resolution 590 dealing with specific commodity rates.

The agreement, adopted pursuant to unprotested notices to the carriers and promulgated in an IATA letter dated May 15, 1968, names additional specific commodity rates, as set forth below, which reflects significant reductions from the general cargo rates.

R-21:

Commodity Item 9513—Handicraft Products, Namely Textiles, Metal, Wood, Cork, Straw, Wicker, Leather, Clay, Ceramic, Stone, and Glass Articles. 168 cents per kg., minimum weight 100 kgs. 150 cents per kg., minimum weight 200 kgs. Karachi to East Coast.

R-22:

Commodity Item 2418—Shoes and Slippers, Shoe and Slipper Soles, Heels and Uppers—Excluding any other parts thereof. 58 cents per kg., minimum weight 500 kgs. Budapest to New York.

Pursuant to authority duly delegated by the Board in the Board's Regulations, 14 CFR 385.14, it is not found that the subject agreement is adverse to the public interest or in violation of the Act, provided that approval thereof is conditioned as hereinafter ordered.

Accordingly, it is ordered, That:

Agreement CAB 20125, R-21 and R-22, be approved, provided approval shall not constitute approval of the specific commodity descriptions contained therein for purposes of tariff publication.

Persons entitled to petition the Board for review of this order, pursuant to the Board's Regulations, 14 CFR 385.50, may file such petitions within 10 days after the date of service of this order.

This order shall be effective and become the action of the Civil Aeronautics Board upon expiration of the above period, unless within such period a petition for review thereof is filed or the Board gives notice that it will review this order on its own motion.

This order will be published in the FEDERAL REGISTER.

[SEAL] HAROLD R. SANDERSON, *Secretary.*

[F.R. Doc. 68-6621; Filed, June 4, 1968; 8:49 a.m.]

[Docket No. 18650; Order No. E-26856]

INTERNATIONAL AIR TRANSPORT ASSOCIATION

Order Regarding Specific Commodity Rates

Issued under delegated authority May 31, 1968.

An agreement has been filed with the Board pursuant to section 412(a) of the Federal Aviation Act of 1958 (the Act) and Part 261 of the Board's economic regulations, between various air carriers, foreign air carriers, and other carriers, embodied in the resolutions of the Joint Conferences of the International Air Transport Association (IATA), and adopted pursuant to the provisions of Resolution 590 dealing with specific commodity rates.

The agreement, adopted pursuant to unprotested notices to the carriers and promulgated in an IATA letter dated May 24, 1968, names additional specific commodity rates, as set forth in the attachment hereto,[1] which reflect significant reductions from the general cargo rates.

Pursuant to authority duly delegated by the Board in the Board's Regulations, 14 CFR 385.14, it is not found that the subject agreement is adverse to the public interest or in violation of the Act, provided that approval thereof is conditioned as hereinafter ordered.

Accordingly, it is ordered, That:

Agreement CAB 20125, R-23 through R-27, be approved, provided approval shall not constitute approval of the specific commodity descriptions contained therein for purposes of tariff publication.

Persons entitled to petition the Board for review of this order, pursuant to the Board's Regulations, 14 CFR 385.50, may file such petitions within 10 days after the date of service of this order.

This order shall be effective and become the action of the Civil Aeronautics Board upon expiration of the above period, unless within such period a petition for review thereof is filed or the Board gives notice that it will review this order on its own motion.

This order will be published in the FEDERAL REGISTER.

[SEAL] HAROLD R. SANDERSON, *Secretary.*

[F.R. Doc. 68-6622; Filed, June 4, 1968; 8:49 a.m.]

[Docket No. 18650; Order No. E-26857]

INTERNATIONAL AIR TRANSPORT ASSOCIATION

Order Regarding Specific Commodity Rates

Issued under delegated authority May 31, 1968.

An agreement has been filed with the Board pursuant to section 412(a) of the Federal Aviation Act of 1958 (the Act) and Part 261 of the Board's economic regulations, between various air carriers, foreign air carriers, and other carriers, embodied in the resolutions of Traffic Conference 1 of the International Air Transport Association (IATA), and adopted pursuant to the provisions of Resolution 590 dealing with specific commodity rates.

The agreement, adopted pursuant to unprotested notices to the carriers and promulgated in an IATA letter dated May 24, 1968, names additional specific commodity rates, as set forth in the attachment hereto,[1] which reflect significant reductions from the general cargo rates.

Pursuant to authority duly delegated by the Board in the Board's regulations, 14 CFR 385.14, it is not found that the subject agreement is adverse to the public interest or in violation of the Act: *Provided*, That approval thereof is conditioned as hereinafter ordered.

Accordingly, it is ordered, That:

Agreement CAB 20107, R-19 through R-21, be approved, provided approval shall not constitute approval of the specific commodity descriptions contained therein for purposes of tariff publication.

Persons entitled to petition the Board for review of this order, pursuant to the Board's regulations, 14 CFR 385.50, may file such petitions within 10 days after the date of service of this order.

[1] Attachment filed as part of the original document.

[1] Attachment filed as part of the original document.

This order shall be effective and become the action of the Civil Aeronautics Board upon expiration of the above period, unless within such period a petition for review thereof is filed or the Board gives notice that it will review this order on its own motion.

This order will be published in the FEDERAL REGISTER.

[SEAL] HAROLD R. SANDERSON,
Secretary.

[F.R. Doc. 68-6623; Filed, June 4, 1968; 8:49 a.m.]

DELAWARE RIVER BASIN COMMISSION

COMPREHENSIVE PLAN

Notice of Public Hearing

Notice is hereby given that the Delaware River Basin Commission will hold a public hearing on Wednesday, June 26, 1968. The hearing will take place in the Auditorium of the American Society for Testing and Materials, 1916 Race Street, Philadelphia, Pa., beginning at 1:30 p.m. The hearing will be on the following subjects:

1. A proposal to amend section X of the Comprehensive Plan so as to include therein the following statement of policy:

It shall be the policy of the Commission to promote and encourage planning for regional solutions to regional water pollution problems. The use of water pollution control facilities providing optimum combinations of efficiency, reliability, and service area will be required throughout the Delaware River Basin to the maximum extent feasible. The Commission will cooperate with industries and State, county, and municipal agencies seeking a regional solution to regional water pollution problems. The Commission may provide planning, constructing, financing, and operating services required for regional solutions to water pollution problems where other appropriate agencies do not provide such services.

2. A proposal to amend the Commission's Administrative Manual, Part II, rules of practice and procedure, to include the following:

(a) The use of regional solutions to water pollution problems, with the least number of separate treatment plants which may be efficient in the particular circumstances, is required whenever feasible. Each waste treatment project shall be submitted to the Commission not later than the completion of preliminary engineering for review of its compliance with this and other requirements of the Comprehensive Plan.

(b) In reviewing the projects for compliance with this section, the Commission will consider the following matters, comparing regional versus separate treatment facilities:

(1) Construction costs and economies of various scales of development;

(2) Operating costs and economies of various scales of operation;

(3) Capability of handling industrial wastes with and without pretreatment;

(4) Capability to assimilate high peak flows and temporary shock loads or emergency conditions;

(5) Space and facilities for sludge disposal;

(6) Personnel skills required and their availability for operation and supervision;

(7) Capacity to absorb growth;

(8) Desirability of the site selection alternatives for the treatment plant in view of considerations of efficiency of land use, potential service area, and relative transmission distances;

(9) The effect for a reasonable distance downstream on the quality of the receiving waters; and

(10) Effectiveness of the proposal in identifying all sources of pollution, and in achieving a coordinated, comprehensive, and orderly plan for abatement of pollution in the region.

(c) A preliminary engineering report shall accompany each application and shall include factual findings and conclusions with respect to items (1) through (8) above.

(d) For the purpose of this regulation, "a region" is defined to mean one or more drainage areas or parts thereof. A "regional solution" is one which is based upon a feasibility study of the region for which a single system of sewage collection and treatment would be physically and economically feasible.

All those desiring to testify are requested to notify the Secretary to the Commission no later than 12 noon on June 25, (609) 883-9500.

W. BRINTON WHITALL,
Secretary.

MAY 29, 1968.

[F.R. Doc. 68-6624; Filed, June 4, 1968; 8:50 a.m.]

FEDERAL COMMUNICATIONS COMMISSION

[Docket No. 16258, 15011; FCC 68M-850]

AMERICAN TELEPHONE AND TELEGRAPH CO.

Order Regarding Procedural Dates

In the matter of American Telephone and Telegraph Co. and the Associated Bell System Companies, Docket No. 16258, charges for interstate and foreign communication service; in the matter of American Telephone and Telegraph Co., Docket No. 15011, charges, practices, classifications, and regulations for and in connection with Teletypewriter Exchange Service.

The Telephone Committee having under consideration the matters presented at the hearing conference herein on May 28, 1968 (as more fully set forth in the transcript summary); and recognizing the practical necessity of amending the prior orders and notices establishing further procedural dates relating to a disposition of that portion of this case which deals with rate-making principles and factors;

It is ordered, That all parties other than Respondents shall distribute, in written form, their proposed direct testimony on rate-making principles and factors on or before July 22, 1968; and

It is further ordered, That hearing sessions shall commence at the Commission's offices in Washington, D.C., at 10 a.m., on September 25, 1968 for the purpose of examining witnesses sponsoring the aforementioned testimony.

Issued: May 28, 1968.

Released: May 29, 1968.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 68-6625; Filed, June 4, 1968; 8:50 a.m.]

[Docket No. 17234 etc.; FCC 68-544]

CATV OF ROCKFORD, INC., ET AL.

Memorandum Opinion and Order Instituting a Hearing

In re petitions by: CATV of Rockford, Inc., Rockford, Ill., Docket No. 17234, File Nos. CATV 100-23, 100-39; Rockford Community Television, Inc., Loves Park, Ill., Docket No. 17235, File No. CATV 100-68; TV Cable Company of Stephenson County, Freeport, Ill., Docket No. 17236, File No. CATV 100-105; Beloit Community Television Services, Inc., Beloit, Wis., Docket No. 17237, File No. CATV 100-92; Television Wisconsin, Inc., Whitewater, Wis., Docket No. 17238, File No. CATV 100-26; Whitewater Cable Corp., Whitewater, Wis., Docket No. 17239, File No. CATV 100-37; Jefferson Cable Corp., Jefferson, Wis., Docket No. 17240, File No. CATV 100-51; Total TV, Inc., Janesville, Wis., Docket No. 17241, File No. CATV 100-13; Complete Channel TV, Inc., Madison, Wis., Docket No. 18190, File No. CATV 100-200; Soundvision, Inc., Dixon, Ill., Docket No. 18191, File No. CATV 100-255; GT&E Communications, Inc., Portage, Wis., Docket No. 18192, File No. CATV 100-291; for authority pursuant to § 74.1107 of the rules to operate CATV systems in the Milwaukee, Wis., Market (ARB 24), Madison, Wis., Market (ARB 88) and Rockford, Ill., Market (ARB 97).

1. The Commission has before it for consideration the last three above-captioned petitions for authority pursuant to section 74.1107 of the rules to import distant television signals on CATV systems in the Madison, Wis. (CATV 100-200; 100-291), or the Rockford, Ill. (CATV 100-255), television markets. Channel assignments in the Madison market, currently ranked 88th with a 1966 net weekly circulation of 230,400, and their status are:

Madison—3 (CBS), 15 (NBC), *21 (Educ.), 27 (ABC), and 47 (Idle).
Janesville, Wis.—57 (CP).

Channel assignments in the Rockford market (ARB 97, total net weekly circulation 184,700) and their status are:

Rockford—13 (ABC), 17 (NBC), and 39 (Idle);
Freeport, Ill.—23 (CBS), *65 (Idle);
De Kalb, Ill.—*48 (Idle);
Janesville, Wis.—57 (CP).

2. The CATV proposals now under consideration and the oppositions raised to said proposals are as follows:

Complete Channel TV, Inc. (*CATV 100–200*) proposes CATV service for Madison, Wis. (126,706), the principal city of the 88th television market, located in Dane County (222,095), about 75 miles west of Milwaukee, 55 miles north of Rockford (and Freeport) and 125 miles northwest of Chicago. The system would carry the following signals:

LOCAL

Channels:	
3 (CBS)	Madison, Wis.
15 (NBC)	Do.
27 (ABC)	Do.
*21 (Educ.)	Do.
13 (ABC)	Rockford, Ill.

DISTANT

Channels:	
17 (NBC)	Rockford, Ill.
23 (CBS)	Freeport-Rockford, Ill.
9 (Indep.)	Chicago, Ill.
26 (Indep.)	Do.
32 (Indep.)	Do.
18 (Indep.)	Milwaukee, Wis.[1]

Complete Channel's petition is actually a request that its proposal to carry distant signals on its Madison system be consolidated with similar requests already designated for hearing by the Commission in Docket Nos. 17234, et al. See CATV of Rockford, Inc., FCC 67–248, 7 FCC 2d 219.[2] Petitioner, whose stockholders include the licensees of Channels 3 and 27 in Madison, states that Commission approval of its Madison proposal without an evidentiary hearing appears unlikely in view of the Commission's earlier action concerning Madison market proposals and that consolidation of its request would serve administrative efficiency since the Madison proposal involves substantially the same issues as those already designated for hearing. Complete Channel asserts that carriage of the distant signals would be in the public interest and would be consistent with the maintenance of local area television service by providing: (1) Diversity of programing; (2) improved picture quality, especially color reception; and (3) aid to future local commercial and educational stations in the form of a CATV audience. No pleadings in response to the Madison proposal are on file.

GT&E Communications, Inc. (*CATV 100–291*) intends to operate a CATV system at Portage, a Wisconsin community of 7,822 in Columbia County (36,708), some 35 miles north of Madison and 90 miles north of Rockford. The Portage system would carry the following signals:

LOCAL

Channels:	
3 (CBS)	Madison, Wis.
15 (NBC)	Do.
27 (ABC)	Do.
*21 (Educ.)	Do.

DISTANT

Channels:	
6 (ABC)	Milwaukee, Wis.
4 (NBC)	Do.
2 (CBS)	Green Bay, Wis.
5 (NBC)	Do.
7 (CBS)	Wausau, Wis.
9 (ABC)	Do.

In support of its Portage proposal, petitioner claims that there is no likelihood of harm to local television broadcast service, existing or potential, from the operation of its system since: (1) The community is small and is removed from the viewing center of the Madison market; and (2) the distant signals proposed for carriage are all network signals and would, by virtue of the nonduplication provisions of the Commission's rules, cause no harm to local stations or to the potential for local independent service. GT&E cites the Commission's prior action in regard to market proposals for communities which, like Portage, are removed from the market's viewing center and which allegedly pose a greater threat of harm to local UHF through carriage of a distant independent signal.

In opposition to the GT&E request, the licensee of channel 3 (CBS) in Madison, itself the proponent of CATV systems in Madison and Whitewater, also notes the earlier Commission action and suggests that the Portage proposal should be consolidated into the existing hearing. Although Channel 3 concedes that the GT&E request is distinguishable from other market proposals in that it attempts to import only duplicating network signals from in-State markets, Channel 3 asserts that the Madison market is well-served and is in no need of multiple network signals from other Wisconsin markets. The licensee of Channel 15 (NBC) in Madison also opposes and argues that the Madison stations will not be protected against the nonnetwork programing of the distant signals and that the cumulative effect of CATV systems within its service area will further aggravate the imbalance presently suffered by the UHF stations in the intermixed Madison market; that the Commission's earlier authorization of carriage of the distant Milwaukee independent signal on Madison market systems was an attempt to equalize UHF–VHF competition in the Milwaukee market and that the same situation is not present in regard to the Portage proposal. In reply, GT&E states that: (1) In its earlier action on Madison market proposals, the Commission ordered hearing only in regard to plans to carry distant Chicago independents; (2) the CATV rules provide adequate protection for local network affiliates; (3) Channel 15 has not shown the unique quality of, or the extent of reliance upon, the nonnetwork programs of the distant stations and has not made an effort to equate GT&E's proposal with a potential loss in advertising revenues on its part and a resultant degradation of programing service.

Soundvision, Inc. (*CATV 100–255*) would provide CATV service to Dixon, Ill. (19,565), the county seat of Lee County (38,749), located about 35 miles southwest of Rockford, 32 miles southeast of Freeport, 90 miles south of Madison and 95 miles west of Chicago. The proposed Dixon system would carry the following signals:

LOCAL

Channels:	
13 (ABC)	Rockford, Ill.
17 (NBC)	Do.
23 (CBS)	Freeport-Rockford, Ill.
4 (CBS)	Quad Cities: Rock Island, Ill.
8 (ABC)	Moline, Ill.
6 (NBC)	Davenport, Iowa.

DISTANT

Channels:	
3 (CBS)	Madison, Wis.
2 (CBS)	Rock Island, Ill.
5 (NBC)	Do.
7 (ABC)	Do.
*11 (Educ.)	Do.
9 (Indep.)	Do.
26 (Indep.)	Do.
32 (Indep.)	Do.

Soundvision claims that carriage of the distant signals is essential to the CATV system's viability and, in support of its contention that the Dixon proposal will enhance prospects for competitive UHF services in the Rockford market, notes that: (1) Although Dixon is within the Grade B contours of the Rockford UHFs, neither UHF station is credited with net weekly circulation in more than 24 percent of the television homes in Lee County; (2) television viewing is already fragmented by multiple off-air services (e.g., the Quad Cities' stations show net weekly circulation in more than 50 percent of Lee County television homes while several Chicago VHFs enjoy circulation similar to the Rockford UHFs); (3) CATV would equalize the receivability of the Rockford UHFs with the Quad Cities and Rockford VHFs and would actually reduce the fragmentation of the Rockford UHFs audience since carriage of the Chicago network stations would be subject to § 74.1103 requirements; (4) Dixon is an incorporated political subdivision without television allocations some 35 miles outside the Rockford city limits and census areas and is in a district separate from Rockford for State and Federal representation; and (5) in view of Dixon's location and small size, existing and future UHFs would be only minimally dependent on the community for support. Soundvision also claims that the existing Rockford stations do not rely upon the television

[1] Petitioner also requests authority to carry the distant signal of Channel 24 (CP–Indep.), Milwaukee, when that station becomes operational. Public Notice–G, Report No. 60, Mimeo. No. 99183, released Apr. 21, 1967.

[2] The Hearing Examiner, in Docket Nos. 17234 et al., granted a petition for leave to intervene, filed by Complete Channel, in a memorandum of ruling, FCC 67M–811, released May 16, 1967, and made petitioner a party to the consolidated proceeding.

homes in Dixon as an essential part of the Rockford market and that past Commission decisions in Susquehanna Broadcasting Co., FCC 67-391, 7 FCC 2d 578; Fetzer Cable Vision, FCC 67-223, 6 FCC 2d 845; and Unicable, Inc., FCC 67-63, 6 FCC 2d 771, support approval of the Dixon proposal.

The licensee of Channel 32, Chicago, suggests that the importation of distant independent programing might deprive local UHF of programing sources and that the question should be explored in hearing. In opposition to the Dixon proprosal, Channel 17 (NBC) in Rockford contends that Soundvision's allegations actually point up the competitive disadvantage suffered by UHF in the market which would worsen with the introduction of distant signals, especially the independent and educational Chicago signals, into such a sizable community. In its statement, Channel 13 (ABC) in Rockford, itself the part owner of a system in Loves Park, Ill., suggests consolidation of the Dixon proposal with other market requests to assess their cumulative impact and contends that Dixon is served by the Rockford market and cannot be equally associated with Chicago. Soundvision replies that Channel 13's UHF competitors in the market do not provide Grade A signals to Dixon; that four commercial Chicago stations each had a larger share of audience in Lee County than did Rockford's dominant UHF station, Channel 17 (NBC), even though Rockford has 96 percent UHF set conversion; that restriction of the proposed system would disrupt actual market conditions rather than preserve the status quo and would not aid in curing inherent UHF competitive disadvantages; that a system on the fringe of the market would assist UHF development; and that Channel 23 (CBS), Freeport-Rockford, has not opposed the Soundvision proposal.

3. We have carefully considered these proposals in light of the existing and proposed television service in the two markets. However, we are unable to make a determination on the basis of the pleadings that the proposals if implemented would have no adverse impact on television broadcast service. Accordingly, we will designate these petitions for hearing pursuant to § 74.1107 of the rules for the development of a full factual record on this matter.

Accordingly, it is ordered, That the petition filed by Complete Channel TV, Inc. on April 17, 1967 (CATV 100-200), is granted, and the requests of GT&E Communications, Inc. (CATV 100-291) and Soundvision, Inc. (CATV 100-255) for waiver of the hearing provisions of § 74.1107 of the rules are denied, and pursuant to Sections 4(i), 303, and 307(b) of the Communications Act of 1934, as amended, and § 74.1107 of the rules a hearing is ordered as to the proposals of GT&E Communications, Inc. (CATV 100-291), Soundvision, Inc. (CATV 100-255) and Complete Channel TV, Inc. (CATV 100-200) to be consolidated with hearing in Docket Nos. 17234, 17235, 17236, 17237, 17238, 17239, 17240, and 17241 on the following issues:

1. To determine the present and proposed penetration and extent of CATV service in the Madison-Milwaukee-Rockford television markets.

2. To determine the effects of current and proposed CATV service in the Madison-Milwaukee-Rockford markets upon existing, proposed and potential television broadcast stations in the markets.

3. To determine (a) the present policy and proposed future plans of petitioners with respect to the furnishing of any service other than the relay of the signals of broadcast stations; (b) the potential for such services; and (c) the impact of such services upon television broadcast stations in the markets.

4. To determine in light of the above whether the proposals are consistent with the public interest.

GT&E Communications, Inc., Soundvision, Inc., and Television Chicago, A Joint Venture (WFLD), Channel 32, Chicago) are made parties to this proceeding and, to participate, must comply with the applicable provisions of § 1.221 of the Commission's rules. The burden of proof is upon the petitioners. A time and place for hearing will be specified in another order. Complete Channel TV, Inc., has already been made a party to the consolidated proceeding in Docket Nos. 17234 et al., by the Hearing Examiner in a memorandum of ruling, FCC 67M-811, released May 16, 1967, and, therefore, need not comply with the provisions of § 1.221 of the rules.

Adopted: May 15, 1968.

Released: May 29, 1968.

FEDERAL COMMUNICATIONS COMMISSION,[3]
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 68-6626; Filed, June 4, 1968; 8:50 a.m.]

[Docket No. 16928 etc.; FCC 68-573]

CALIFORNIA WATER AND TELEPHONE CO. ET AL.

Order Placing Additional Tariff Under Investigation

In the matter of California Water and Telephone Co., Docket No. 16928, tariff FCC No. 1 and Tariff FCC No. 2 applicable to channel service for use by Community Antenna Television Systems; In the matter of the Associated Bell System Companies, Docket No. 16943, tariffs for channel service for use by Community Antenna Television Systems; In the matter of the General Telephone System, and United Utilities, Inc. Companies, Docket No. 17098, tariffs for channel service for use by Community Antenna Television Systems.

1. The Commission has under consideration a pleading titled "Petition to Suspend or Reject," which was filed on May 17, 1968, by the California Public Utilities Commission. In it, the California Commission asks for the suspension of Tariff FCC No. 1 of the Western California Telephone Co.,[1] which was issued on May 1, 1968, and which is to become effective on May 31, 1968.

2. The California Commission gives as grounds for suspension the failure of the subject tariff to contain the following provisions: A minimum service period of 10 years or more, a deposit requirement, a provision for interest on said deposit, a provision stating that rates shall be sufficient to recover expenses plus a rate of return not less than that earned on new items of specialized telephone equipment, a supporting exhibit to be filed with the tariff, and separate rates for different types of construction.

3. The tariff here in question is substantially identical in all material respects to the tariff which was issued by California Water and Telephone Co. (Cal Water) as a result of this Commission's directive in the Memorandum Opinion and Order of December 21, 1966, 6 FCC 2d 175. The Cal Water tariff (FCC No. 3) was issued on March 29, 1967, and became effective without suspension on April 28, 1967. On October 1, 1967, Cal Water's tariff was canceled because of a merger of that company with General Telephone Company of California, and since that time the said wide spectrum services have been provided under General Telephone Company of California's Tariff FCC No. 1. The latter tariff is presently effective, and it is also similar in all of its material provisions to the new tariff of Western California Telephone Co. Although Cal Water's tariff and the succeeding tariff of General Telephone Company of California were allowed to become effective without suspension, these tariffs and the services rendered under them remained under investigation in this Commission's consolidated proceeding in Docket Nos. 16928, 16943, and 17098.

4. We are of the opinion that the California Commission has not presented any overriding and compelling reasons of necessity for the suspension of the tariff of Western California Telephone Co. Moreover, no present basis appears for its rejection. Nevertheless, this tariff should be placed under investigation with the other tariffs of a similar nature which are already under investigation in the aforementioned consolidated proceeding, and Western California Telephone Co. should be joined as a party-respondent thereto. We are also cognizant of the section 214 issue now before us. Should we determine that authority under that section is required for the facilities involved the tariff may then be subject to rejection.

Accordingly, it is ordered, That the "Petition to Suspend or Reject" of the

[3] Commissioner Hyde, Chairman; Loevinger and Wadsworth absent; Commissioner Bartley dissenting and issuing statement. Statement filed as part of the original document.

[1] A subsidiary of General Telephone and Electronics Corp.

California Public Utilities Commission is denied; and

It is further ordered, That Western California Telephone Co. is joined as party-respondent to the consolidated proceeding in Docket Nos. 16928, 16943, and 17098, under the issues applicable to the other parties to that proceeding, and that company's Tariff FCC No. 1 is accordingly placed under investigation.

Adopted: May 29, 1968.

Released: May 31, 1968.

FEDERAL COMMUNICATIONS COMMISSION,[2]
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 68-6627; Filed, June 4, 1968; 8:50 a.m.]

[Docket No. 18197; FCC 68M-849]

THIRESIA SPIROPOULOU

Order Advancing Hearing

In the matter of Thiresia Spiropoulou, 1028 North Emerson Street, Portland, Oreg. 97217, Docket No. 18197, order to shown cause why the license for radio station KRC-0535 in the Citizens Radio Services should not be revoked.

On the Hearing Examiner's own motion;

It is ordered, That the hearing now scheduled for September 13, 1968, is advanced to September 11, 1968, at 9 a.m. in Portland, Oreg.

Issued: May 28, 1968.

Released: May 29, 1968.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 68-6628; Filed, June 4, 1968; 8:50 a.m.]

FEDERAL MARITIME COMMISSION

ATLANTIC & GULF/PANAMA CANAL ZONE, COLON & PANAMA CITY CONFERENCE ET AL.

Notice of Petition Filed for Approval

Notice is hereby given that the following petition has been filed with the Commission for approval pursuant to section 14b of the Shipping Act, 1916, as amended (75 Stat. 762, 46 U.S.C. 814).

Interested parties may inspect a copy of the current contract forms and of the petition, reflecting the changes proposed to be made in the language of said contracts, at the Washington Office of the Federal Maritime Commission, 1321 H Street NW., Room 609; or at the offices of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to the proposed changes and the petition, including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C. 20573, within 20 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the petition (as indicated hereinafter), and the comments should indicate that this has been done.

Notice of Application to modify approved dual rate contracts filed by:

Mr. C. D. Marshall, Chairman, 11 Broadway, New York, N.Y. 10004.

There has been filed on behalf of the conferences listed below an application to modify their approved merchant's contracts.

Atlantic & Gulf/Panama Canal Zone, Colon & Panama City Conference (Agreement No. 3868, as amended).
Atlantic & Gulf/West Coast of Central America & Mexico Conference (Agreement No. 8300, as amended).
Atlantic & Gulf/West Coast of South America Conference (Agreement No. 2744, as amended).
East Coast Colombia Conference (Agreement No. 7590, as amended).
Leeward & Windward Islands & Guianas Conference (Agreement No. 7540, as amended).
United States Atlantic & Gulf-Jamaica Conference (Agreement No. 8120, as amended).
United States Atlantic & Gulf-Jamaica Conference (Agreement No. 4610, as amended).
United States Atlantic & Gulf-Santo Domingo Conference (Agreement No. 6080, as amended).
United States Atlantic & Gulf-Venezuela and Netherlands Antilles Conference (Agreement No. 6190, as amended).

The proposed contract modifications add the phrase "currency devaluation by governmental action" to those conditions beyond the control of the conferences as outlined in Article 10(a) of the contracts pursuant to which the carriers in the trade covered by the agreements may suspend the effectiveness of the contract with respect to the operations affected with notice to Merchant signatories. Under existing Article 10(b), currency devaluation will be one of the conditions beyond the control of the carriers under which they may increase rates on not less than 15 days written notice to the Merchant who retains the right to notify the carriers in writing of his intent to suspend the contract insofar as such increase is concerned.

Dated: May 29, 1968.

By order the Federal Maritime Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 68-6567; Filed, June 4, 1968; 8:45 a.m.]

HAVANA STEAMSHIP CONFERENCE ET AL.

Notice of Petition Filed for Approval

Notice is hereby given that the following petition has been filed with the Commission for approval pursuant to section 14b of the Shipping Act, 1916, as amended (75 Stat. 762, 46 U.S.C. 814).

Interested parties may inspect a copy of the current contract forms and of the petition, reflecting the changes proposed to be made in the language of said contracts, at the Washington Office of the Federal Maritime Commission, 1321 H Street NW., Room 609; or at the offices of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to the proposed changes and the petition, including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C. 20573, within 20 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the petition (as indicated hereinafter), and the comments should indicate that this has been done.

Notice of application to modify approved dual rate contracts filed by:

Mr. C. D. Marshall, Chairman, 11 Broadway, New York, N.Y. 10004.

There has been filed on behalf of the conferences listed below in the Cuban trade an application to modify their approved merchant's contracts.

Havana Steamship Conference (Agreement No. 4189, as amended).
Havana Northbound Rate Agreement (No. 7550, as amended).
Santiago de Cuba Conference (Agreement No. 7650, as amended).

The proposed contract modifications add the phrase "currency devaluation by governmental action" to those conditions beyond the control of the conferences as outlined in Article 10(a) of the contracts pursuant to which the carriers in the trade covered by the agreements may suspend the effectiveness of the contract with respect to the operations affected with notice to Merchant signatories. Under existing Article 10(b), currency devaluation will be one of the conditions beyond the control of the carriers under which they may increase rates on not less than 15 days written notice to the Merchant who retains the right to notify the carriers in writing of his intent to suspend the contract insofar as such increase is concerned.

Dated: May 29, 1968.

By order of the Federal Maritime Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 68-6568; Filed, June 4, 1968; 8:45 a.m.]

NORTH ATLANTIC WESTBOUND FREIGHT ASSOCIATION

Notice of Petition Filed for Approval

Notice is hereby given that the following petition has been filed with the Commission for approval pursuant to section 14b of the Shipping Act, 1916, as amended (75 Stat. 762, 46 U.S.C. 814).

Interested parties may inspect a copy of the current contract form and of the

[2] Commissioners Loevinger and Wadsworth absent. Commissioner Johnson concurring in the result.

petition, reflecting the changes proposed to be made in the language of said contract, at the Washington office of the Federal Maritime Commission, 1321 H Street NW., Room 609, or at the offices of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to the proposed changes and the petition, including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C. 20573, within 20 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the petition (as indicated hereinafter), and the comments should indicate that this has been done.

Notice of application to modify an approved Exclusive Patronage (Dual Rate) Contract filed by:

Mr. Arthur L. Bryan, Director, Atlantic Freight Secretaries, Ltd., Cunard Building, Liverpool 3, England.

There has been filed on behalf of the North Atlantic Westbound Freight Association (Agreement No. 5850, as amended), an application to modify its form of merchant's contract, pursuant to section 14b of the Shipping Act, 1916, to provide that in the event of a devaluation of at least 5 percent in any of the currencies capable of being used for payment of freight as compared to such other currencies, the carriers may increase rate or rates affected thereby in order to meet such conditions. Such increase or increases shall be on not less than 15 days' written notice to the contractors who may notify the carriers in writing of their intent to suspend the contract insofar as such increase or increases are concerned.

Dated: May 29, 1968.

By order of the Federal Maritime Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 68-6570; Filed, June 4, 1968; 8:45 a.m.]

ATLANTIC AND GULF-INDONESIA CONFERENCE

Notice of Petition Filed for Approval

Notice is hereby given that the following petition has been filed with the Commission for approval pursuant to section 14b of the Shipping Act, 1916, as amended (75 Stat. 762, 46 U.S.C. 814).

Interested parties may inspect a copy of the current contract form and of the petition, reflecting the changes proposed to be made in the language of said contract, at the Washington office of the Federal Maritime Commission, 1321 H Street NW., Room 301; or at the offices of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to the proposed changes and the petition, including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C. 20573, within 20 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the petition (as indicated hereinafter), and the comments should indicate that this has been done.

Notice of application to modify an approved dual rate contract filed by:

Mr. J. F. Nash, Chairman, Atlantic and Gulf-Indonesia Conference, 11 Broadway, New York, N.Y. 10004.

The Atlantic and Gulf-Indonesia Conference, Agreement 8080, has filed with the Commission an application to modify its approved form of exclusive patronage contract under section 14b of the Shipping Act, 1916. The proposed modification would include "currency devaluations by governmental action" as a force majeure circumstance warranting suspension of the system pursuant to Article 14(a) of the contract; or an appropriate increase in rates in lieu of suspension pursuant to Article 14(b) subject to the terms and conditions enumerated therein.

Dated: May 31, 1968.

By order of the Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 68-6634; Filed, June 4, 1968; 8:50 a.m.]

ATLANTIC AND GULF-SINGAPORE, MALAYA, AND THAILAND CONFERENCE

Notice of Petition Filed for Approval

Notice is hereby given that the following petition has been filed with the Commission for approval pursuant to section 14b of the Shipping Act, 1916, as amended (75 Stat. 762, 46 U.S.C. 814).

Interested parties may inspect a copy of the current contract form and of the petition, reflecting the changes proposed to be made in the language of said contract, at the Washington office of the Federal Maritime Commission, 1321 H Street NW., Room 301; or at the offices of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to the proposed changes and the petition, including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C. 20573, within 20 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the petition, (as indicated hereinafter), and the comments should indicate that this has been done.

Notice of application to modify an approved dual rate contract filed by:

Mr. James F. Nash, Chairman, Atlantic and Gulf-Singapore, Malaya, and Thailand Conference, 11 Broadway, New York, N.Y. 10004.

The Atlantic and Gulf-Singapore, Malaya, and Thailand Conference, Agreement 8240, has filed with the Commission an application to modify its approved form of exclusive patronage contract under section 14b of the Shipping Act, 1916. The proposed modification would include "currency devaluations by governmental action" as a force majeure circumstance warranting suspension of the system pursuant to Article 14(a) of the contract; or an appropriate increase in rates in lieu of suspension pursuant to Article 14(b) subject to the terms and conditions enumerated therein.

Dated: May 31, 1968.

By order of the Federal Maritime Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 68-6635; Filed, June 4, 1968; 8:50 a.m.]

MARYLAND PORT AUTHORITY AND MOORE-McCORMACK LINES

Notice of Agreement Filed for Approval

Notice is hereby given that the following agreement has been filed with the Commission for approval pursuant to section 15 of the Shipping Act, 1916, as amended (39 Stat. 733, 75 Stat. 763, 46 U.S.C. 814).

Interested parties may inspect and obtain a copy of the agreement at the Washington office of the Federal Maritime Commission, 1321 H Street NW., Room 609; or may inspect agreements at the offices of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to an agreement including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C. 20573, within 20 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the agreement (as indicated hereinafter), and the comments should indicate that this has been done.

Notice of agreement filed for approval by:

Mr. Philip G. Kraemer, Director of Transportation, Maryland Port Authority, Pier 2, Pratt Street, Baltimore, Md. 21202.

Agreement No. T-2066D(1) between the Maryland Port Authority and Moore-McCormack Lines is a modification of approved agreement No. T-2066D which provides for the lease of three acres of paved area at Dundalk Marine Terminal for receiving, handling, and storage of waterborne freight. The purpose of the modification is to reduce the leased area to two acres and adjust the rental accordingly.

Dated: May 29, 1968.

By order of the Federal Maritime Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 68-6569; Filed, June 4, 1968; 8:45 a.m.]

[Docket No. 67-44 (Sub-No. 1)]

SOUTH ATLANTIC & CARIBBEAN LINES, INC., AND TMT TRAILER FERRY, INC.

Order of Investigation

In the matter of agreement No. DC-30 between South Atlantic & Caribbean Lines, Inc., and TMT Trailer Ferry, Inc. (C. Gordon Anderson, Trustee) filed pursuant to section 15, Shipping Act, 1916.

On October 6, 1967, a stipulation and agreement was filed by South Atlantic & Caribbean Lines, Inc., and TMT Trailer Ferry, Inc. (C. Gordon Anderson, Trustee), parties in Complaint Proceeding Docket No. 67-44, which agreement has been determined to be an agreement subject to section 15, Shipping Act, 1916.

This stipulation and agreement, designated DC-30, proposes that respondent, TMT Trailer Ferry, Inc. (C. Gordon Anderson, Trustee), (TMT) publish in its freight tariff a rate of $975 per 40-foot trailer applicable on refrigerated freight, N.O.S. in lieu of its presently effective rate of $900 per 40-foot trailer, which complainant, South Atlantic & Caribbean Lines, Inc. (SACAL), had alleged was unreasonably low. Upon the effectiveness of the aforementioned action by respondent TMT, SACAL will move to dismiss its complaint in Docket No. 67-44.

Section 15 of the Shipping Act, 1916, provides that the Commission shall disapprove agreements which it finds after notice and hearing to operate to the detriment of the commerce of the United States, or to be contrary to the public interest, or to be in violation of this Act.

The Commission is of the opinion that the new proposed increased rate agreed to by the parties, and to be filed by TMT may be contrary to and in violation of section 18(a), Shipping Act, 1916, which requires that every common carrier by water in interstate commerce:

"establish, * * * just and reasonable rates, fares, charges, * * * and just and reasonable regulations and practices relating thereto * * *"

and, therefore, contrary to the mandates of section 15, Shipping Act, 1916 which requires that agreements between carriers shall not "Operate to the detriment of the commerce of the United States, or to be contrary to the public interest, or to be in violation of this Act."

Moreover, the Commission is of the opinion that it will be able to accurately determine the upper and lower limits of a just and reasonable rate on refrigerated freight N.O.S. after it has the benefit of the facts as developed in a record.

Now, therefore, it is ordered, That the Commission pursuant to sections 15 and 22 of the Shipping Act, 1916 (46 U.S.C. 814, 821) hereby institute an investigation to determine (1) whether such agreement should be approved, disapproved, or modified under section 15, Shipping Act, 1916, and (2) whether the agreement would violate section 18(a), Shipping Act, 1916, with the view toward making such findings and orders in the premises as facts and circumstances shall warrant;

It is further ordered, That South Atlantic & Caribbean Lines, Inc., and TMT Trailer Ferry, Inc. (C. Gordon Anderson, Trustee), are hereby made respondents in this proceeding (see appendix); and

It is further ordered, That this proceeding be assigned for public hearing before an Examiner of the Commission's Office of Hearing Examiners and that the hearing be held at a date and place to be determined and announced by the presiding Examiner; and

It is further ordered, That notice of this order be published in the FEDERAL REGISTER and a copy of such order be served upon each respondent; and

It is further ordered, That persons other than respondents, and Hearing Counsel who desire to become parties to this proceeding and to participate therein shall file a petition for leave to intervene in accordance with Rule 5(1) (46 CFR 502.72) of the Commission's rules of practice and procedure;

And it is further ordered, That all future notices issued by or on behalf of the Commission in this proceeding, including notice of time and place of hearing or prehearing conference, shall be mailed directly to all parties of record.

By the Commission.

[SEAL] THOMAS LISI,
Secretary.

APPENDIX

RESPONDENTS

South Atlantic & Caribbean Lines, Inc., 808 Northeast South Avenue, Miami, Fla. 33132.
TMT Trailer Ferry, Inc. (C. Gordon Anderson, Trustee), 212½ North Beltline Highway, Post Office Box 8345, Mobile, Ala. 36608.

[F.R. Doc. 68-6571; Filed, June 4, 1968; 8:45 a.m.]

BLUE SEA LINE AND KAWASAKI KISEN KAISHA, LTD.

Notice of Agreement Filed for Approval

Notice is hereby given that the following agreement has been filed with the Commission for approval pursuant to section 15 of the Shipping Act, 1916, as amended (39 Stat. 733, 75 Stat. 763, 46 U.S.C. 814).

Interested parties may inspect and obtain a copy of the agreement at the Washington office of the Federal Maritime Commission, 1321 H Street NW., Room 609; or may inspect agreements at the office of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to an agreement including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C. 20573, within 20 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the agreement (as indicated hereinafter) and the comments should indicate that this has been done.

Notice of agreement filed for approval by:

Mr. A. A. de Giglio, Conference Department, "K" Line New York, Inc., 29 Broadway, New York, N.Y. 10006.

Agreement 9724 is a transshipment agreement between Blue Sea Line as the initial carrier and Kawasaki Kisen Kaisha, Ltd., as the delivering or on-carrier, filed for approval under section 15 of the Shipping Act, 1916. Under this arrangement, the two lines will collaborate in transporting cargo under through bills of lading from ports in the Philippines, Indonesia, Malaysia, and Singapore to U.S. Atlantic Coast ports with transshipment in Hong Kong according to the terms and conditions of the agreement.

Dated: May 31, 1968.

By order of the Federal Maritime Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 68-6636; Filed, June 4, 1968; 8:51 a.m.]

[Docket No. 68-27]

PORT OF OAKLAND ET AL.

Order of Investigation and Hearing

In the matter of agreement No. T-2138 between the Port of Oakland and Japan Line, Ltd., Kawasaki Kisen Kaisha, Ltd., Mitsui O.S.K. Lines, Ltd., and Yamashita-Shinnihon Steamship Co., Ltd.

On January 29, 1968, the Port of Oakland and Japan Line, Ltd., Kawasaki Kisen Kaisha, Ltd., Mitsui O.S.K. Lines, Ltd., and Yamashita-Shinnihon Steamship Co., Ltd., filed for approval pursuant to section 15 of the Shipping Act, 1916 (46 U.S.C. 814), Agreement No. T-2138. The agreement provides for the preferential assignment of certain marine terminal facilities at the Port of Oakland, to be used primarily for handling containerized cargoes.

Protests have been received from the Stockton Port District, the city of Long Beach, and the San Francisco Port Authority, urging that the agreement not be approved under section 15 of the Shipping Act, 1916, because inter alia, (1) it is unjustly discriminatory between carriers, shippers, and ports, and (2) it constitutes an unjust and unreasonable practice relating to the handling and storage of property.

The Commission has considered the various comments of the parties regarding the agreement and is of the opinion that the agreement should be made the subject of a formal investigation.

Now therefore, it is ordered, That the Commission, on its own motion, enter upon an investigation and hearing pursuant to section 22 of the Shipping Act, 1916, to determine whether Agreement No. T-2138 should be approved, modified, or disapprovad pursuant to section 15 of the said Act;

It is further ordered, That the Port of Oakland, Japan Line, Ltd., Kawasaki Kisen Kaisha, Ltd., Mitsui O.S.K. Lines,

Ltd., and Yamashita-Shinnihon Steamship Co., Ltd., are hereby made respondents in this proceeding; and the Port of Long Beach, the Stockton Port District, and the San Francisco Port Authority are hereby designated as petitioners;

It is further ordered, That the proceeding herein ordered be assigned for hearing before an examiner of the Commission's Office of Hearing Examiners at a date and place to be hereafter determined and announced by the Chief Examiner;

It is further ordered, That this proceeding be expedited;

It is further ordered, That notice of this order and notice of hearing be published in the FEDERAL REGISTER and copy of such order and notice of hearing be served upon respondents and petitioners;

It is further ordered, That persons other than respondents, petitioners, and Hearing Counsel who desire to become parties in this proceeding and to participate therein shall file a petition to intervene with the Secretary, Federal Maritime Commission, Washington, D.C. 20573, on or before June 14, 1968, with copy to respondents; and

It is further ordered, That all future notices issued by or on behalf of the Commission in this proceeding, including notice of time and place of hearing shall be mailed directly to all parties of record.

By the Commission.

[SEAL] THOMAS LISI, *Secretary.*

RESPONDENTS

Port of Oakland, 66 Jack London Square, Oakland, Calif. 94607.
Japan Line, Ltd., c/o Transpacific Transportation Co., 530 West Sixth Street, Los Angeles, Calif. 90014.
Kawasaki Kisen Kaisha, Ltd., c/o Kerr Steamship Co., Inc., 530 West Sixth Street, Los Angeles, Calif. 90014.
Mitsui O.S.K. Lines, Ltd., c/o Williams, Demond-Roundtree Agencies, Inc., 530 West Sixth Street, Los Angeles, Calif. 90014.
Yamashita-Shinnihon Steamship Co., Ltd., c/o Lilly Shipping Agencies, 210 West Seventh Street, Los Angeles, Calif.

PETITIONERS

Port of Long Beach, Post Office Box 570, Long Beach, Calif.
Stockton Port District, 320 Wells Fargo Bank Building, Stockton, Calif. 95202.
San Francisco Port Authority, 6000 State Building, San Francisco, Calif. 94102.

[F.R. Doc. 68-6637; Filed, June 4, 1968; 8:51 a.m.]

[Docket No. 68-26]

CITY OF LOS ANGELES ET AL.

Order of Investigation and Hearing

In the matter of Agreements No. T-2108 and T-2108-A between the city of Los Angeles and Japan Line, Ltd., Kawasaki Kisen Kaisha, Ltd., Mitsui O.S.K. Lines, Ltd., and Yamashita-Shinnihon Steamship Co., Ltd.

On November 29, 1967, the city of Los Angeles and Japan Line, Ltd., Kawasaki Kisen Kaisha, Ltd., Mitsui O.S.K. Lines, Ltd., and Yamashita-Shinnihon Steamship Co., Ltd., filed for approval pursuant to section 15 of the Shipping Act, 1916 (46 U.S.C. 814), Agreements No. T-2108, and T-2108-A. The agreements provide for the preferential assignment of certain marine terminal facilities at the city of Los Angeles, to be used primarily for handling containerized cargoes.

Protests have been received from the Stockton Port District and the city of Long Beach, urging that the agreements not be approved under section 15 of the Shipping Act, 1916, because inter alia, (1) they are unjustly discriminatory between carriers, shippers, and ports, and (2) they constitute an unjust and unreasonable practice relating to the handling and storage of property.

The Commission has considered the various comments of the parties regarding the agreements and is of the opinion that the agreements should be made the subject of a formal investigation.

Now therefore, it is ordered, That the Commission, on its own motion, enter upon an investigation and hearing pursuant to section 22 of the Shipping Act, 1916, to determine whether Agreements No. T-2108 and T-2108-A should be approved, modified, or disapproved pursuant to section 15 of the said Act;

It is further ordered, That the city of Los Angeles, Japan Line, Ltd., Kawasaki Kisen Kaisha, Ltd., Mitsui O.S.K. Lines, Ltd., and Yamashita-Shinnihon Steamship Co., Ltd., are hereby made respondents in this proceeding; and the Port of Long Beach, and the Stockton Port District are hereby designated as petitioners;

It is further ordered, That the proceeding herein ordered be assigned for hearing before an examiner of the Commission's Office of Hearing Examiners at a date and place to be hereafter determined and announced by the Chief Examiner;

It is further ordered, That this proceeding be expedited;

It is further ordered, That notice of this order and notice of hearing be published in the FEDERAL REGISTER and copy of such order and notice of hearing be served upon respondents and petitioners;

It is further ordered, That persons other than respondents, petitioners, and Hearing Counsel who desire to become parties in this proceeding and to participate therein shall file a petition to intervene with the Secretary, Federal Maritime Commission, Washington, D.C. 20573, on or before June 14, 1968, with copy to respondents; and

It is further ordered, That all future notices issued by or on behalf of the Commission in this proceeding, including notice of time and place of hearing shall be mailed directly to all parties of record.

By the Commission.

[SEAL] THOMAS LISI, *Secretary.*

RESPONDENTS

City of Los Angeles, Post Office Box 151, San Pedro, Calif. 90733.
Japan Line, Ltd., c/o Transpacific Transportation Co., 530 West Sixth Street, Los Angeles, Calif. 90014.
Kawasaki Kisen Kaisha, Ltd., c/o Kerr Steamship Co., Inc., 530 West Sixth Street, Los Angeles, Calif. 90014.
Mitsui O.S.K. Lines, Ltd., c/o Williams, Demond-Roundtree Agencies, Inc., 530 West Sixth Street, Los Angeles, Calif. 90014.
Yamashita-Shinnihon Steamship Co., Ltd., c/o Lilly Shipping Agencies, 210 West Seventh Street, Los Angeles, Calif.

PETITIONERS

Port of Long Beach, Post Office Box 570, Long Beach, Calif.
Stockton Port District, 320 Wells Fargo Bank Building, Stockton, Calif. 95202.

[F.R. Doc. 68-6638; Filed, June 4, 1968; 8:51 a.m.]

FEDERAL POWER COMMISSION

[Docket No. CP68-319]

COLORADO INTERSTATE GAS CO.

Notice of Application

MAY 27, 1968.

Take notice that on May 20, 1968, Colorado Interstate Gas Co. (Applicant), Post Office Box 1087, Colorado Springs, Colo. 80901, filed in Docket No. CP68-319 an application pursuant to section 7(c) of the Natural Gas Act for a certificate of public convenience and necessity authorizing the construction and operation of gas measurement facilities and the exchange of natural gas with Kansas-Nebraska Natural Gas Co., Inc. (Kansas-Nebraska), all as more fully set forth in the application which is on file with the Commission and open to public inspection.

Specifically, Applicant requests authority to exchange natural gas with Kansas-Nebraska for a minimum period of 7 years from the date of initial delivery and to construct and operate certain gas facilities located in Texas County, Okla. Applicant will receive an estimated average daily volume of 17,000 Mcf from Kansas-Nebraska in Texas County, Okla. Redeliveries will be made by Applicant to Kansas-Nebraska from the Hugoton Field in Kearny County, Kans.

The total cost of construction of the proposed measurement facilities is estimated to be $4,730, which will be financed from current working funds.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (157.10) on or before June 24, 1968.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commissions' rules of practice and procedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of the certificate is required by the public convenience and necessity. If a protest or petition for leave to intervene

is timely filed, or if the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

GORDON M. GRANT,
Secretary.

[F.R. Doc. 68-6572; Filed June 4, 1968; 8:45 a.m.]

FEDERAL RESERVE SYSTEM

FIRST NATIONAL BANCORPORATION, INC.

Order Approving Application Under Bank Holding Company Act

In the matter of the application of The First National Bancorporation, Inc., Denver, Colo., for approval of action to become a bank holding company through the acquisition of voting shares of The First National Bank of Denver, Denver; The First National Bank of Bear Valley, Denver; The First National Bank of North Glenn, North Glenn; and The First National Bank of Southglenn, Arapahoe County, all in Colorado.

There has come before the Board of Governors, pursuant to section 3(a)(1) of the Bank Holding Company Act of 1956 (12 U.S.C. 1842(a)(1)), and section 222.3(a) of Federal Reserve Regulation Y (12 CFR 222.3(a)), an application by The First National Bancorporation, Inc., Denver, Colo., for the Board's prior approval of action whereby Applicant would become a bank holding company through the acquisition of voting shares of the following four banks in Colorado: 67 percent or more of the voting shares of The First National Bank of Denver, Denver, and 51 percent or more of the voting shares of The First National Bank of Bear Valley, Denver, The First National Bank of North Glenn, North Glenn, and The First National Bank of Southglenn, Arapahoe County.

As required by section 3(b) of the Act, the Board gave written notice to the Comptroller of the Currency or receipt of the application and requested his views and recommendation. He recommended approval of the application.

Notice of receipt of the application was published in the FEDERAL REGISTER on January 24, 1968 (33 F.R. 866), providing an opportunity for interested persons to submit comments and views with respect to the proposed transaction. A copy of the application was forwarded to the Department of Justice for its consideration. Time for filing comments and views has expired and all those received have been considered by the Board.

It is hereby ordered, For the reason set forth in the Board's statement[1] of this date, that said application be and hereby is approved, provided that the action so approved shall not be consummated (a) before the 30th calendar day following the date of this order or (b) later than 3 months after the date of the order, unless such period is extended for good cause by the Board or by the Federal Reserve Bank of Kansas City pursuant to delegated authority.

Dated at Washington, D.C., this 27th day of May 1968.

By order of the Board of Governors.[2]

[SEAL] KENNETH A. KENYON,
Deputy Secretary.

[F.R. Doc. 68-6573; Filed, June 4, 1968; 8:46 a.m.]

[1] Filed as part of the original document. Copies available upon request to the Board of Governors of the Federal Reserve System, Washington, D.C. 20551, or to the Federal Reserve Bank of Kansas City.

[2] Voting for this action: Chairman Martin and Governors Daane, Maisel, Brimmer, and Sherrill. Absent and not voting: Governors Robertson and Mitchell.

FIDELITY BANK

Order for Public Proceeding

In the matter of the application of The Fidelity Bank for prior approval of proposed merger with Doylestown Trust Co.

The Fidelity Bank, Philadelphia, Pa., has filed an application, under the Bank Merger Act (12 U.S.C. 1828(c)), for the Board's prior approval of the proposed merger of Doylestown Trust Co., Doylestown, Pa., into The Fidelity Bank, under the charter and title of the latter. Notice of the filing of this application was published by the applicant pursuant to the requirements of the Act.

It now appears to the Board to be in the interest of the public, as well as the applicant, to afford an opportunity for the expression of views and opinions by persons in a public proceeding before the Board. Accordingly:

It is hereby ordered, That a public proceeding before the Board be held commencing at 4 p.m., on June 26, 1968, at the offices of the Board of Governors, Washington, D.C.

It is further ordered, That any person desiring to appear before the Board at this proceeding should file with the Secretary of the Board, 20th and Constitution Avenue NW., Washington, D.C. 20551, on or before June 20, 1968, a written request setting forth a brief statement of the nature of the views he wishes to express. Persons submitting such requests will be notified of the Board's decision thereon.

Dated at Washington, D.C., this 31st day of May 1968.

By order of the Board of Governors.

[SEAL] ROBERT P. FORRESTAL,
Assistant Secretary.

[F.R. Doc. 68-6696; Filed, June 4, 1968; 8:51 a.m.]

GIRARD TRUST BANK

Order for Public Proceeding

In the matter of the application of Girard Trust Bank for prior approval of proposed merger with The Doylestown National Bank.

Girard Trust Bank, Philadelphia, Pa., has filed an application, under the Bank Merger Act (12 U.S.C. 1828(c)), for the Board's prior approval of the proposed merger of The Doylestown National Bank, Doylestown, Pa., into Girard Trust Bank, under the charter and title of the latter. Notice of the filing of this application was published by the applicant pursuant to the requirements of the Act.

It now appears to the Board to be in the interest of the public, as well as the applicant, to afford an opportunity for the expression of views and opinions by persons in a public proceeding before the Board. Accordingly:

It is hereby ordered, That a public proceeding before the Board be held commencing at 2:30 p.m., on June 26, 1968, at the offices of the Board of Governors, Washington, D.C.

It is further ordered, That any person desiring to appear before the Board at this proceeding should file with the Secretary of the Board, 20th and Constitution Avenue NW., Washington, D.C. 20551, on or before June 20, 1968, a written request setting forth a brief statement of the nature of the views he wishes to express. Persons submitting such requests will be notified of the Board's decision thereon.

Dated at Washington, D.C., this 31st day of May 1968.

By order of the Board of Governors.

[SEAL] ROBERT P. FORRESTAL,
Assistant Secretary.

[F.R. Doc. 68-6697; Filed, June 4, 1968; 8:51 a.m.]

INTERAGENCY TEXTILE ADMINISTRATIVE COMMITTEE

CERTAIN COTTON TEXTILE PRODUCTS PRODUCED OR MANUFACTURED IN MEXICO

Extension of Temporary Levels for Importation

MAY 29, 1968.

On May 4, 1968 there was published in the FEDERAL REGISTER (33 F.R. 6841) a letter dated April 30, 1968, from the Chairman of the President's Cabinet Textile Advisory Committee to the Commissioner of Customs, establishing temporary levels of cotton textiles and cotton textile products in Categories 1 through 64, produced or manufactured in Mexico and exported to the United States for the 1-month period beginning May 1, 1968, and extending through May 31, 1968.

Pursuant to consultations with the Government of Mexico, it has been determined that these temporary levels for Categories 28 through 64 shall remain effective for an additional 1-month period beginning on June 1, 1968, and extending through June 30, 1968. The FEDERAL REGISTER notice of April 30, 1968,

published on May 4, 1968 (33 F.R. 6841), stated that "* * * it should be recognized that these levels may remain in effect for the entire second agreement year beginning May 1, 1968, and extending through April 30, 1969." The levels for Categories 1 through 4 and for Categories 5 through 27 provided in the directive of April 30, 1968, shall remain effective for the remainder of the agreement year which began on May 1, 1968, and extends through April 30, 1969.

A further directive establishing levels for Categories 28 through 64, pursuant to paragraph 12 of the agreement, will be published at a future date.

Accordingly, there is published below a letter of May 29, 1968, from the Chairman of the President's Cabinet Textile Advisory Committee to the Commissioner of Customs amending the directive of April 30, 1968.

STANLEY NEHMER,
Chairman, Interagency Textile Administrative Committee, and Deputy Assistant Secretary for Resources.

THE SECRETARY OF COMMERCE

PRESIDENT'S CABINET TEXTILE ADVISORY COMMITTEE

WASHINGTON, D.C. 20230,
May 29, 1968.

COMMISSIONER OF CUSTOMS,
Department of the Treasury,
Washington, D.C. 20226.

DEAR MR. COMMISSIONER: This directive amends but does not cancel the directive issued to you on April 30, 1968, from the Chairman of the President's Cabinet Textile Advisory Committee, establishing temporary levels for the entry into the United States for consumption, and withdrawal from warehouse for consumption, of cotton textiles and cotton textile products in Categories 1 through 64, produced or manufactured in Mexico, beginning on May 1, 1968, and extending through May 31, 1968.

The first paragraph of the directive of April 30, 1968 is amended to read as follows:

"Under the terms of the Long-Term Arrangement Regarding International Trade in Cotton Textiles done at Geneva on February 9, 1962, pursuant to the bilateral cotton textile agreement of June 2, 1967, between the Governments of the United States and Mexico, and in accordance with Executive Order 11052 of September 28, 1962, as amended by Executive Order 11214 of April 7, 1965, you are directed to prohibit, effective May 1, 1968, and for the 2-month period extending through June 30, 1968, entry into the United States for consumption and withdrawal from warehouse for consumption of cotton textiles and cotton textile products in Categories 28 through 64, produced or manufactured in Mexico, in excess of the designated levels of restraint set forth below. You are also directed to prohibit, effective May 1, 1968, and for the 12-month period extending through April 30, 1969, entry into the United States for consumption and withdrawal from warehouse for consumption of cotton textiles and cotton textile products in Categories 1 through 4 and Categories 5 through 27, produced or manufactured in Mexico, in excess of the designated levels of restraint set forth below."

The directive of April 30, 1968 is further amended by substituting "Twelve-Month Level of Restraint" for the heading "One-Month Level of Restraint" applicable to Categories 9, 10, 22, 23, 26, and 27. The heading "One-Month Level of Restraint" applicable to Categories 63 and 64 is amended to read "Two-Month Level of Restraint."

The levels set forth in the directive of April 30, 1968, as amended hereby, have not been adjusted to reflect entries or withdrawals from warehouse made on or after May 1, 1968.

The actions taken with respect to the Government of Mexico and with respect to imports of cotton textiles and cotton textile products from Mexico have been determined by the President's Cabinet Textile Advisory Committee to involve foreign affairs functions of the United States. Therefore, the directions to the Commissioner of Customs, being necessary to the implementation of such actions, fall within the foreign affairs exception to the notice provisions of 5 U.S.C. 553 (Supp. II, 1965–66). This letter will be published in the FEDERAL REGISTER.

Sincerely yours,

D. R. MOSES,
Secretary of Commerce Chairman, President's Cabinet Textile Advisory Committee.

[F.R. Doc. 68-6609; Filed, June 4, 1968; 8:48 a.m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 7-2917]

AMSTED INDUSTRIES INC.

Notice of Application for Unlisted Trading Privileges and of Opportunity for Hearing

MAY 29, 1968.

In the matter of application of the Philadelphia - Baltimore - Washington Stock Exchange for unlisted trading privileges in a certain security.

The above named national securities exchange has filed an application with the Securities and Exchange Commission pursuant to section 12(f)(1)(B) of the Securities Exchange Act of 1934 and Rule 12f-1 thereunder, for unlisted trading privileges in the common stock of the following company, which security is listed and registered on one or more other national securities exchange:

Amsted Industries Inc. (Delaware); File No. 7-2917.

Upon receipt of a request, on or before June 13, 1968, from any interested person, the Commission will determine whether the application shall be set down for hearing. Any such request should state briefly the nature of the interest of the person making the request and the position he proposes to take at the hearing, if ordered. In addition, any interested person may submit his views or any additional facts bearing on the said application by means of a letter addressed to the Secretary, Securities and Exchange Commission, Washington 25, D.C., not later than the date specified. If no one requests a hearing, this application will be determined by order of the Commission on the basis of the facts stated therein and other information contained in the official files of the Commission pertaining thereto.

For the Commission (pursuant to delegated authority).

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F.R. Doc. 68-6589; Filed, June 4, 1968; 8:46 a.m.]

LEEDS SHOES, INC.

Order Suspending Trading

MAY 29, 1968.

It appearing to the Securities and Exchange Commission that the summary suspension of trading in the common stock of Leeds Shoes, Inc., Tampa, Fla., and all other securities of Leeds Shoes, Inc., being traded otherwise than on a national securities exchange is required in the public interest and for the protection of investors;

It is ordered, Pursuant to section 15(c)(5) of the Securities Exchange Act of 1934, that trading in such securities otherwise than on a national securities exchange be summarily suspended, this order to be effective for the period May 30, 1968, through June 8, 1968, both dates inclusive.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F.R. Doc. 68-6590; Filed, June 4, 1968; 8:47 a.m.]

ROVER SHOE CO.

Order Suspending Trading

MAY 29, 1968.

It appearing to the Securities and Exchange Commission that the summary suspension of trading in the common stock of Rover Shoe Co., Bushnell, Fla., and stock purchase warrants of Rover Shoe Co. being traded otherwise than on a national securities exchange is required in the public interest and for the protection of investors;

It is ordered, Pursuant to section 15(c)(5) of the Securities Exchange Act of 1934, that trading in such securities otherwise than on a national securities exchange be summarily suspended, this order to be effective for the period May 31, 1968, through June 9, 1968, both dates inclusive.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F.R. Doc. 68-6591; Filed, June 4, 1968; 8:47 a.m.]

INTERSTATE COMMERCE COMMISSION

[Notice 501]

MOTOR CARRIER ALTERNATE ROUTE DEVIATION NOTICES

MAY 31, 1968.

The following letter-notices of proposals to operate over deviation routes

for operating convenience only have been filed with the Interstate Commerce Commission, under the Commission's Deviation Rules Revised, 1957 (49 CFR 211.1 (c)(8)) and notice thereof to all interested persons is hereby given as provided in such rules (49 CFR 211.1(d)(4)).

Protests against the use of any proposed deviation route herein described may be filed with the Interstate Commerce Commission in the manner and form provided in such rules (49 CFR 211.1(e)) at any time, but will not operate to stay commencement of the proposed operations unless filed within 30 days from the date of publication.

Successively filed letter-notices of the same carrier under the Commission's Deviation Rules Revised, 1957, will be numbered consecutively for convenience in identification and protests if any should refer to such letter-notices by number.

MOTOR CARRIERS OF PROPERTY

No. MC 70451 (Deviation No. 14), WATSON-WILSON TRANSPORTATION SYSTEM, INC., Post Office Box 8729, 92d at State line, Kansas City, Mo. 64114, filed May 3, 1968, amended May 21, 1968. Carrier's representative: John M. Records, same address as applicant. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *general commodities*, with certain exceptions, over a deviation route as follows: From Kansas City, Mo., over Interstate Highway 70 to junction Interstate Highway 270, thence over Interstate Highway 270 to junction Interstate Highway 55 (U.S. Highway 66), thence over Interstate Highway 55 (U.S. Highway 66) to Chicago, Ill., and return over the same route, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities, over pertinent service routes as follows: (1) From Kansas City, Mo., over U.S. Highway 71 to St. Joseph, Mo., (2) from Cook County, Ill., over U.S. Highway 66 via Chenoa, Ill., to Springfield, Ill., thence over U.S. Highway 36 to St. Joseph, Mo. (also from Cook County to Chenoa as specified above, thence over U.S. Highway 24 to Peoria, Ill.), and (3) from Kansas City, Mo., over U.S. Highway 69 to Cameron, Mo., and return over the same routes.

No. MC 105902 (Deviation No. 2), PENN YAN EXPRESS, INC., 100 West Lake Road, Penn Yan, N.Y. 14527, filed May 20, 1968. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *general commodities*, with certain exceptions, over a deviation route as follows: From Binghamton, N.Y., over Interstate Highway 81 to junction Interstate Highway 81E, thence over Interstate Highway 81E to junction U.S. Highway 611, thence over U.S. Highway 611 to Scotrun, Pa., thence over Interstate Highway 80 to Columbia, N.J., thence over U.S. Highway 46 to Budd Lake, N.J., thence over Interstate Highway 80 to Denville, N.J., thence over U.S. Highway 46 to Clifton, N.Y., thence over New Jersey Highway 3 to Rutherford, N.J., thence over New Jersey Highway 17 to Newark, N.J., thence over U.S. Highway 1 to Jersey City, N.J., thence across the Hudson River to New York, N.Y., and return over the same route, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities, over a pertinent service route as follows: From Binghamton, N.Y., over U.S. Highway 11 to Scranton, Pa., thence over U.S. Highway 611 to Portland, Pa., thence over U.S. Highway 46 to junction New Jersey Highway 69, thence over New Jersey Highway 69 to junction U.S. Highway 22, thence over U.S. Highway 22 to junction New Jersey Highway 29, thence over New Jersey Highway 29 to Newark, N.J., thence over U.S. Highway 1 to Jersey City, N.J., and thence across the Hudson River to New York, N.Y., and return over the same routes.

No. MC 106943 (Deviation No. 12), EASTERN EXPRESS, INC., 1450 Wabash Avenue, Terre Haute, Ind., filed May 20, 1968. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *general commodities* with certain exceptions, over a deviation route as follows: From Harrisburg, Pa., over Interstate Highway 81 to junction Interstate Highway 84, at Scranton, Pa., thence over Interstate Highway 84 to junction Connecticut Highway 34 at Sandy Hook, Conn., thence over Connecticut Highway 34 to junction Connecticut Highway 114, thence over Connecticut Highway 114 to junction U.S. Highway 1, thence over U.S. Highway 1 to New Haven, Conn., and return over the same route, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities, over a pertinent service route as follows: From Harrisburg, Pa., over U.S. Highway 22 to Newark, N.J., thence over U.S. Highway 1 to New Haven, Conn., and return over the same route.

No. MC 106943 (Deviation No. 13), EASTERN EXPRESS, INC., 1450 Wabash Avenue, Terre Haute, Ind., filed May 20, 1968. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *general commodities*, with certain exceptions, over a deviation route as follows: From the Breezewood Interchange of the Pennsylvania Turnpike over Interstate Highway 70 to junction Interstate Highway 70N at West Friendship, Md., thence over Interstate Highway 70N to Baltimore, Md., and return over the same route, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities, over a pertinent service route as follows: From the Breezewood, Pa. Interchange of the Pennsylvania Turnpike over Pennsylvania Highway 126 to junction U.S. Highway 522, at or near Warfordsburg, Pa., thence over U.S. Highway 522 to junction U.S. Highway 40, at or near Hancock, Md., thence over U.S. Highway 40 to Baltimore, Md., and return over the same route.

No. MC 106943 (Deviation No. 14), EASTERN EXPRESS, INC., 1450 Wabash Avenue, Terre Haute, Ind., filed May 20, 1968. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *general commodities*, with certain exceptions, over a deviation route as follows: From St. Louis, Mo., over Interstate Highway 55 to junction Interstate Highway 80, thence over Interstate Highway 80 to junction Interstate Highway 90, thence over combined Interstate Highways 80–90 to Cleveland, Ohio, thence over Interstate Highway 90 to Boston, Mass., and return over the same route, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities, over a pertinent service route as follows: From St. Louis, Mo., over U.S. Highway 50 to Cincinnati, Ohio, thence over U.S. Highway 42 to Lafayette, Ohio, thence over U.S. Highway 40 via Cambridge, Ohio, to Washington, Pa., thence over U.S. Highway 19 to Pittsburgh, Pa., thence over U.S. Highway 22 to Newark, N.J., thence over U.S. Highway 1 to Boston, Mass., and return over the same route.

No. MC 106943 (Deviation No. 15), EASTERN EXPRESS, INC., 1450 Wabash Avenue, Terre Haute, Ind. 47808, filed May 22, 1968. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *general commodities*, with certain exceptions, over a deviation route as follows: From Philadelphia, Pa., over the Pennsylvania Turnpike northeast extension to junction Interstate Highway 80, thence over Interstate Highway 80 to junction Interstate Highway 80S west of Youngstown, Ohio, thence over Interstate Highway 80S to Arkon, Ohio, and return over the same route, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities, over a pertinent service route as follows: From Philadelphia, Pa., over U.S. Highway 30 to Lancaster, Pa., thence over Pennsylvania Highway 230 to Harrisburg, Pa., thence over U.S. Highway 22 to Pittsburgh, Pa., thence over U.S. Highway 30 to Canton, Ohio, thence over Ohio Highway 30 to Canton, Ohio, thence over Ohio Highway 8 to Arkon, Ohio, and return over the same route.

No. MC 106943 (Deviation No. 16), EASTERN EXPRESS, INC., 1450 Wabash Avenue, Terre Haute, Ind. 47808, filed May 22, 1968. Carrier proposes to operate as a *common carrier*, by vehicle, of *general commodities*, with certain exceptions, over a deviation route as follows: From Harrisburg, Pa., over Interstate Highway 78 to junction Interstate Highway 287 east of Denville, N.J., thence over Interstate Highway 287 to junction Interstate Highway 95 near Rye, N.Y., thence over Interstate Highway 95 to Boston, Mass., and return over the same route, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities, over a pertinent service route as follows: From Harrisburg, Pa., over U.S. Highway 22 to Newark, N.J., thence over U.S. Highway 1 to Boston, Mass., and return over the same route.

No. MC 106943 (Deviation No. 17), EASTERN EXPRESS, INC., 1450

Wabash Avenue, Terre Haute, Ind. 47808, filed May 23, 1968. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *general commodities*, with certain exceptions, over a deviation route as follows: From junction U.S. Highway 40 and Interstate Highway 57 at or near Effingham, Ill., over Interstate Highway 57 to junction Illinois Highway 16, thence over Illinois Highway 16 to junction U.S. Highway 150, thence over U.S. Highway 150 to Terre Haute, Ind., and return over the same route, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities, over a pertinent service route as follows: Between St. Louis, Mo., and Indianapolis, Ind., over U.S. Highway 40.

No. MC 106943 (Deviation No. 18), EASTERN EXPRESS, INC., 1450 Wabash Avenue, Terre Haute, Ind. 47808, filed May 24, 1968. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *general commodities*, with certain exceptions, over a deviation route as follows: Between Harrisburg, Pa., and Baltimore, Md., over Interstate Highway 83, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities, over a pertinent service route as follows: Between Harrisburg, Pa., and Baltimore, Md., over U.S. Highway 111.

No. MC 107500 (Deviation No. 28), BURLINGTON TRUCK LINES, INC., 796 South Pearl Street, Galesburg, Ill. 61401, filed May 23, 1968. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *general commodities*, with certain exceptions, over a deviation route as follows: From Peoria, Ill., over Interstate Highway 74 to junction U.S. Highway 66 at Bloomington, Ill., thence over U.S. Highway 66 to Chicago, Ill., and return over the same route, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities, over a pertinent service route as follows: From Peoria, Ill., over U.S. Highway 150 to junction Illinois Highway 91, thence over Illinois Highway 91 to junction Illinois Highway 78, thence over Illinois Highway 78 to junction U.S. Highway 34, south of Kewanee, Ill., thence over U.S. Highway 34 to Chicago, Ill., and return over the same route, for operating convenience only

No. MC 107500 (Deviation No. 29), BURLINGTON TRUCK LINES, INC., 796 South Pearl Street, Galesburg, Ill. 61401, filed May 23, 1968. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *general commodities*, with certain exceptions, over a deviation route as follows: From junction U.S. Highway 67 (formerly Illinois Highway 100) and Illinois Highway 125 (formerly U.S. Highway 67) near Beardstown, Ill., over U.S. Highway 67 (formerly Illinois Highway 100 and Illinois Highway 104) to junction Illinois Highway 78 (formerly U.S. Highway 67) at or near Jacksonville, Ill., and return over the same route, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities, over a pertinent service route as follows: From junction U.S. Highway 67 (formerly Illinois Highway 100) and Illinois Highway 125 (formerly U.S. Highway 67) over Illinois Highway 125 to junction Illinois Highway 78 (formerly U.S. Highway 67) thence over Illinois Highway 125 to junction U.S. Highway 67 (formerly Illinois Highway 104) near Jacksonville, Ill., and return over the same route.

No. MC 119617 (Deviation No. 1), MACON-KIRKSVILLE TRUCK LINES, INC., Post Office Box 718, Kirksville, Mo. 63501, filed May 20, 1968. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *livestock*, over a deviation route as follows: From junction U.S. Highway 63 and Missouri Highway 22 over U.S. Highway 63 to junction Interstate Highway 70, at Columbia, Mo., thence over Interstate Highway 70 to junction Missouri Highway 19, transporting *feed, molasses, and fertilizer*, on return, over the same route, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities, over a pertinent service route as follows: From Callao, Mo., over U.S. Highway 36 to junction U.S. Highway 63, thence over U.S. Highway 63 to junction Missouri Highway 22, thence over Missouri Highway 22 to Mexico, Mo., thence over U.S. Highway 54 to junction Missouri Highway 19, thence over Missouri Highway 19 to junction U.S. Highway 40, thence over U.S. Highway 40 to East St. Louis, Ill., and return over the same route.

No. MC 1515 (Deviation No. 454) (Cancels Deviation No. 444), GREYHOUND LINES, INC. (Southern Division), 219 East Short Street, Lexington, Ky. 40507, filed May 23, 1968. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *passengers and their baggage, and express and newspapers* in the same vehicle with passengers, over a deviation route as follows: From Asheville, N.C., over Interstate Highway 40 to junction North Carolina Highway 191, thence over North Carolina Highway 191 to junction Interstate Highway 26, thence over Interstate Highway 26 to junction unnumbered access highway, thence over unnumbered access highway to junction U.S. Highway 25 near Tuxedo, N.C., with the following access route: From junction Interstate Highway 26 and U.S. Highway 64, over U.S. Highway 64 to Hendersonville, N.C., and return over the same routes, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the passengers, and the same property, over a pertinent service route as follows: From Knoxville, Tenn., over U.S. Highway 25W to Newport, Tenn., thence over U.S. Highway 25 via Asheville and Hendersonville, N.C., to Tuxedo, N.C., and return over the same route.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 68-6615; Filed, June 4, 1968; 8:49 a.m.]

[Notice 1186]

MOTOR CARRIER APPLICATIONS AND CERTAIN OTHER PROCEEDINGS

MAY 31, 1968.

The following publications are governed by Special Rule 1.247 of the Commission's rules of practice, published in the FEDERAL REGISTER issue of April 20, 1966, which became effective May 20, 1966.

The publications hereinafter set forth reflect the scope of the applications as filed by applicant, and may include descriptions, restrictions, or limitations which are not in a form acceptable to the Commission. Authority which ultimately may be granted as a result of the applications here noticed will not necessarily reflect the phraseology set forth in the application as filed, but also will eliminate any restrictions which are not acceptable to the Commission.

APPLICATIONS ASSIGNED FOR ORAL HEARING

MOTOR CARRIERS OF PROPERTY

No. MC 111545 (Sub-No. 106) (Republication), filed May 13, 1968, published in FEDERAL REGISTER issue of May 30, 1968, and republished this issue. Applicant: HOME TRANSPORTATION COMPANY, INC., Post Office Box 6426, Station A, Marietta, Ga. 30060. Applicant's representative: Robert E. Born, 1425 Franklin Road SE., Marietta, Ga. 30060. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Tractors*, (2) *self-propelled construction, excavation, and industrial equipment*, (3) *portable concrete pumps*, (4) *attachments* for the commodities described in items (1) through (3) above, (5) *cabs* for the commodities described in items (1) and (2) above, (6) *internal combustion engines*, and (7) *parts and accessories* for the commodities described in items (1) through (6) above, from the plant and warehouse sites of J. I. Case Co., at or near Terre Haute, Ind., to points in Alabama, Florida, Georgia, North Carolina, South Carolina, and Tennessee. NOTE: This republication is to reflect the hearing information.

HEARING: June 17, 1968, Room 204A, U.S. Courthouse and Federal Office Building, 219 South Dearborn Street, Chicago, Ill., before Examiner Charles J. Murphy.

No. MC 34778 (Sub-No. 4) (Republication), filed December 2, 1957, published FEDERAL REGISTER issue January 22, 1958, and republished this issue. Applicant: COCHRAN TERMINAL AND TRANSPORTATION CO., 25 Leo Terrace, Bloomfield, N.J. 07003. Applicant's representative: George A. Olsen, 69 Tonnele Avenue, Jersey City, N.J. 07306. In the above-entitled proceeding, applicant was granted a Certificate of Public Convenience and Necessity, authorizing operation in interstate or foreign commerce, as a *common carrier* by motor vehicle, over irregular routes in the transportation of *general commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk, and those

requiring special equipment), between points in Hudson, Essex, Bergen, Passaic, Middlesex, and Union Counties, N.J., on the one hand, and, on the other, Elizabeth, N.J., restricted to traffic having an immediately prior or subsequent movement in freight forwarder service. An order of the Commission, Operating Rights Board, dated May 10, 1968, and served May 24, 1968, finds that the present and future public convenience and necessity require modification of applicant's certificate under MC 34778 (Sub-No. 4) by deleting the words "restricted to traffic having an immediately prior or subsequent movement in freight forwarder service" from where they appear in the body of said certificate, and that the phrase "prior or subsequent movement in interstate commerce" shall be added thereto; that applicant is fit, willing, and able properly to perform such service and to conform to the requirements of the Interstate Commerce Act and the Commission's rules and regulations thereunder. Because it is possible that other persons, who have relied upon the notice of the application as published may have an interest in and would be prejudiced by the lack of proper notice of the authority described in the findings in this order, a notice of the authority actually granted will be published in the FEDERAL REGISTER and issuance of a certificate in this proceeding will be withheld for a period of 30 days from the date of such publication, during which period any proper party in interest may file a petition to reopen or for other appropriate relief setting forth in detail the precise manner in which it has been so prejudiced.

No. MC 42487 (Sub-No. 578) (Republication) (Interpretation of Vincennes-Evansville Route), filed April 25, 1967, published FEDERAL REGISTER, issue of May 24, 1967, and republished this issue. Petitioner: CONSOLIDATED FREIGHTWAYS CORPORATION OF DELAWARE, Menlo Park, Calif. Petitioner's representatives: Eugene T. Liipfert, and Ronald B. Natalie, 1035 Universal Building North, 1875 Connecticut Avenue NW., Washington, D.C. 20009. By petition filed April 25, 1967, petitioner requests interpretation of a specified portion of its motor carrier certificate MC 42487 (Sub-No. 578), issued to it on November 7, 1963, and clarification of certain of its authority thereunder. Specifically, petitioner seeks a finding that it may lawfully serve Evansville, Ind., under the same conditions that it may serve Vincennes, Ind., by tacking certain routes set forth in said certificate. Petitioner holds certificates authorizing operations as a motor common carrier of specified and general commodities, over regular routes which extend between Los Angeles and San Francisco, Calif., and Denver, Colo., on the west, and Boston, Mass., New York, N.Y., and Philadelphia, Pa., on the east. Section B of certificate No. MC-42487 (Sub-No. 578) authorizes service over a number of regular-service and alternate routes between specified points in Indiana, Illinois, Ohio, Massachusetts, Connecticut, Rhode Island, New Jersey, New York, Pennsylvania, Delaware, Maryland, Louisville, Ky., and St. Louis, Mo. Among these regular routes, as here pertinent, is authority to transport general commodities, with the standard exceptions.

(1) Between Boston, Mass., and St. Louis, Mo., serving various intermediate and off-route points among which are Lawrenceburg, Seymour, Shoals, and Vincennes, Ind., Steubenville, Cambridge, Zanesville, and Cincinnati, Ohio; Allentown, Harrisburg, and Pittsburgh, Pa.; Phillipsburg, N.J.; New York, N.Y.; Stamford, New Haven; and New London, Conn.; Pawtucket and Providence, R.I.; and (2) between Evansville, Ind., and Vincennes, serving no intermediate points. Other specified routes of interest which have points of service in common with points of service on the Boston-St. Louis route are, (1) between Philadelphia, Pa., and Harrisburg, serving no intermediate points, (2) between Baltimore, Md., and Harrisburg serving York, Pa., as an intermediate point, (3) between New Haven and Springfield, Mass., serving Hartford, Conn., as an intermediate point, (4) between Louisville, Ky., and Shoals, serving no intermediate points, (5) between Louisville and Seymour serving no intermediate points, and (6) between Cincinnati and Springfield, Ill., serving Decatur, Ill., as an intermediate point. These routes, as well as others described in section B of the certificate, are subject to a number of restrictions as set forth on sheets 40 and 41 of the certificate. Petitioner directs our attention to restrictions (1) to (3) inclusive: Service is not authorized (1) between St. Louis, Mo., and points in Illinois and Indiana; (2) between points in Indiana, or between points in Indiana on the one hand, and, on the other, Ohio; (3) between points in Illinois, on the one hand, and, points in Indiana and Ohio, on the other, * * *. A report of the Commission, by Division 1, decided May 1, 1968, served May 15, 1968, finds that certificate in MC 42487 (Sub-No. 578), (B), sheets 40 and 41 thereof, should be modified by striking therefrom that portion captioned "Restriction" and all the conditions thereunder, and, by inserting in lieu thereof, the following:

Restrictions: Operations over the regular routes are restricted to the transportation of traffic moving: (1) Between points in Illinois, Indiana, Ohio, and St. Louis, Mo., and Louisville, Ky., on the one hand, and, on the other, points in Pennsylvania, New York, New Jersey, Massachusetts, Connecticut, Rhode Island, Maryland, and Delaware; and (2) (a) between points in Illinois, on the one hand, and, on the other, points in Ohio, (b) between points in Ohio, (c) between St. Louis, Mo., and points in Ohio, (d) between Cincinnati, Dayton, Hamilton, and Middletown, Ohio, on the one hand, and, on the other, Pittsburgh, Pa., and Wheeling, W. Va., limited in (a) to (d) above to the transportation of traffic moving on bills of lading of a freight forwarder as defined in section 402(a)(5) of part IV of the act; petitioner is fit, willing, and able properly to conduct the operation authorized in such certificate, as so modified, and to conform to the requirements of the Interstate Commerce Act and our rules and regulations thereunder; that an appropriate revised certificate be issued, subject to the prior publication in the FEDERAL REGISTER of a notice of the action here taken. Upon compliance by petitioner with the requirements of sections 215, 217, and 221 (c) of the act and with our rules and regulations thereunder, and in the absence of additional protests having been filed within 30 days of the publication of the revised restrictions in the FEDERAL REGISTER, an appropriate amended certificate will be issued.

MC 64114 (Sub-No. 6) (Republication), filed September 27, 1957, published FEDERAL REGISTER issue December 4, 1957, and republished this issue. Applicant: SCOTT TRUCK LINE, INC., 2950 Blake Street, Post Office Box 6593, Denver, Colo. 80206. Applicant's representative: John H. Lewis, The 1650 Grant Building, Denver, Colo. 80203. By application filed September 27, 1957, applicant seeks authority to operate as a common carrier of the same commodities between the same points or within the same territory as authorized in the following permits: MC 64114, dated August 10, 1949, advertising matter and such general merchandise as is dealt in by wholesale and retail grocery and food business houses, under special and individual contracts or agreements, with persons (as defined in section 203(a) of the Interstate Commerce Act) who operate wholesale or retail establishments, the business of which is the manufacture, processing, or sale of groceries or food, between certain named points, over specified regular routes, serving specified intermediate and off-route points; MC 64114 (Sub-No. 4), dated December 13, 1955, meats, fresh and frozen, from the site of the packing plant of National Food Stores, Inc., at Denver, Colo., to Milwaukee, Wis., Indianapolis, Ind., and Lansing and Detroit, Mich. By a report and order decided March 3, 1960, the commission authorized issuance of a certificate to applicant for certain operations as specified therefor, and MC 113658 (Sub-No. 2) was granted thereto, in lieu of the said permit and permit No. MC 64114 (Sub-No. 4), dated December 13, 1955. A corrected order of the commission dated April 11, 1968, and served May 17, 1968, requires that a notice be published in the FEDERAL REGISTER reflecting (1) that a certificate was issued to applicant in MC 113658 (Sub-2) authorizing operations as a common carrier by motor vehicle, of advertising matter and such general merchandise as is dealt in by wholesale and retail grocery and food business houses, *restricted to shipments moving from, to, or between warehouses, and wholesale, retail, or chain outlets of grocery and food business houses*, between the points, over the routes, and serving the intermediate and off-route points set forth therein; (2) that, by petition filed February 1, 1968, Scott

Truck Line, Inc., applicant (a) asserts that the imposition in its certificate, of the restriction set forth above, was held to be improper by the U.S. Supreme Court in United States et al., v. J. B. Montgomery, Inc., 376 U.S. 389, and (b) seeks removal of the said restriction from the above-numbered certificate; (3) that the said petition be, and it is hereby, designated for further processing under the modified procedure; (4) that persons having an interest if there be any, may submit verified statements in opposition to applicant's position on petition within 30 days from the date of publication of the notice of this order in the FEDERAL REGISTER.

No. MC 113012 (Sub-No. 7) (Republication), filed December 21, 1967, published FEDERAL REGISTER issue of January 18, 1968, and republished this issue. Applicant: SANDT TRANSPORTATION CORP., 431 East 109th Street, New York, N.Y. 10029. Applicant's representative: Philip L. Leit, 347 Fifth Avenue, New York, N.Y. 10016. By application filed December 21, 1967, applicant seeks a permit authorizing operations, in interstate or foreign commerce, as a contract carrier, by motor vehicle, over regular routes, transporting passengers and their baggage in door-to-door service during the period from June 1st to August 31st, both inclusive, of each year, from New York City, N.Y., over George Washington Bridge to U.S. Highway 9W, thence over U.S. Highway 9W to junction New York Highway 303, thence over New York Highway 303 to junction New York Highway 59, thence over New York Highway 59 to New York Highway 59A, thence over New York Highway 59A to junction Strawtown Road, thence over Strawtown Road to grounds of Beechwood Day Camp, West Nyack, N.Y., under contract with Beechwood Day Camp, West Nyack, N.Y. An order of the Commission, Operating Rights Board, dated May 10, 1968, and served May 27, 1968, finds that operation by applicant, in interstate or foreign commerce, as a contract carrier by motor vehicle, over irregular routes, of passengers and their baggage, in the same vehicle with passengers, between New York, N.Y., and Beechwood Day Camp, at or near West Nyack, N.Y., during the season beginning June 1 and ending August 31 of each year, under a continuing contract with Beechwood Day Camp, will be consistent with the public interest and the national transportation policy; that applicant is fit, willing, and able properly to perform such service and to conform to the requirements of the Interstate Commerce Act and the Commission's rules and regulations thereunder. Because it is possible that other parties, who have relied upon the notice of the application as published, may have an interest in and would be prejudiced by the lack of proper notice of the authority described in the findings in this order, a notice of the authority actually granted will be published in the FEDERAL REGISTER and issuance of a permit in this proceeding will be withheld for a period of 30 days from the date of such publication, during which period any proper party in interest may file a petition to reopen or for other appropriate relief setting forth in detail the precise manner in which it has been so prejudiced.

No. MC 129498 (Sub-No. 2) (Republication), filed February 23, 1968, published FEDERAL REGISTER issue of March 7, 1968, and republished this issue. Applicant: BERNIE'S EXPRESS, INC., 404 West 15 Street, New York, N.Y. Applicant's representative: William J. Hanlon, 744 Broad Street, Newark, N.J. 07102. By application filed February 23, 1968, applicant seeks a permit authorizing operations, in interstate of foreign commerce as a contract carrier by motor vehicle, over irregular routes, of *wearing apparel,* loose in hampers and on hangers, and *materials and supplies* used in the manufacture thereof, between Bridgeport, Conn., on the one hand, and, on the other, New York and Pelham Manor, N.Y., under contract with Exquisite Form Industries, Inc. An order of the Commission, Operating Rights Board, dated May 10, 1968, and served May 24, 1968, finds that operation by applicant, in interstate or foreign commerce as a contract carrier by motor vehicle, over irregular routes, of *wearing apparel, and materials and supplies* used in the manufacture of wearing apparel, between Bridgeport, Conn., on the one hand, and, on the other, New York and Pelham Manor, N.Y., under a continuing contract with Exquisite Form Industries, Inc., will be consistent with the public interest and the national transportation policy; that applicant is fit, willing, and able properly to perform such service and to conform to the requirements of the Interstate Commerce Act and the Commission's rules and regulations thereunder. Because it is possible that other parties, who have relied upon the notice of the application as published, may have an interest in and would be prejudiced by the lack of proper notice of the authority described in the findings in this order, a notice of the authority actually granted will be published in the FEDERAL REGISTER and issuance of a permit in this proceeding will be withheld for a period of 30 days from the date of such publication, during which period any proper party in interest may file a petition to reopen or for other appropriate relief setting forth in detail the precise manner in which it has been so prejudiced.

NOTICE OF FILING OF PETITIONS

No. MC 30451 (Sub-No. 15) (Notice of filing of petition to modify permit), filed April 26, 1968. Petitioner: THE LUPER TRANSPORTATION COMPANY, a corporation, 350 East 21st Street, Wichita, Kans. 67214. Petitioner's representative: James F. Miller, Medical and Professional Building, 1501 Mission Road, Shawnee Mission, Kans. 66201. Petitioner states it presently holds a permit issued March 21, 1958, in MC 30451 (Sub-No. 15), authorizing the transportation, over irregular routes, of meats, meat products, and meat byproducts, and articles distributed by meat packinghouses, as described in sections A and C of appendix I to the report in Descriptions in Motor Carrier Certificates, 61 M.C.C. 209 and 766, from Wichita, Kans., to Alexandria, Shreveport, and New Orleans, La. Restriction: The above-described operations are limited to a transportation service to be performed under a continuing contract or contracts, with the Cudahy Packing Co. By the instant petition, petitioner desires to add to said permit two (2) additional shippers, both located in Wichita, with who petitioner may enter into continuing bilateral contracts for the transportation of the above-described commodities between the above-described points. Said shippers are the Excel Packing Co. and the Sunflower Packing Co., Inc., both of who desire to so contract with petitioner and be served by the petitioner in the transportation of the foregoing described commodities between the points above set forth. Petitioner states it presently has on file with the Commission bilateral contracts of a continuing nature with each of said shippers, but said contracts do not cover or authorize the transportation herein sought from Wichita, Kans., to Alexandria, Shreveport, and New Orleans, La. An interested person desiring to participate may file an original and six copies of his written representations; views or argument in support of, or against the petition within 30 days from the date of publication in the FEDERAL REGISTER.

No. MC 31533 (Sub-No. 6) (Notice of filing of petition to waive Rule 1.101(3) and to reopen grandfather proceeding), filed May 14, 1968. Petitioner: SOUTH BEND FREIGHT LINE, INC., South Bend, Ind. Petitioner's representatives: Harold A. Marks, 208 South La Salle Street, Chicago, Ill. 60604, and A. David Millner, and William J. Hanlon, 744 Broad Street, Newark, N.J. 07102. Petitioner holds authority in No. MC 31533 (Sub-No. 6) to conduct operations as a common carrier, by motor vehicle, over regular routes, transporting: General commodities, with the usual exceptions, between Benton Harbor, Mich., and South Bend, Ind., over U.S. Highway 31, serving the intermediate and off-route points of Niles, Berrien Springs, St. Joseph, Baroda, Coloma, Eau Claire, Stevensville, and Watervliet, Mich., restricted to northbound traffic only. By the instant petition, petitioner requests that the Commission grant this petition to waive Rule 1.101(3) of the Commission's rules of practice and that the Commission accept said petition to reopen it's predecessor's grandfather proceeding in Docket MC 60845 and clarify by removing the restriction in the certificate in such docket to conform with the grandfather and continuing operations of petitioner and its predecessors and to bring forward such revision in the certificate subsequently issued to petitioner in MC 31533 (Sub-No. 6), or for such other and further relief as the Commission deems advisable in the circumstances. Any interested person desiring to participate may file an original and six copies of his written representations,

views or argument in support of, or against the petition within 30 days from the date of publication in the FEDERAL REGISTER.

Nos. MC 92983 (Sub-No. 330) and MC 92983 (Sub-No. 332) (Notice of filing of petition for modification of certificates), filed May 13, 1968. Petitioner: ELDON MILLER, INC., Kansas City, Mo. Petitioner's representative: W. T. Croft, Federal Bar Building, 1815 H Street NW., Washington, D.C. 20006. Petitioner holds authority in MC 92983 (Sub-No. 328) to transport, over irregular routes: (1) *Acids* and *chemicals* (except derivatives of petroleum or petroleum products), in bulk, in tank or hopper vehicles (*Originally was Sub 332*). From Kansas City, Mo., to points in Iowa, Kansas, Minnesota, Missouri, Nebraska, and Oklahoma, except synthetic resins and varnish, in bulk, in tank vehicles from Kansas City, Mo., to points in Minnesota and Nebraska, with no transportation for compensation on return except as otherwise authorized. Restriction: The authority granted immediately above may not be combined with any authority now held by carrier for the purpose of handling traffic originating at Lake Charles, La., and Texas City, Tex., and at points in Harris and Jefferson Counties, Tex. (2) *Fats* and *oils* (except petroleum products, and molasses), in bulk, in tank vehicles (Granted in Sub 338). Between points in Iowa and Wisconsin, on the one hand, and, on the other, points in Kansas, Missouri, and Nebraska. Restriction: The authority granted immediately above is restricted against the following service: (1) Paint ingredients and paint products from Milwaukee, Wis., to points in Missouri.

(2) Animal fats (a) from Esterville and Ottuma, Iowa, to points in Kansas, Missouri, and Nebraska, and (b) from Omaha, Nebr., and Wichita, Kans., to points in Iowa and Wisconsin. (3) Tallow, between Milwaukee, Wis., and points in Nebraska and Missouri. (4) Salad oil, from Clinton, Iowa, to points in Nebraska and Missouri. (5) Corn oil, from Cedar Rapids, Iowa, to points in Nebraska and Missouri. III. Acids and chemicals, in bulk, in tank or hopper vehicles (Originally Sub 330), from Saginaw, Mo., and points within 15 miles thereof, to points in Minnesota, Missouri, North Dakota, and South Dakota with no transportation for compensation on return except as otherwise authorized. Restriction: The authority granted immediately above is restricted against the transportation of phosphoric acid, nitric acid, sulphuric acid, and nitrogen solutions, in bulk, in tank vehicles, to points in Missouri. By the instant petition, petitioner requests that two paragraphs of its certificate in No. MC 92983 (Sub-No. 328) which represent authority originally granted in Sub-Nos. 330 and 332, be modified by the elimination of the requirement that the authorized commodities be transported "in tank or hopper vehicles." Petitioner requests that the certificates be modified to authorize service "in bulk" rather than "in bulk in tank or hopper vehicles." Any interested person desiring to participate may file an original and six copies of his written representations, views or argument in support of, or against the petition within 30 days from the date of publication in the FEDERAL REGISTER.

No. MC 107541 (Notice of Filing of Petition for Operating Convenience), filed April 30, 1968. Petitioner: MAGEE TRUCK SERVICE, INC., 18101 Southeast McLoughlin Boulevard, Milwaukee, Oreg. 97222. Petitioner holds authority in No. MC 107541, that part here pertinent, to conduct operations, over irregular routes, transporting: Lumber, lumber products, and fruit, between points in Yakima, Skamania, and Klickitat Counties, Wash., on the one hand, and, on the other, points in Oregon. Lumber, between points in Washington, restricted to traffic having a prior or subsequent movement in interstate, foreign, or territorial commerce. Petitioner states that those two grants give them the authority to serve Oregon and Washington on the one hand, and, on the other. By the instant petition, petitioner seeks a grant of operating convenience to use Interstate Highway 5 across the Columbia River, between Portland, Oreg., and Vancouver, Wash., for their gateway. This will result in a more economical operation. Any interested person desiring to participate, may file a original and six copies of his written representations, views, or argument in support of, or against the petition within 30 days from the date of publication in the FEDERAL REGISTER.

No. MC 115331 (Sub-No. 98), (Notice of filing of Petition for Declaratory Order), filed March 29, 1968. Petitioner: TRUCK TRANSPORT INCORPORATED, St. Louis, Mo. Petitioner's representative: Thomas F. Kilroy, Suite 913, Colorado Building, 1341 G Street NW., Washington, D.C. 20005. Petitioner's application was heard on a consolidated record with 13 other applications all of which requested authority from the Tri-City Regional Port District (Tri-City Port) located in Madison County, Ill. Each of the applications was amended to restrict the service proposed by each applicant to restrict the service proposed by each to the transportation of commodities originating at the Tri-City Port and destined to the destination States embraced in each application. The authority when granted was so restricted. All of these issued certificates authorize service from the Tri-City Port subject to the following restriction: "The authority granted herein is restricted to the transportation of commodities originated at Tri-City Regional Port District and destined to points in said States." By the instant petition, petitioner, seeks a declaratory order interpreting its Sub-98 certificate and the certificates of Keightley Bros., Inc., MC 41849 Sub 21, Rogers Cartage Co., MC 64932 Sub 348, Klipach Hauling Co., MC 82063 Sub 4, Ruan Transport Corp., MC 107496 Sub 340, Ryder Tank Line, Inc., MC 110698 Sub 296, Kampo Transit, Inc., MC 110988 Sub 97, Transport Service Co., MC 112801 Sub 15, Slay Transportation Co., Inc., 113325 Sub 28, D & L Transport, Inc., MC 116273 Sub 34, Ee-Jay Motor Transports, Inc., MC 119422 Sub 24 and Sub 29, Curtis Transport, Inc., MC 123478 Sub 2, and Schwerman Trucking Co., MC 124078 Sub 125, in the Tri-City Port proceedings, to determine whether or not these certificates authorize service from points in the St. Louis, Mo.-East St. Louis, Ill., commercial zone as defined by the Commission. Any person or persons desiring to participate, may file representations for or against, consisting of an original and six copies each, within 30 days from the date of this publication in the FEDERAL REGISTER.

No. MC 115667 (Notice of Filing of Petition for Modification of Authorized Canadian Entry Points for Operating Convenience Only), filed May 10, 1968. Petitioner: ARROW TRANSFER CO., LTD., North Vancouver, British Columbia, Canada. Petitioner's representative: George H. Hart, 1100 IBM Building, Seattle, Wash. 98101. Petitioner holds authority in MC 115667 to conduct operations as a common carrier by motor vehicle, transporting, commodities which because of size or weight require the use of special equipment, between Portland, Oreg., and points in Washington (other than those in Clallam, Jefferson, Kitsap, and Mason Counties), on the one hand, and, on the other, ports of entry at Blaine and Lynden, Wash., on the United States-Canada boundary line. The presently authorized ports of entry between the United States and Canada, namely, Blaine and Lynden, Wash., are both located in Whatcom County in northwestern Washington. Due to the present closure of a number of mills in western British Columbia, substantial demands for the movement of size and weight shipments between points in eastern Washington and British Columbia have arisen. Petitioner has provided the service under its existing authority, however, it has been hampered in providing the most direct and expeditious service due to the requirement of entering British Columbia only at Blaine and Lynden, Wash. By the instant petition, petitioner requests that the Commission review this matter on an ex parte basis, if possible, and authorize the modification of its certificate to the extent of permitting the service authorized therein to be performed by use of any of the ports of entry on the international boundary line between the United States and Canada located in Washington. Any person or persons desiring to participate, may file an original and six copies of his written representations, views, or arguments in support of or against the petition within 30 days from the date of this publication in the FEDERAL REGISTER.

No. MC 123905 (Sub-No. 1) (Notice of Filing of Petition To Add Additional Shipper), filed April 22, 1968. Petitioner: OLEN BURRAGE, Route 9, Box 22–A, Philadelphia, Miss. Petitioner holds contract carrier authority to transport by motor vehicle, over irregular routes, lumber and various lumber products, from Philadelphia, Miss., to points in 18 States, and authority to transport lumber from all points in Alabama and

Georgia to Philadelphia, Miss., under contract with Weyerhaueser Co., and Molpus Lumber Co., both located at Philadelphia, Miss. By this petition, petitioner requests permission to add Deemer Lumber Co., Philadelphia, Miss., as an additional shipper in the transportation of rough and dressed lumber, from Philadelphia, Miss., over irregular routes, to points in Alabama, Louisiana, Tennessee, Kentucky, Indiana, Illinois, and Ohio. Petitioner is presently authorized to transport said commodities from Philadelphia to points in the above-named States. Any interested person desiring to participate, may file an original and six copies of his written representations, views, or argument in support of, or against the petition within 30 days from the date of publication in the FEDERAL REGISTER.

No. MC 126346 (Notice of Filing of Petition for Modification of Permit to Add Additional Contracting Shipper), filed May 16, 1968. Petitioner: HAUPT CONTRACT CARRIERS, INC., Wausau, Wis. Petitioner's representative: Edward Solie, Executive Building, Suite 100, 4513 Vernon Boulevard, Madison, Wis. 53705. Petitioner states it presently holds a permit in No. MC 126346, authorizing motor carrier operations, as a contract carrier, in the transportation of (as here pertinent), (a) self-propelled material handling and construction equipment, with or without attachments (except self-propelled vehicles designed for transporting property or passengers on the highway), (b) grading and loading attachments for tractors, and the commodities in (a) above; from Schofield, Wis., to points in the United States, excluding Arizona, California, Colorado, Montana, Nevada, Idaho, New Mexico, Oregon, Washington, Utah, Wyoming, Alaska, and Hawaii; and (c) materials, equipment, and supplies used in the manufacture and distribution of the commodities in (a) and (b) above, from points in Indiana, Illinois, Iowa, Michigan, Minnesota, New York, Ohio, and Pennsylvania, to Schofield, Wis., all under a continuing contract or contracts with Drott Manufacturing Corp. of Schofield. Applicant states the purpose of the instant petition is to seek to add Wausau Iron Works of Wausau, Wis., as an additional shipper, who, applicant indicates manufactures, markets and distributes commodities similar to those currently transported. Petitioner states this additional shipper has contacted petitioner indicating its desire to utilize its services. Any interested person desiring to participate, may file an original and six copies of his written representations, views, or argument in support of, or against the petition within 30 days from the date of publication in the FEDERAL REGISTER.

No. MC 128950 (Notice of Filing of Petition To Modify Certificate) filed May 20, 1968. Petitioner: PROVINCIAL WAREHOUSES, INC., Post Office Box 104, Ogdensburg Bridge Plaza, Ogdensburg, N.Y. 13667. Petitioner's representatives: Pinsky, Canter, and Pinsky, 345 South Warren Street, Syracuse, N.Y. 13202. Petitioner holds authority in No. MC 128950 to perform transportation in foreign commerce as follows: "Irregular routes: Liquor, malt beverages, tobacco, and perfumes, other than in bulk, between ports of entry on the United States-Canada boundary line located at or near Ogdensburg, Massena, and Alexandria Bay, N.Y., Derby Line, Vt., Blaine, Wash., and Detroit, Mich., on the one hand, and, on the other, warehouses at Ogdensburg, Massena, and Alexandria Bay, N.Y., Derby Line, Vt., Blaine, Wash., and Detroit, Mich., restricted to the transportation of traffic originating at or destined to points in Canada." By the instant petition, petitioner asks that its certificate be modified to authorize transportation as a common carrier, in foreign commerce only, as follows: Liquor, malt beverages, tobacco, and perfumes, other than in bulk, between ports of entry on the United States-Canada boundary line, bonded warehouses, and retail stores located at or near Ogdensburg, Massena, and Alexandria Bay, N.Y., Derby Line, Vt., Blaine, Wash., and Detroit, Mich. Any interested person desiring to participate, may file an original and six copies of his written representations, views or argument in support of, or against the petition within 30 days from the date of publication in the FEDERAL REGISTER.

APPLICATIONS FOR CERTIFICATES OR PERMITS WHICH ARE TO BE PROCESSED CONCURRENTLY WITH APPLICATIONS UNDER SECTION 5 GOVERNED BY SPECIAL RULE 1.240 TO THE EXTENT APPLICABLE

No. MC 44592 (Sub-No. 28) filed May 16, 1968. Applicant: MIDDLE ATLANTIC TRANSPORTATION CO., INC., 976 West Main Street, New Britain, Conn. 06050. Applicant's representative: John C. Bradley, 618 Perpetual Building, Washington, D.C. 20004. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities*, between Chagrin Falls, Ohio, on the one hand, and, on the other, points in Ohio, restricted to the transportation of shipments moving to, from, or through Chagrin Falls, Ohio. NOTE: Applicant states that as an alternative, if the Commission does not see fit to grant irregular route service as described above, applicant seeks to transport over regular routes as follows: *General commodities*, serving points in Ohio as off-route points in connection with carrier's service over authorized regular routes, restricted to the transportation of shipments moving to, from, or through Chagrin Falls, Ohio. Applicant indicates tacking at Chagrin Falls, Ohio, with its proposed regular-route authority between Chagrin Falls and Cleveland, Ohio, embraced in MC–F–10128, and with its existing authority between Cleveland, Ohio and other authorized points. This application is a matter directly related to MC–F–10128, published in FEDERAL REGISTER issue of May 29, 1968. It seeks to convert the certificate of registration of Suter, Inc., MC–61117 (Sub-No. 3) into a certificate of public convenience and necessity. Applicant intends to eliminate any duplicate authority. If a hearing is deemed necessary, applicant requests it be held at Cleveland, Ohio, or Washington, D.C.

APPLICATIONS UNDER SECTIONS 5 AND 210a(b)

The following applications are governed by the Interstate Commerce Commission's special rules governing notice of filing of applications by motor carriers of property or passengers under sections 5(a) and 210a(b) of the Interstate Commerce Act and certain other proceedings with respect thereto (49 CFR 1.240).

MOTOR CARRIERS OF PROPERTY

No. MC–F–10140. Authority sought for purchase by COURIER-NEWSOM EXPRESS, INC., Post Office Box 509, Columbus, Ind. 47201, of the operating rights of LAMP TRUCKING CO., 1720 13th Street, Rockford, Ill. 61108, and for acquisition by PAUL ROBERT NEWSOM, also of Columbus, Ind., of control of such rights through the purchase. Applicants' attorneys and representative: Axelrod, Goodman, and Steiner, 39 South La Salle Street, Chicago, Ill. 60603, and Clifford E. Stoner, 803 Talcott Building, Rockford, Ill. Operating rights sought to be transferred: Under a certificate of registration, in Docket No. MC–99706 Sub-1, covering the transportation of commodities general, as a common carrier, in intrastate commerce, within the State of Illinois. Vendee is authorized to operate as a *common carrier* in Indiana, Kentucky, Michigan, Wisconsin, Minnesota, Iowa, Missouri, Illinois, Ohio, West Virginia, Pennsylvania, and New York. Application has been filed for temporary authority under section 210a(b). NOTE: Docket No. MC–69901 Sub-18, is a matter directly related.

No. MC–F–10141. Authority sought for purchase by FOLLMER TRUCKING COMPANY, Hummels Wharf, Pa. 17831, of a portion of the operating rights of BENNY DE FAZIO, JR., 1028 Springbrook Avenue, Moosic, Pa. 18507, and for acquisition by ARTHUR ROSEN, Post Office Box 237, Danville, Pa. 17821, of control of such rights through the purchase. Applicants' attorney: Christian V. Graf, 407 North Front Street, Harrisburg, Pa. 17101. Operating rights sought to be transferred: *General commodities*, except those of unusual value, classes A and B explosives, livestock, commodities in bulk, commodities requiring special equipment, household goods as defined by the Commission, coconut oil, coconut oil products, lard substitutes or compounds, cooking oils, glycerine, stearine, toilet preparations, soap, soap products, premiums, and advertising matter pertaining to these products, as a *common carrier*, over irregular routes, from Allentown, Pa., to certain specified points in Pennsylvania. Restriction: The authority granted herein shall be subject to the right of the Commission, which is hereby expressly reserved, to impose such terms, conditions, or limitations in the future as it may find necessary in order to insure that carrier's operations shall conform to the provisions of section 210 of the Act. Vendee is authorized

to operate as a *common carrier* in Pennsylvania, Maryland, New York, and New Jersey. Application has not been filed for temporary authority under section 210a(b).

No. MC–F–10142. Authority sought for purchase by C & H TRANSPORTATION CO., INC., 1935 West Commerce, Post Office Box 5976, Dallas, Tex. 75222, of a portion of the operating rights of C & H FREIGHTWAYS, 402 West Watkins Road, Post Office Box 12176, Southeast Station, Phoenix, Ariz. 85034, and for acquisition by SATURN INDUSTRIES, INC., 3100 Southland Center, Dallas, Tex. 75202, of control of such rights through the purchase. Applicants' attorney: W. T. Brunson, 419 Northwest Sixth Street, Oklahoma City, Okla. 73102. Operating rights sought to be transferred: *Iron and steel, prefabricated iron and steel products, pipe, construction tools, machinery, and heavy and cumbersome commodities* which, because of size or weight, require the use of special equipment, except the stringing and picking up of pipe in connection with petroleum and natural gas pipelines, as a *common carrier*, over irregular routes, between points in Arizona, on the one hand, and, on the other, points in Colorado and New Mexico; and *self-propelled articles*, each weighing 15,000 pounds or more, and *related machinery, tools, parts, and supplies* moving in connection therewith, between points in Arizona, on the one hand, and, on the other, points in Colorado and New Mexico, with restriction. Vendee is authorized to operate as a *common carrier* in all points in the United States, except Hawaii. Application has not been filed for temporary authority under section 210a(b).

No. MC–F–10143. Authority sought for control and merger by BITER FREIGHT SYSTEM, INC., 1800 North Olden Avenue, Trenton, N.J. 08601, of the operating rights and property of THE GORE FREIGHT LINE, INCORPORATED, 641 Connecticut Avenue, South Norwalk, Conn., and for acquisition by RUBERT BITER, SR., also of Trenton, N.J., of control of such rights and property through the transaction. Applicants' representative: William D. Traub, 10 East 40th Street, New York, N.Y. 10016. Operating rights sought to be controlled and merged: *Sulphur*, as a *common carrier*, over regular routes, from Warners, N.J., to Stamford, Conn., serving no intermediate points; *magnesia and whiting*, from Philadelphia, Pa., to Stamford, Conn., serving no intermediate points; *litharge*, from Trenton, N.J., to Stamford, Conn., serving no intermediate points; *vegetable oil fiber*, solid or liquid, and *lead oleate and leather dressing*, from Stamford, Conn., to Philadelphia, Pa., and Providence, R.I., serving certain intermediate and off-route points, restricted to delivery only; *general commodities*, excepting, among others, household goods and commodities in bulk, between Hoboken, N.J., and Springfield, Mass., serving certain intermediate and off-route points; *wines and liquors and empty containers* therefor, between Hartford, Conn., and Providence, R.I., serving certain intermediate points, between New Haven, Conn., and Boston, Mass., serving the intermediate points of Providence and Pawtucket, R.I., and the off-route point of Cranston, R.I., between East Hartford, Conn., and New London, Conn., serving certain intermediate points; and the off-route point of Amston, Conn.; *vegetable oil fiber*, solid or liquid, and *lead oleate and leather dressing*, over irregular routes, from Stamford, Conn., to certain specified points in Massachusetts; *castor, corn, soy bean, rapeseed, chinawood, linseed, mustard seed, cottonseed, sunflower, tea seed, and rubber seed oils*, in tank trucks, from certain specified points in New Jersey, to Stamford, Conn.

Contractors' equipment and supplies, and heavy machinery, between Stamford, Conn., and points in Connecticut within 15 miles of Stamford, on the one hand, and, on the other, points in Massachusetts, New Jersey, New York, and Rhode Island; *boats and materials used in the repair and construction of boats*, between Stamford, Conn., and points in Connecticut within 15 miles of Stamford, on the one hand, and, on the other, Lake George, N.Y., points in New Jersey and those in the New York, N.Y., commercial zone as defined by the Commission; *scrap metals*, between Stamford, Conn., and points in Connecticut within 15 miles of Stamford, on the one hand, and, on the other, points in Massachusetts and Rhode Island, those in Westchester County, N.Y., and those in the New York, N.Y., commercial zone as defined by the Commission; *general commodities*, excepting, among others, household goods and commodities in bulk, between East Port Chester, Conn., and Port Chester, N.Y., on the one hand, and, on the other, points in Connecticut and New York within 15 miles of Port Chester, N.Y.; *such commodities* as are dealt in by chain, retail, and mail-order department stores, the business of which is the sale of general merchandise, between Danbury, Conn., on the one hand, and, on the other, points in Putnam County, N.Y., that part of Dutchess County, N.Y., south of U.S. Highway 44, and that part of Westchester County, north of a line extending from Armonk to North Tarrytown, N.Y., restricted to the performance of retail delivery service; and *such commodities* as are dealt in or sold by retail mail-order houses, except commodities in bulk, in tank vehicles, from Norwalk, Conn., and Springfield, Mass., to points in Connecticut, from points in Connecticut, to Norwalk, Conn. BITER FREIGHT SYSTEM, INC., is authorized to operate as a *common carrier* in Pennsylvania, New Jersey, and New York. Application has not been filed for temporary authority under section 210a(b).

No. MC–F–10139. Authority sought for merger into CONNECTICUT LIMOUSINE SERVICE, INC., 1060 State Street, New Haven, Conn. 06511, of the operating rights and property of CONNECTICUT LIMOUSINE SERVICE-DANBURY, INC., 1060 State Street, New Haven, Conn. 06511, and for acquisition by EDWARD DILAURO, JR., 855 Prospect Street, Hamden, Conn. 06514, of control of such rights and property through the transaction. Applicants' attorney: Palmer S. McGee, Jr., 1 Constitution Plaza, Hartford, Conn. 06103. Operating rights sought to be merged: Passengers and their baggage in the same vehicle with passengers, limited to the transportation of not more than 11 passengers in any one vehicle, not including the driver thereof, as a *common carrier*, over regular routes, between Danbury, Conn., and La Guardia Airport, New York, N.Y., and John F. Kennedy International Airport, Idlewild, N.Y., serving the intermediate points of Ridgefield, Wilton, and Norwalk, Conn. CONNECTICUT LIMOUSINE SERVICE, INC., is authorized to operate as a *common carrier* in Connecticut, New York, and New Jersey. Application has not been filed for temporary authority under section 210a(b). NOTE: CONNECTICUT LIMOUSINE SERVICE, INC., controls CONNECTICUT LIMOUSINE SERVICE-DANBURY, INC., through ownership of capital stock pursuant to authority granted in MC–F–8973, effective November 26, 1965, and consummated December 30, 1965.

By the Commission.

[SEAL] H. NEIL GARSON,
Secretary.

[F.R. Doc. 68–6616; Filed, June 4, 1968; 8:49 a.m.]

[Notice 1187]

MOTOR CARRIER, BROKER, WATER CARRIER AND FREIGHT FORWARDER APPLICATIONS

MAY 31, 1968.

The following applications are governed by Special Rule 1.247 [1] of the Commission's general rules of practice (49 CFR, as amended), published in the FEDERAL REGISTER issue of April 20, 1966, effective May 20, 1966. These rules provide, among other things, that a protest to the granting of an application must be filed with the Commission within 30 days after date of notice of filing of the application is published in the FEDERAL REGISTER. Failure seasonably to file a protest will be construed as a waiver of opposition and participation in the proceeding. A protest under these rules should comply with § 1.247(d)(3) of the rules of practice which requires that it set forth specifically the grounds upon which it is made, contain a detailed statement of protestant's interest in the proceeding (including a copy of the specific portions of its authority which protestant believes to be in conflict with that sought in the application, and describing in detail the method—whether by joinder, interline, or other means—by which protestant would use such authority to provide all or part of

[1] Copies of Special Rule 1.247 (as amended) can be obtained by writing to the Secretary, Interstate Commerce Commission, Washington, D.C. 20423.

the service proposed), and shall specify with particularity the facts, matters, and things relied upon, but shall not include issues or allegations phrased generally. Protests not in reasonable compliance with the requirements of the rules may be rejected. The original and one copy of the protest shall be filed with the Commission, and a copy shall be served concurrently upon applicant's representative, or applicant if no representative is named. If the protest includes a request for oral hearing, such requests shall meet the requirements of § 1.247 (d)(4) of the special rules, and shall include the certification required therein.

Section 1.247(f) of the Commission's rules of practice further provides that each applicant shall, if protests to its application have been filed, and within 60 days of the date of this publication, notify the Commission in writing (1) that it is ready to proceed and prosecute the application, or (2) that it wishes to withdraw the application, failure in which the application will be dismissed by the Commission.

Further processing steps (whether modified procedure, oral hearing, or other procedures) will be determined generally in accordance with the Commission's General Policy Statement Concerning Motor Carrier Licensing Procedures, published in the FEDERAL REGISTER issue of May 3, 1966. This assignment will be by Commission order which will be served on each party of record.

The publications hereinafter set forth reflect the scope of the applications as filed by applicants, and may include descriptions, restrictions, or limitations which are not in a form acceptable to the Commission. Authority which ultimately may be granted as a result of the applications here noticed will not necessarily reflect the phraseology set forth in the application as filed, but also will eliminate any restrictions which are not acceptable to the Commission.

No. MC 339 (Sub-No. 11), filed May 16, 1968. Applicant: LINCOLN MOVING & STORAGE CO., INC., 1924 Fourth Avenue South, Seattle, Wash. 98134. Applicant's representative: George Kargianis, 609 Norton Building, Seattle, Wash. 98104. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Household goods*, between points in King, Pierce, Snohomish, Kitsap, and Thurston Counties, Wash. NOTE: Applicant states that the above proposed service is restricted to the transportation of shipments both (1) moving on the through bill of lading of a freight forwarder operating under the exemption provisions of section 402(b)(2) of the Interstate Commerce Act, as amended, and (2) having an immediately prior or subsequent out-of-state line-haul movement by rail, motor, water, or air. Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Seattle, Wash., or Portland, Oreg.

No. MC 2860 (Sub-No. 26), filed May 20, 1968. Applicant: NATIONAL FREIGHT, INC., 57 West Park Avenue, Vineland, N.J. 08360. Applicant's representative: Alvin Altman, 1776 Broadway, New York, N.Y. 10019. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Foodstuffs* (except commodities in bulk in tank and hopper vehicles), from Buffalo, Dunkirk, and Westfield, N.Y., and Erie and North East, Pa., to points in Delaware, Maryland, New Jersey, New York, Pennsylvania, and West Virginia, and (2) *materials and supplies* used in the operation of a food processing plant, from points in the destination States in (1) above to Westfield, N.Y., and North East, Pa. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at New York, N.Y., Philadelphia, Pa., or Washington, D.C.

No. MC 38320 (Sub-No. 13), filed May 17, 1968. Applicant: CENTRAL MOTOR EXPRESS, INC., Post Office Box 216, Campbellsville, Ky. 42718. Applicant's representative: Robert M. Pearce, Post Office Box E, Bowling Green, Ky. 42101. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk, commodities requiring special equipment, and those injurious or contaminating to other lading), between plantsites and storage facilities of the Reed Candy Co. at or near Campbellsville, Ky., on the one hand, and, on the other, points in Alabama, Georgia, Illinois, Indiana, Louisiana, Mississippi, Missouri, North Carolina, Ohio, Pennsylvania, South Carolina, Tennessee, Virginia, West Virginia, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Louisville or Lexington, Ky.

No. MC 50493 (Sub-No. 37), filed May 20, 1968. Applicant: P. C. M. TRUCKING, INC., Main Street, Orefield, Pa. Applicant's representative: Frank A. Doocey, 601 Hamilton Street, Room 201, Allentown, Pa. 18101. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Feed constituents* (including meat scraps, bone meal, tankage, blood meal), between points in New York and Winfield, Gettysburg, Meadville, New Wilmington, and Manheim, Pa. NOTE: Applicant holds contract carrier authority under MC 115859 and subs thereunder, therefore dual operations may be involved. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., or Philadelphia, Pa.

No. MC 52704 (Sub-No. 60), filed May 20, 1968. Applicant: GLENN McCLENDON TRUCKING CO., INC., La Fayette, Ala. Applicant's representative: John W. Cooper, 1301 City Federal Building, Birmingham, Ala. 35203. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Sugar* (other than liquid), from the plantsites of sugar refineries located at Gramercy, Reserve, New Orleans, Supreme, Houma, and Mathews, La. to points in North Carolina and South Carolina, and *rejected shipments*, on return. NOTE: If a hearing is deemed necessary, applicant requests it be held at New Orleans, La.

No. MC 59640 (Sub-No. 11), filed May 15, 1968. Applicant: PAULS TRUCKING CORPORATION, 847 Flora Street, Elizabeth, N.J. 07201. Applicant's representative: Charles J. Williams, 47 Lincoln Park, Newark, N.J. 07102. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Such merchandise*, as is dealt in by wholesale, retail, and chain grocery and food business houses, and, in connection therewith, *equipment, materials, and supplies* used in the conduct of such business, between Woodbridge Township, N.J., on the one hand, and, on the other, points in Suffolk, Westchester, and Rockland Counties, N.Y.; Bucks and Delaware Counties, Pa.; New Castle and Kent Counties, Del.; and Fairfield County, Conn., under contract with Supermarkets General Corp. NOTE: If a hearing is deemed necessary, applicant requests it be held at Newark, N.J., or New York, N.Y.

No. MC 67200 (Sub-No. 30), filed May 20, 1968. Applicant: THE FURNITURE TRANSPORT COMPANY, INC., Furniture Row, Milford, Conn. Applicant's representative: Arthur J. Piken, 160–16 Jamaica Avenue, Jamaica, N.Y. 11432. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *New furniture* between Milford, Conn., and points in Rhode Island. NOTE: Applicant states it intends to tack in New York, N.Y., points in New Jersey and points in the New England States. If a hearing is deemed necessary, applicant requests it be held at Hartford, Conn.

No. MC 79687 (Sub-No. 7) filed May 14, 1968. Applicant: WARREN C. SAUERS CO., INC., 116 Queens Court, Pittsburgh, Pa. 15237. Applicant's representative: John A. Pillar, 2310 Grant Building, Pittsburgh, Pa. 15219. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Glass containers, caps, stoppers, and covers*, from points in McKean County, Pa., to points in that part of Indiana on and north of U.S. Highway 40; the Lower Peninsula of Michigan and that part of Ohio, on and west of a line beginning at Portsmouth, Ohio, thence over U.S. Highway 23 to Marion, Ohio, and thence over Ohio Highway 4 to Sandusky, Ohio, and (2) *materials, equipment, and supplies* used in the manufacture, packing, and shipping of glass containers, caps, stoppers, and covers, from points in the described areas of Michigan, Indiana, and Ohio, to points in McKean County, Pa. NOTE: If a hearing is deemed necessary, applicant requests it be held at Pittsburgh, Pa., or Washington, D.C.

No. MC 83539 (Sub-No. 230), filed May 16, 1968. Applicant: C & H TRANSPORTATION CO., INC., 1935 West Commerce Street, Dallas, Tex. 75222. Applicant's representatives: J. P. Welsh, Post Office Box 5976, Dallas, Tex. 75222, and W. T. Brunson, 419 Northwest Sixth

Street, Oklahoma City, Okla. 73102. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Electrical transformers* which by reason of size or weight require the use of special equipment, and (2) *electrical transformers* other than those described in (1) above, when moving in mixed loads therewith, from Sharon, Pa., to points in Arizona, California, Colorado, Idaho, Illinois, Indiana, Iowa, Kansas, Kentucky, Mississippi, Missouri, Montana, Nebraska, Nevada, North Dakota, Oregon, South Dakota, Utah, Washington, and Wyoming. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 94350 (Sub-No. 187), filed May 20, 1968. Applicant: TRANSIT HOMES, INC., Haywood Road, at Transit Drive, Post Office Box 1628, Greenville, S.C. 29602. Applicant's representative: Mitchell King, Jr., Post Office Box 1628, Greenville, S.C. 29602. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Trailers* designed to be drawn by passenger automobiles, in initial movements, from points in Cleveland County, N.C., to points in the United States on and east of the Mississippi, including all of Louisiana and Minnesota. NOTE: If a hearing is deemed necessary, applicant requests it be held at Shelby, N.C.

No. MC 100666 (Sub-No. 118) (Correction), filed March 25, 1968, published in FEDERAL REGISTER issue of April 11, 1968, and corrected this issue. Applicant: MELTON TRUCK LINES, INC., Post Office Box 7666, Shreveport, La. 71107. Applicant's representative: Wilburn L. Williamson, 450 American National Building, Oklahoma City, Okla. 73102. "MC 10066 (Sub-No. 118)", published in FEDERAL REGISTER issue of April 11, 1968, was in error and the correct docket number should have been "MC 100666 (Sub-No. 118)."

No. MC 107515 (Sub-No. 614), filed May 13, 1968. Applicant: REFRIGERATED TRANSPORT CO., INC., Post Office Box 10799, Station A, Atlanta, Ga. 30310. Applicant's representative: B. L. Gundlach (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, and meat byproducts*, as described in sections A and B of appendix I, *Descriptions in Motor Carrier Certificates* 61 M.C.C. 209 and 766 (except commodities in bulk, in tank vehicles, and hides) from Pekin, Ill., to points in Alabama, Florida, Georgia, Kentucky, North Carolina, South Carolina, Tennessee, and Virginia. NOTE: If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo., or Chicago, Ill.

No. MC 108449 (Sub-No. 286), filed May 20, 1968. Applicant: INDIANHEAD TRUCK LINE, INC., 1947 West County Road C, St. Paul, Minn. 55113. Applicant's representative: W. A. Myllenbeck (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Lime and limestone products* (except cement) in bulk, between points in North Dakota, Minnesota, Wisconsin, and the Upper Peninsula of Michigan, restricted to shipments having a prior movement by rail. NOTE: If a hearing is deemed necessary, applicant requests it be held at Minneapolis, Minn.

No. MC 110420 (Sub-No. 565), filed May 20, 1968. Applicant: QUALITY CARRIERS, INC., 100 South Calumet Street, Burlington, Wis. 53105. Applicant's representative: Allan B. Torhorst, Post Office Box 339, Burlington, Wis. 53105. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Liquid syrups* in bulk, from Milwaukee, Wis., to points in Illinois, Indiana, Iowa, Nebraska, and Wisconsin. NOTE: Applicant states that no duplicating authority is sought. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill., or Milwaukee, Wis.

No. MC 111045 (Sub-No. 60), filed May 17, 1968. Applicant: REDWING CARRIERS, INC., Post Office Box 426, Palm River Road, Tampa, Fla. 33601. Applicant's representative: David E. Wells (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Commodities in bulk*, having prior movement by rail, (1) from points in Broward, Duval, and Hillsborough Counties, Fla., to points in Florida and (2) from points in Duval County, Fla., to points in Georgia. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Tampa, Fla., or Washington, D.C.

No. MC 111045 (Sub-No. 61), filed May 20, 1968. Applicant: REDWING CARRIERS, INC., Post Office Box 426, Palm River Road, Tampa, Fla. 33601. Applicant's representative: J. V. McCoy (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Liquid fertilizer solution*, from Plymouth and Winter Garden, Fla., to points in Alabama and Georgia. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Tampa, Fla.

No. MC 112893 (Sub-No. 43), filed April 25, 1968. Applicant: BULK TRANSPORT CO., a corporation, 100 South Calumet Street, Burlington, Wis. 53105. Applicant's representative: Allan B. Torhorst, Post Office Box 339, Burlington, Wis. 53105. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Asphalt and asphalt products*, in bulk, from Sheboygan, Wis., to points in Illinois on and north of U.S. Highway 40 (except Chicago, Lemont, and Lockport), Indiana, on and north of U.S. Highway 36 (except that portion of the Chicago commercial zone located in Indiana), Iowa, in and east of U.S. Highway 63, and the Lower Peninsula of Michigan on and south of U.S. Highway 21. NOTE: If a hearing is deemed necessary, applicant requests it be held at Milwaukee, Wis.

No. MC 113267 (Sub-No. 199), filed May 16, 1968. Applicant: CENTRAL & SOUTHERN TRUCK LINES, INC., 312 West Morris Street, Caseyville, Ill. 62232. Applicant's representative: Lawrence A. Fischer (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Pulpboard*, from Riegelwood, N.C., to points in Nebraska, Kansas, Oklahoma, Texas, Louisiana, Mississippi, Alabama, Arkansas, Missouri, Iowa, Minnesota, Wisconsin, Michigan, Illinois, Indiana, Kentucky, and Georgia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Raleigh, N.C., or Atlanta, Ga.

No. MC 113498 (Sub-No. 3), filed May 17, 1968. Applicant: EDWARD F. SCHULTZ, doing business as E. F. SCHULTZ TRANSPORTATION COMPANY, 7 Rosenthal Street, East Hartford, Conn. Applicant's representative: Reubin Kaminsky, 410 Asylum Street, Hartford, Conn. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Malt beverages*, namely beer and ale, in barrels and containers, in cases or cartons, from Merrimack, N.H., to East Hartford, Conn., and return empty barrels, cases, cartons, and containers, on return, under contract with Hartford Distributors, Inc., of East Hartford, Conn. NOTE: If a hearing is deemed necessary, applicant requests it be held at Hartford, Conn., or New York, N.Y.

No. MC 114364 (Sub-No. 168), filed May 20, 1968. Applicant: WRIGHT MOTOR LINES, INC., Post Office Box 1191, 1401 North Little Street, Cushing, Okla. 74023. Applicant's representative: Rodger Spahr, Post Office Box 1191, Cushing, Okla. 74023. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Sodium bicarbonate, borax, sal soda, sodium carbonate, sodium carbonate, sodium phosphates, caustic soda, soda ash, and calcium chloride*, from points in Sweetwater County, Wyo., to points in Arizona, Arkansas, California, Colorado, Idaho, Illinois, Iowa, Kansas, Louisiana, Minnesota, Missouri, Montana, Nebraska, Nevada, New Mexico, North Dakota, Oklahoma, Oregon, South Dakota, Texas, Utah, Washington, Wisconsin, and Wyoming. NOTE: If a hearing is deemed necessary, applicant requests it be held at Denver, Colo., or Salt Lake City, Utah.

No. MC 115003 (Sub-No. 5), filed May 17, 1968. Applicant: RED RIVER TRUCKING COMPANY, a corporation, Post Office Box 247, Commerce, Tex. 76442. Applicant's representative: James W. Hightower, 136 Wynnewood Professional Building, Dallas, Tex. 75224. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Crushed stone, rip rap, rock, sand, gravel, caliche, crushed limestone, agricultural lime, iron ore, and flexible base*, in dump vehicles, (1) from points in Bryan, Choctaw, and McCurtain Counties, Okla., to points in Delta, Franklin, Rockwall, Kaufman, Rains, Wood, Upshur, Van Zandt, Smith,

Gregg, Rush, Henderson, Cherokee, and Shelby Counties, Tex., (2) from points in McCurtain County, Okla., to points in Bowie, Camp, Cass, Harrison, Marion, Morris, Panola, Red River, and Titus Counties, Tex., and (3) from points in Choctaw County, Okla., to points in Camp, Hopkins, Hunt, and Titus Counties, Tex. NOTE: Applicant states no duplicating authority is being sought. If a hearing is deemed necessary, applicant requests it be held at Fort Worth, Tex., or Oklahoma City, Okla.

No. MC 115162 (Sub-No. 156) filed May 14, 1968. Applicant: WALTER POOLE, doing business as POOLE TRUCK LINE, Post Office Box 310, Evergreen, Ala. 36401. Applicant's representative: Robert E. Tate, Suite 2023–2028, City Federal Building, Birmingham, Ala. 35203. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Hardboard and particleboard*, from Adel, Ga., to points in Alabama, Arkansas, Connecticut, Delaware, Florida, Georgia, Illinois, Indiana, Iowa, Kentucky, Louisiana, Maine, Maryland, Massachusetts, Michigan, Mississippi, Missouri, New Hampshire, New Jersey, New York, North Carolina, Oklahoma, Ohio, Pennsylvania, Rhode Island, South Carolina, Tennessee, Texas, Vermont, Virginia, West Virginia, Wisconsin, and the District of Columbia, and (2) *veneer*, from points in Elk County, Pa., to points in Saline County, Ark. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., or Atlanta, Ga.

No. MC 115841 (Sub-No. 332), filed May 15, 1968. Applicant: COLONIAL REFRIGERATED TRANSPORTATION, INC., 1215 Bankhead Highway West, Post Office Box 2169, Birmingham, Ala. 35201. Applicant's representative: C. E. Wesley (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts, and articles distributed by meat packinghouses* (except hides and commodities in bulk, in tank vehicles) as described in sections A and C of appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, and foodstuffs, from Pittsburgh, Pa., to points in New York. NOTE: If a hearing is deemed necessary, applicant requests it be held at Pittsburgh, Pa., Washington, D.C., or New York, N.Y.

No. MC 115946 (Sub-No. 46), filed May 17, 1968. Applicant: GAY TRUCKING COMPANY, a corporation, Post Office Box 7055, Savannah, Ga. 31408. Applicant's representatives: Monty Schumacher, Suite 310, 2045 Peachtree Road NE., Atlanta, Ga. 30309, and B. M. Shirley, Jr., Post Office Box 4174, North Station, Winston-Salem, N.C. 27105. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Resins*, in drums, from points in Georgia to points in Chatham and Glynn Counties, Ga., restricted to the handling of shipments for export. NOTE: If a hearing is deemed necessary, applicant requests it be held at Atlanta, Ga.

No. MC 116273 (Sub-No. 104) (Clarification), filed April 29, 1968, published FEDERAL REGISTER issue May 16, 1968, and republished as clarified this issue. Applicant: D & L TRANSPORT, INC., 3800 South Laramie Avenue, Cicero, Ill. 60650. Applicant's representative: William R. Lavery (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Liquid chemicals and liquefied petroleum*, in bulk, in tank vehicles, from Frankfort, Ill., to points in Georgia, Illinois, Indiana, Kentucky, Michigan, Minnesota, Missouri, Ohio, Tennessee (except Kingsport), and Wisconsin. NOTE: Applicant indicates tacking possibilities with its existing authority at Frankfort, Ill., wherein applicant is authorized to serve points in Colorado, Georgia, Indiana, Iowa, Kansas, Kentucky, Michigan, Minnesota, Missouri, North Dakota, Ohio, South Dakota, Tennessee, Wisconsin, and Wyoming. The purpose of this republication is to show tacking possibilities at Frankfort, Ill., with applicant's existing authority in lieu of Freeport, Ill., as previously published. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 117574 (Sub-No. 170), filed May 9, 1968. Applicant: DAILY EXPRESS, INC., Post Office Box 39, Motor Route No. 3, Carlisle, Pa. 17013. Applicant's representative: G. K. Bishop (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Tractors* (except those with vehicle beds, bed frames, or fifth wheels); (2) *agricultural implements and machinery;* and (3) *attachments, for, and equipment designed for use with the foregoing articles* when moving in mixed loads with such articles, between points in the Davenport, Iowa, Rock Island and Moline, Ill., commercial zone as defined by the Commission, and from points in said commercial zone to points in Connecticut, Delaware, Florida, Georgia, Maine, Maryland, Massachusetts, New Hampshire, New Jersey, New York, North Carolina, Pennsylvania, Rhode Island, South Carolina, Vermont, Virginia, West Virginia, and the District of Columbia. Restriction: The authority herein granted shall be limited to traffic originating at the plantsites of, or storage or distribution facilities used by, International Harvester Co. and terminating in the aforesaid States of destination, provided that this restriction shall not prevent the handling of foreign traffic. NOTE: If a hearing is deemed necessary, applicant did not specify location.

No. MC 129234 (Sub-No. 1), filed May 16, 1968. Applicant: EVERETT W. BALLEW and WALTER H. SHOWN, a partnership, doing business as NEW MOON EXPRESS, 1208 Frederick Road, Ellicott City, Md. 21043. Applicant's representative: Charles McD. Gillan, Jr., 113 Montrose Avenue, Baltimore, Md. 21228. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Scrap metal*, nonferrous, between Baltimore, Md., and Bristol, Chambersburg, Columbia, Mechanicsburg, Philadelphia, and York, Pa.; Carteret, Newark, North Arlington, Perth Amboy, and Trenton, N.J.; New York, N.Y.; Wilmington, Del.; and Petersburg, Va., under contract with B. Shapiro & Co., Inc., Baltimore, Md. NOTE: If a hearing is deemed necessary, applicant requests it be held at Baltimore, Md., or Washington, D.C.

No. MC 129387 (Sub-No. 4), filed May 17, 1968. Applicant: BILL PAYNE, doing business as BILL PAYNE TRUCKING COMPANY, Box 1138, Glasgow, Mont. 59230. Applicant's representative: John J. Tonnsen, Jr., Suite 319 Securities Building, Billings, Mont. 59101. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meat and meat products*, from Glasgow, Mont., and point within 10 miles thereof, to points in Nevada and California. NOTE: If a hearing is deemed necessary, applicant requests it be held at Billings, Mont.

No. MC 129718 (Sub-No. 1), filed May 20, 1968. Applicant: ARNOLD P. BANWART, doing business as BANWART TRUCKING COMPANY, West Bend, Iowa 50597. Applicant's representative: Clayton L. Wornson, 824 Brick and Tile Building, Mason City, Iowa 50401. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Feed additives*, from West Bend, Iowa, to points in Minnesota on and south of a line extending from Duluth, west over U.S. Highway 210 to the Minnesota-North Dakota border and to points in South Dakota on and south of South Dakota Highway 38 and on and east of U.S. Highway 81 and to points in Nebraska on and east of U.S. Highway 281 and on and north of U.S. Highway 6, under contract with Kees and Co. NOTE: If a hearing is deemed necessary, applicant requests it be held at Des Moines, Iowa, or Chicago, Ill.

No. MC 129911 (Sub-No. 1), filed May 20, 1968. Applicant: SPECIALIZED TRUCKING CORP., 90–14 217th Street, Queens Village, New York, N.Y. 11428. Applicant's representative: Irving Klein, 280 Broadway, New York, N.Y. 10007. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Alcoholic beverages*, from New York, N.Y., to points in New York, restricted to home deliveries, and restricted to shipments which have a prior movement by water, and originating in Europe, under continuing contract with Central Data Expeditors, Inc. NOTE: If a hearing is deemed necessary, applicant requests it be held at New York, N.Y.

No. MC 129915, filed May 13, 1968. Applicant: ROBERT G. HEBERT, doing business as HEBERT'S WRECKER SERVICE, 2020 Airline Highway, Kenner, La. 70062. Applicant's representative: Harold R. Ainsworth, 2307 American Bank Building, New Orleans,

La. 70130. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Wrecked and disabled motor vehicles, by use of wrecker equipment*, between points in Louisiana, on the one hand, and, on the other, points in Alabama, Arkansas, Florida, Georgia, Louisiana, Mississippi, and Texas. NOTE: If a hearing is deemed necessary, applicant requests it be held at New Orleans, La.

No. MC 129916 (Sub-No. 1), filed May 20, 1968. Applicant: LEWIS A. HINSON, doing business as BOWENS MOVING AND STORAGE, 15 West Empire Street, Goldsboro, N.C. Applicant's representative: J. Ruffin Bailey, Post Office Box 2246, Raleigh, N.C. 27602. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Used household goods and personal effects*, between points in North Carolina moving on billing of exempt forwarders of household goods. NOTE: If a hearing is deemed necessary, applicant requests it be held at Raleigh, N.C.

No. MC 129920, filed May 15, 1968. Applicant: JOHN N. MOSER, 151 Marsch Avenue, Montgomery, Ill. 60538. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Truck bodies, hoists, snow plows, and parts, supplies, and equipment* used in the manufacture and installation thereof, between Aurora, Ill., on the one hand, and, on the other, Wayne, Ypsilanti, Hillside, and Detroit, Mich.; Cardington, Cleveland, Galion, and Findlay, Ohio; Grundy Center, Iowa; and Omaha, Nebr., under contract with Aurora Truck Body Co., Inc. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

MOTOR CARRIERS OF PASSENGERS

No. MC 228 (Sub-No. 64) filed May 20, 1968. Applicant: HUDSON TRANSIT LINES, INC., 17 Franklin Turnpike, Mahwah, N.J. 07430. Applicant's representative: Samuel B. Zinder, 160–16 Jamaica Avenue, Jamaica, N.Y. 11432. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *Passengers and their baggage, and express and newspapers*, in the same vehicle with passengers, between New York Highways 17B and 55, in Bethel, Sullivan County, N.Y.; from junction New York Highway 17B and unnumbered county road known as North Road, thence over North Road to junction New York Highway 55, serving all intermediate points, including Sullivan County Airport. NOTE: If a hearing is deemed necessary, applicant does not specify a location.

No. MC 668 (Sub-No. 92) filed May 15, 1968. Applicant: INTER-CITY TRANSPORTATION CO., INC., JOSEPH THIEBERG, RECEIVER, 730 Madison, Avenue, Paterson, N.J. 07501. Applicant's representative: Edward F. Bowes, 744 Broad Street, Newark, N.J. 07102. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *Passengers and their baggage and newspapers and express* in the same vehicle with passengers. (1) Between Hackensack, N.J., and Hackensack, N.J. (a) From junction of Passaic Street and First Street in Hackensack, N.J., over First Street to junction Polifly Road, thence over Polifly Road to junction Interstate Highway 80 access road, thence over Interstate Highway 80 access road to Interstate Highway 80 in Hackensack, N.J., and return over the same routes, using Interstate Highway 80 exit road at Polifly Road, serving all intermediate points. (b) From the junction of Court Street and River Street in Hackensack, N.J., over River Street to junction South River Street, thence over South River Street to junction Kennedy Street, thence over Kennedy Street to junction Interstate Highway 80 access road, thence over Interstate Highway 80 access road to Interstate Highway 80 in Hackensack, N.J., and return over the same routes using Interstate Highway 80 exit road at Kennedy Street serving all intermediate points.

(c) From the junction of Summit Avenue and Mary Street in Hackensack, N.J., over Mary Street to junction Polifly Road, thence over Polifly Road to junction of Interstate Highway 80 access road, thence over Interstate Highway 80 access road to Interstate Highway 80 in Hackensack, N.J., and return over the same routes using Interstate Highway 80 exit road at Polifly Road, serving all intermediate points. 2. Between Hasbrouck Heights, and Hackensack, N.J. From the junction of Boulevard and Williams Avenue in Hasbrouck Heights, N.J., over Williams Avenue to junction Terrace Avenue, thence over Terrace Avenue to junction Polifly Road, thence over Polifly Road to Interstate Highway 80 access road, thence over Interstate Highway 80 access road to Interstate Highway 80 in Hackensack, N.J., and return over the same routes using Interstate Highway 80 exit road at Polifly Road, serving all intermediate points. 3. Between Paramus, and Hackensack, N.J. From junction of New Jersey Highway 17 and New Jersey Highway 4 in Paramus, N.J., over New Jersey Highway 17 to junction Interstate Highway 80 access road, thence over Interstate Highway 80 access road to Interstate Highway 80 in Hackensack, N.J., and return over the same routes using Interstate Highway 80 exit road, at New Jersey 17, serving no intermediate points.

4. Between Hackensack, and South Hackensack, N.J. (a) From junction Mercer Street and State Street in Hackensack, N.J., over State Street to junction South State Street, thence over South State Street to junction Huyler Street in South Hackensack, thence over Huyler Street to junction North Street in Teterboro, N.J., thence over North Street to junction Interstate Highway 80 access road, thence over Interstate Highway 80 access road to Interstate Highway 80 in South Hackensack, N.J., and on return over Interstate Highway 80 exit road at Wesley Street in South Hackensack, N.J., to junction Wesley Street, thence over Wesley Street to junction Huyler Street in South Hackensack, N.J., thence over Huyler Street to junction South State Street in Hackensack, N.J., thence over South State Street to State Street, thence over State Street to Center Street in Hackensack, N.J., serving all intermediate points. (b) From junction of Mercer Street and State Street in Hackensack, N.J., over State Street to junction South State Street, thence over South State Street to junction Huyler Street in South Hackensack, N.J., thence over Huyler Street to junction Leunning Street, thence over Leunning Street to junction Green Street in South Hackensack, N.J., and Hackensack, N.J., thence over Green Street to junction North Street, thence over North Street to junction Interstate Highway 80 access road, thence over Interstate Highway 80 access road to Interstate Highway 80 in South Hackensack, N.J., and return over Interstate Highway 80 exit road at Wesley Street in South Hackensack, N.J., to junction Wesley Street in Hackensack, N.J., thence over Wesley Street to junction Green Street in South Hackensack, N.J., and Hasbrouck Heights, N.J., thence over Green Street to junction Leunning Street, thence over Leunning Street to junction Huyler Street, thence over Huyler Street to junction South State Street at South Hackensack, N.J., and Hackensack, N.J., boundary line, thence over South State Street to junction State Street, thence over State Street to junction Mercer Street in Hackensack, N.J., serving all intermediate points.

5. Between Teaneck, N.J., and Teaneck, N.J. From the junction of Fort Lee Road and Teaneck Road in Teaneck, N.J., over Teaneck Road to De Graw Avenue, thence over De Graw Avenue to junction Interstate Highway 95 access road, thence over Interstate Highway 95 access road to junction Interstate Highway 95 in Teaneck, N.J., and return over the same routes using Interstate Highway 95 exit road at De Graw Avenue, serving all intermediate points. 6. Between Rochelle Park, N.J.-Lodi, N.J., and Lodi, N.J. From junction Essex Street and Riverview Road in Lodi, N.J., at the Rochelle Park, N.J., boundary line, over Riverview Road to junction Interstate Highway 80 access road, thence over Interstate Highway 80 access road to Interstate Highway 80 in Lodi, N.J., and return over the same routes to Rochelle Park, N.J., at the Lodi, N.J.-Rochelle Park, N.J., boundary line using Interstate Highway 80 exit road at Riverview Road in Lodi, N.J., serving all intermediate points. 7. Between Rochelle Park and Lodi, N.J. From junction of Passaic Street and Rochelle Avenue in Rochelle Park, N.J., over Rochelle Avenue to junction Essex Street, thence over Essex Street to junction Riverview Avenue at the Rochelle Park, N.J., and Lodi, N.J., boundary line, thence over Riverview Avenue to junction Interstate Highway 80 access road, thence over Interstate Highway 80 access road to junction Interstate Highway 80 in Lodi, N.J., and return over the same routes, using Interstate Highway 80 exit road at Riverview Avenue, serving all intermediate points.

8. Between Fairlawn, and Saddle Brook, N.J. From junction Plaza Road and Broadway in Fairlawn, N.J., thence

over Broadway to junction Midland Avenue, thence over Midland Avenue to junction Pehle Avenue, thence over Pehle Avenue to junction Interstate Highway 80 access road, thence over Interstate Highway 80 access road to Interstate Highway 80 in Saddle Brook, N.J., and return over the same routes using Interstate Highway 80 exit road at Pehle Avenue, serving all intermediate points, 9. Between Paterson and Lodi, N.J. From junction Broadway and 30th Street in Paterson, N.J., over Broadway to junction Boulevard in East Paterson, thence over Boulevard to junction Market Street, thence over Market Street to junction Essex Street, thence over Essex Street to junction Riverview Avenue, thence over Riverview Avenue to junction Interstate Highway 80 access road, thence over Interstate Highway access road to Interstate Highway 80 in Lodi, N.J., and return over the same routes using Interstate Highway 80 exit road at Riverview Avenue, serving all intermediate points.

10. Between Paterson, N.J., and Paterson, N.J. (a) From junction of Market Street and Church Street in Paterson, N.J., over Church Street to junction Ellison Street, thence over Ellison Street to junction Straight Street, thence over Straight Street to junction Market Street, thence over Market Street to junction Madison Avenue, thence over Madison Avenue to junction Interstate Highway 80 access road, thence over Interstate Highway 80 access road to Interstate Highway 80, Paterson, N.J., and return from Interstate Highway 80 over Interstate Highway 80 exit road at Madison Avenue to junction Madison Avenue, thence over Madison Avenue to junction 16th Avenue, thence over 16th Avenue to junction Market Street, thence over Market Street to junction Church Street, serving all intermediate points. (b) From the junction Market Street and Church Street in Paterson, N.J., over Church Street to junction Ellison Street, thence over Ellison Street to junction Straight Street, thence over Straight Street to junction Market Street, thence over Market Street to junction Lakeview Avenue, thence over Lakeview Avenue to junction New Jersey Highway 20, thence over New Jersey Highway 20 to junction Interstate Highway 80 access road, thence over Interstate Highway 80 access road to junction Interstate Highway 80 in Paterson, N.J., and return from Interstate Highway 80 over Interstate Highway 80 exit road at Madison Avenue, thence over Interstate Highway 80 exit road to junction Madison Avenue, thence over Madison Avenue to junction 16th Avenue, thence over 16th Avenue to junction Market Street, thence over Market Street to junction Church Street, serving all intermediate points.

(c) From junction of Main Avenue and Madison Avenue in Paterson, N.J., over Madison Avenue to junction Interstate Highway 80 access road, thence over Interstate Highway 80 access road to Interstate Highway 80 in Paterson, N.J., and return over the same routes, serving all intermediate points. 11. Between Paterson, N.J. and New York, N.Y. (a) From Paterson, N.J., over Interstate Highway 80 in Paterson, N.J., to junction Interstate Highway 95 at the Teaneck, N.J., and Ridgefield Park boundary line, thence over Interstate Highway 95 and the George Washington Bridge to New York, N.Y., serving the intermediate point of Fort Lee, N.J., and for purpose of joinder to the proposed routes described hereinbefore in paragraphs 1 to 10, serving the intermediate points of Saddle Brook, Rochelle Park, Lodi, Hackensack, South Hackensack, and Teaneck. (b) From Paterson, N.J., over Interstate Highway 80 in Paterson, N.J., to junction Interstate Highway 80 exit road, thence over Interstate Highway 80 exit road to junction Interstate Highway 95 access road at the Teaneck, N.J., and Ridgefield Park, N.J., boundary line, thence over Interstate Highway 95 access road to junction Interstate Highway 95, thence over Interstate Highway 95 to junction Interstate Highway 95 exit road in Ridgefield Park, N.J., thence over Interstate Highway 95 exit road to junction New Jersey Turnpike access road, thence over New Jersey Turnpike access road to junction New Jersey Turnpike, thence over New Jersey Turnpike to junction New Jersey Turnpike exit road in Secaucus, N.J., thence over New Jersey Turnpike exit road to Interstate Highway 495, also known as New Jersey Highway 3, in North Bergen, N.J., over New Jersey Turnpike exit road in Secaucus, N.J., to junction Paterson Road, thence over Paterson Road to Interstate Highway 495, also known as New Jersey Highway 3, in North Bergen, N.J., thence over Interstate Highway 495, also known as New Jersey Highway 3, to New York, N.Y., through the Lincoln Tunnel, and return over the same routes, using the New Jersey Turnpike access road in North Bergen, N.J., and its exit road in Ridgefield Park, N.J., and Interstate Highway 95 access road in Ridgefield Park, N.J., and its exit road and Interstate Highway 80 access road at the Ridgefield Park, N.J., and Teaneck, N.J., boundary line, serving the intermediate points of Secaucus, North Bergen, Union City, and Weehawken, N.J., and for purposes of joinder to the proposed routes described hereinbefore in paragraphs 1 to 10, serving the intermediate points of Saddle Brook, Rochelle Park, Hackensack, South Hackensack, and Teaneck. NOTE: The applicant proposes to join the above-described proposed routes to all of its existing routes in Docket MC 668 and sub numbers thereunder, in order to provide service between all points on its existing routes in New Jersey and New York, N.Y., through the George Washington Bridge and the Lincoln Tunnel. If a hearing is deemed necessary, applicant requests it be held at Newark, N.J., or New York, N.Y.

APPLICATIONS OF FREIGHT FORWARDER

FREIGHT FORWARDER OF PROPERTY

No. FF-344 AEM, INC., FREIGHT FORWARDER APPLICATION, filed May 21, 1968. Applicant: AEM, INC., 821 Howard Road SE., Washington, D.C. Authority sought under Part IV of the Interstate Commerce Act as a freight forwarder in Interstate or foreign commerce, in the transportation of *household goods, used automobiles, and unaccompanied baggage,* between points in the United States, including Alaska and Hawaii.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 68-6617; Filed, June 4, 1968; 8:49 a.m.]

[Notice 150]

MOTOR CARRIER TRANSFER PROCEEDINGS

MAY 31, 1968.

Synopses of orders entered pursuant to section 212(b) of the Interstate Commerce Act, and rules and regulations prescribed thereunder (49 CFR Part 1132), appear below:

As provided in the Commission's special rules of practice any interested person may file a petition seeking reconsideration of the following numbered proceedings within 20 days from the date of publication of this notice. Pursuant to section 17(8) of the Interstate Commerce Act, the filing of such a petition will postpone the effective date of the order in that proceeding pending its disposition. The matters relied upon by petitioners must be specified in their petitions with particularity.

No. MC-FC-70306. By order of May 22, 1968, the Transfer Board approved the transfer to Audet & Megantic Transport Ltee, 34 Lemieux, Lake Megantic, Quebec, Canada, of the operating rights in permit No. MC-126622 (Sub-No. 2) issued July 6, 1967, to Pierre Larochelle, Woburn, Cte. Frontenac, Quebec, Canada, authorizing the transportation of wood chips, in bulk, and lumber, from ports-of-entry on the United States-Canadian boundary line at or near Jackman and Coburn Gore, Maine, Pittsburgh, N.H., Norton, Derby Line, North Troy, Richford, and Highgate Springs, Vt., and Rouses Point, N.Y., to points in Maine, Massachusetts, Vermont, New Hampshire, and New York, restricted to the transportation of traffic originating at Woburn, Quebec, Canada.

No. MC-FC-70361. By order of May 22, 1968, the Transfer Board approved the transfer to Arrow Van Lines, Inc., 88 Randolph Street, Post Office Box 1051, Savannah, Ga. 31401, of the operating rights in certificate No. MC-120392 (Sub-No. 2) issued May 17, 1968, to Henry C. Smith, doing business as Arrow Van Lines, 88 Randolph Street, Post Office Box 1051, Savannah, Ga. 31401, authorizing the transportation, over irregular routes, of household furniture and household appliances between Savannah, Ga., on the one hand, and, on the other, points in Beaufort, Colleton, Hampton, and Jasper Counties, S.C.

No. MC-FC-70413. By order of May 14, 1968, the Transfer Board approved the transfer to Charles B. Lackey and Donald J. Moore, a partnership, doing

business as L & M Transfer Co., El Paso, Tex., of the portion of the operating rights in certificate No. MC–128879, issued March 26, 1968, to C–B Truck Lines, Inc., El Paso, Tex., authorizing transportation in interstate or foreign commerce, over regular routes, of general commodities, with exceptions, between El Paso, Tex., and Tornillo, Tex., serving all intermediate points, and general commodities, with exceptions, between El Paso, Tex., and Berino, N. Mex. Jerry R. Murphy, Esq., 708 La Veta Northeast, Albuquerque, N. Mex. 87108, attorney for applicants.

No. MC–FC–70459. By order of May 21, 1968, the Transfer Board approved the transfer to Wallack Freight Lines, Inc., Copiague, N.Y., of a portion of the operating rights in certificate No. MC–109950 issued November 15, 1949, to James E. Talbot, doing business as North Jersey Trucking Co., Fort Lee, N.J., authorizing the transportation of general commodities, except commodities in bulk, between Bogota and East Paterson, N.J., over regular routes, serving specified intermediate and off-route points, subject to certain restrictions. Robert B. Pepper, Practitioner, 297 Academy Street, Jersey City, N.J. 07306, representative for transferee. George A. Olsen, Practitioner, 69 Tonnele Avenue, Jersey City, N.J. 07306, representative for transferor.

No. MC–FC–70525. By order of May 24, 1968, the Transfer Board approved the transfer to Kolb, Inc., 6217 Gilmore, Omaha, Nebr. 68107, of the operating rights in certificate No. MC–25684 issued June 9, 1959, to Hudson Calvin, doing business as Art Calvin & Sons, 500 West Temple, Lenox, Iowa 50851, authorizing the transportation of commodities of a general commodity nature, between points in Missouri, Nebraska, Iowa, and Wisconsin.

[SEAL] H. NEIL GARSON,
Secretary.

[F.R. Doc. 68–6618; Filed, June 4, 1968; 8:49 a.m.]

NOTICE OF FILING OF MOTOR CARRIER INTRASTATE APPLICATIONS

MAY 31, 1968.

The following applications for motor common carrier authority to operate in intrastate commerce seek concurrent motor carrier authorization in interstate or foreign commerce within the limits of the intrastate authority sought, pursuant to section 206(a)(6) of the Interstate Commerce Act, as amended October 15, 1962. These applications are governed by Special Rule 1.245 of the Commission's rules of practice, published in the FEDERAL REGISTER, issue of April 11, 1963, page 3533, which provides, among other things, that protests and requests for information concerning the time and place of State Commission hearings or other proceedings, any subsequent changes therein, and any other related matters shall be directed to the State Commission with which the application is filed and shall not be addressed to or filed with the Interstate Commerce Commission.

State Docket No. 16074, filed May 22, 1968. Applicant: McCOMBS FREIGHT LINE, INC., 2716 North 30th Avenue, Birmingham, Ala. 35207. Applicant's representative: Harris & Harris, J. Douglas Harris, 410 Bell Building, Montgomery, Ala. 36104. Certificate of public convenience and necessity sought to operate a freight service as follows: Transportation of *General commodities*, over regular routes, (1) between Birmingham, Ala., and Hartselle, Ala., over U.S. Highway 31 and/or Federal Highway I–65, serving all intermediate points and serving West Point as an off-route point; (2) between Cullman, Ala., and Baileyton, Ala., over Alabama State Highway 69 via Fairview, Simcoe, and Eva, thence south to Holley Pond over unnumbered county road thence west back to Cullman over U.S. Highway 278, serving all intermediate points; (3) between Birmingham, Ala., and Gadsden, Ala., over U.S. Highway 11 and/or U.S. Highway 411 and/or Federal I–59, serving all intermediate points; (4) between Birmingham, Ala., and Calera, Ala., over U.S. Highway 31 and/or Federal Highway I–65 serving all intermediate points; (5) between Pelham, Ala., and Montevallo, Ala., over an unnumbered county road via Helena, Keystone, Maylene, and Dogwood, serving all intermediate points; (6) between Calera, Ala., and Vincent, Ala., over Alabama State Highway 25 via Columbiana, Wilsonville, and Harpersville, serving all intermediate points and serving Shelby as an off-route point; and (7) between Calera, Ala., and Wilton, Ala., over Alabama State Highway 25, serving all intermediate points. Both intrastate and interstate authority sought.

HEARING: Contact the Alabama Commission for this information. Requests for procedural information, including the time for filing protests, concerning this application should be addressed to the Alabama Public Service Commission, Post Office Box 991, Montgomery, Ala. 36102, and should be directed to the Interstate Commerce Commission.

By the Commission.

[SEAL] H. NEIL GARSON,
Secretary.

[F.R. Doc. 68–6619; Filed, June 4, 1968; 8:49 a.m.]

CUMULATIVE LIST OF PARTS AFFECTED—JUNE

The following numerical guide is a list of the parts of each title of the Code of Federal Regulations affected by documents published to date during June.

3 CFR

Page

PROCLAMATION:
3852 — 8257

EXECUTIVE ORDERS:
July 15, 1875 (revoked in part by PLO 4422) — 8275
Apr. 17, 1926 (revoked in part by PLO 4432) — 8341
1032 (revoked in part by PLO 4431) — 8341
8647 (revoked in part by PLO 4430) — 8341

5 CFR

352 — 8197

7 CFR

51 — 8197
401 — 8259–8265
905 — 8198, 8266
910 — 8198
952 — 8329
1001 — 8199
1002 — 8201
1003 — 8199
1004 — 8200
1006 — 8219
1015 — 8200
1016 — 5200
1064 — 8220
1131 — 8266
1421 — 8220, 8329, 8335
1474 — 8221

PROPOSED RULES:
51 — 8343
777 — 8229
923 — 3229
1009 — 8230
1094 — 8345
1103 — 8345

10 CFR

PROPOSED RULES:
32 — 8350

12 CFR

545 — 8221

14 CFR

39 — 8336
151 — 8266
199 — 8267

PROPOSED RULES:
39 — 8281, 8349
71 — 8349
73 — 8349

16 CFR

Page

13 — 8222–8224
242 — 8336

17 CFR

15 — 8268
18 — 8268
240 — 8269

19 CFR

14 — 8244, 8337
16 — 8224, 8244, 8337
17 — 8244, 8337
24 — 8225
53 — 8244, 8337

20 CFR

PROPOSED RULES:
404 — 8348

21 CFR

27 — 8337
42 — 8225
120 — 8337
121 — 8338
130 — 8338

PROPOSED RULES:
130 — 8348
138 — 8281

25 CFR

74 — 8270

26 CFR

1 — 8271
31 — 8271
43 — 8272
48 — 8272
49 — 8272

PROPOSED RULES:
1 — 8343

28 CFR

0 — 8339

31 CFR

500 — 8339

32 CFR

1450 — 8226
1703 — 8273

33 CFR

82 — 8273
205 — 8273

43 CFR

Page

2230 — 8339

PUBLIC LAND ORDERS:
386 (revoked in part by PLO 4419) — 8274
1556 (revoked in part by PLO 4427) — 8340
3147 (see PLO 4427) — 8340
3152 (revoked in part by PLO 4427) — 8340
3184 (see PLO 4427) — 8340
3391 (see PLO 4420) — 8274
3965 (see PLO 4427) — 8340
4371 (revoked in part by PLO 4421) — 8275
4418 — 8273
4419 — 8274
4420 — 8274
4421 — 8275
4422 — 8275
4423 — 8275
4424 — 8275
4425 — 8275
4426 — 8275
4427 — 8340
4428 — 8340
4429 — 8340
4430 — 8341
4431 — 8341
4432 — 8341
4433 — 8341

45 CFR

85 — 8304

46 CFR

31 — 8226
61 — 8226
91 — 8227
500 — 8276

47 CFR

0 — 8227

49 CFR

1 — 8276
91 — 8277, 8341
170 — 8277

PROPOSED RULES:
293 — 8349

50 CFR

PROPOSED RULES:
32 — 8229

Lyndon B. Johnson – 1966

Public Papers of the Presidents of the United States

CONTENTS

- Messages to the Congress
- Public speeches and letters
- The President's news conferences
- Radio and television reports to the American people
- Remarks to informal groups

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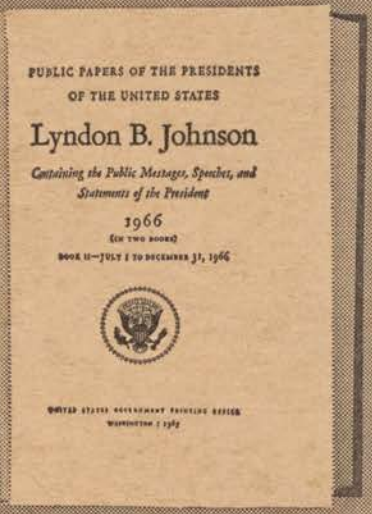
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